

LANGFORD OF THE THREE BARS



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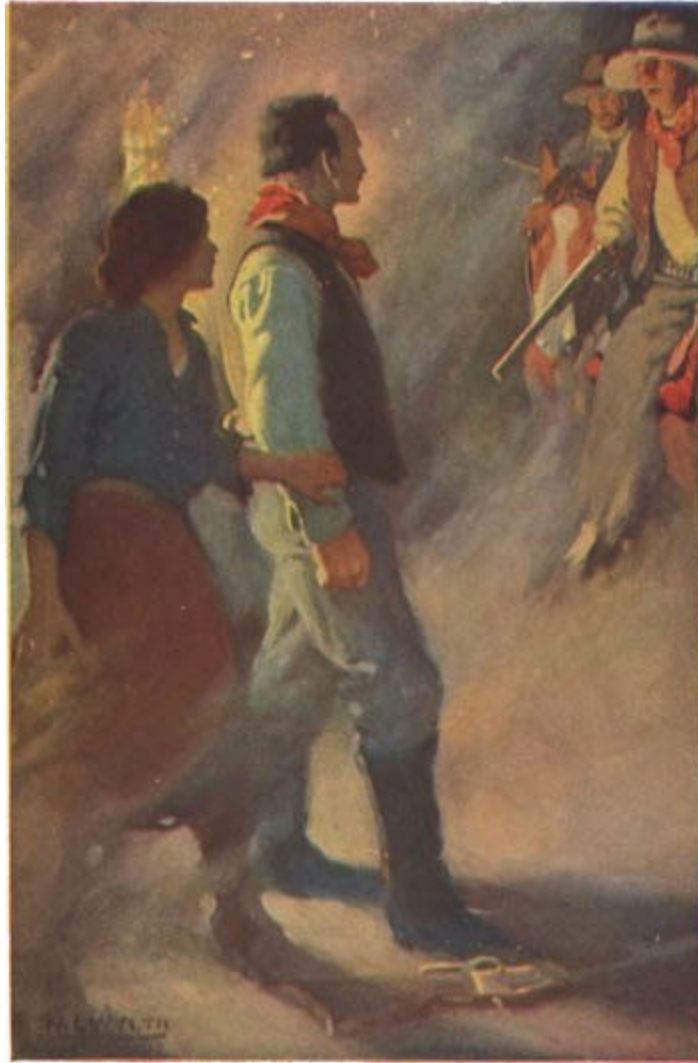
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THE THREE BARS ***



"I Take it I am the One Wanted," Said Williston.

LANGFORD OF THE THREE BARS

By KATE AND VIRGIL D. BOYLES

With Frontispiece in Color
By N. C. WYETH

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TO OUR MOTHER
MRS. MARTHA DILLIN BOYLES

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LANGFORD OF THE THREE BARS

CHAPTER I—THE ISLAND WITH A MYSTERY

He said positively to Battle Ax, his scraggy buckskin cow pony, that they would ride to the summit of this one bluff, and that it should be the last. But he had said the same thing many times since striking the barren hill region flanking both sides of the river. Hump after hump had been surmounted since the sound of the first promise had tickled the ears of the tired bronco, humps as alike as the two humps of a Bactrian camel, the monotonous continuity of which might very well have confused the mind of one less at home on these ranges than George Williston. Even he, riding a blind trail since sun-up, sitting his saddle with a heavy indifference born of heat and fatigue, began to think it might be that they were describing a circle and the sun was playing them strange tricks. Still, he urged his pony to one more effort; just so much farther and they would retrace their steps, giving up for this day at least the locating of a small bunch of cattle, branded a lazy S, missing these three days.

Had not untoward circumstances intervened, he might still have gone blindly on; for, laying aside the gambling fever that was on him, he could ill afford to lose the ten or twelve steers somewhere wandering the wide range or huddled into some safe place, there to abide the time when a daring rustler might conveniently play at witchcraft with the brand or otherwise dispose of them with profit to himself and with credit to his craft. Moreover, what might possibly never have been missed from the vast herds of Langford, his neighbor of the plains country, was of most serious import to Williston for an even weightier reason than the actual present loss.

The existence of the small and independent ranchman was becoming precarious. He was being hounded by two prolific sources of trouble, these sources having a power and insolent strength contemptuously indifferent to any claim set up in their paths by one weaker than themselves. On the one hand was the wealthy cattle owner, whose ever-increasing wealth and consequent power was a growing menace to the interests of the small owner whose very bread and butter depended upon his ability to buy and sell to

advantage. But with bigger interests slowly but surely gaining control of the markets, who might foretell the future? None beheld the ominous signs more apprehensively than did Williston, who for more than two years, striving desperately to make good mistakes and misfortunes made back in Iowa, had felt the pinching grow more and more acute. On the other hand was the vicious combination of the boldness, cunning, and greed of the cattle rustlers who harassed all the range country of the Dakotas and Nebraska. Annihilation was the sword of Damocles held over the head of the small ranchman. A hand lifted to avert impending doom would have set the air in vibration and the sword would have fallen. Nemesis was as sure to follow at the hands of the fellowship of rustlers as ever it was at the hands of the Secret Tribunal of old.

Williston was chafing under his helplessness as the jaded pony climbed doggedly this last bluff. To the right of his path a hawk was fluttering frantically just above the reach of a basilisk-eyed rattlesnake, whose baneful charm the ill-advised bird was not able to resist.

“Devil take you, Battle Ax, but you’re slow,” muttered Williston, utterly indifferent to the outcome of this battle royal. “I’d give a good deal to sit down this minute to some of my little girl’s flapjacks and coffee. But nothing for us, lazy-bones, till midnight—or morning, more likely. Do walk up as if you had some little standing in the world of cow ponies. You haven’t, of a surety, but you might make an effort. All things are possible to him who tries, you know, which is a tremendous lie, of course. But perhaps it doesn’t apply to poor devils like us who are ‘has beens.’ Here we are. Ah!”

There were no more hills. Almost directly at his feet was one of those precipitous cut-aways that characterize the border bluffs of the Missouri River. A few more steps, in the dark, and horse and rider would have plunged over a sheer wall of nearly two hundred feet. As it was, Williston gave a gasp of involuntary horror which almost simultaneously gave place to one of wonder and astonishment. He had struck the river at a point absolutely new to him. It was the time of low water, and the river, in most of its phases muddy and sullen-looking, gleamed silver and gold with the glitter of the setting sun, making a royal highway to the dwelling-place of

Phœbus. A little to the north of this sparkling highroad lay what would have been an island in high water, thickly wooded with willows and cottonwoods. Now a long stretch of sand reached between bluff and island.

Dismounting, with the quick thought that yonder island might hold the secret of his lost cattle, he crept as close to the edge as he dared. The cut was sheer and tawny, entirely devoid of shrubbery by means of which one might hazard a descent. The sand bed began immediately at the foot of the yellow wall. Even though one managed to gain the bottom, one would hardly dare risk the deceitful sands, ever shifting, fair and treacherous. Baffled, he was on the point of remounting to retrace his steps when he dropped his foot from the stirrup amazed. Was the day of miracles not yet passed?

It was the sun, of course. Twelve hours of sun in the eyes could play strange tricks and might even cause a dancing black speck to assume the semblance of a man on horseback, picking his way easily, though mayhap a bit warily, across the waste of sand. He seemed to have sprung from the very bowels of the bluff. Whence else? Many a rod beyond and above the ghostly figure frowned the tawny, wicked cut-away. Path for neither horse nor man appeared so far as eye could reach. It must be the sun. But it was not the sun.

Motionless, intent, a figure cast in bronze as the sun went down, the lean ranchman gazed steadfastly down upon the miniature man and horse creeping along so far below. Not until the object of his fixed gaze had been swallowed by the trees and underbrush did his muscles relax. This man had ridden as if unafraid.

“What man has done, man can do,” ran swiftly through Williston’s brain, and with no idea of abandoning his search until he had probed the mystery, he mounted and rode northward, closely examining the edge of the precipice as he went along for any evidence of a possible descent. Presently he came upon a cross ravine, devoid of shrubbery, too steep for a horse, but presenting possibilities for a man. With unerring instinct he followed the cross-cut westward. Soon a scattering of scrub oaks began to appear, and sumach already streaked with crimson. A little farther and the trees began to

show spiral wreaths of woodbine and wild grape. Yet a little farther, and doubtless there would be outlet for horse as well as man.

But Williston was growing impatient. Besides, the thought came to him that he had best not risk his buckskin to the unknown dangers of an untried trail. What if he should go lame? Accordingly he was left behind in a slight depression where he would be pretty well hidden, and Williston scrambled down the steep incline alone. When foothold or handhold was lacking, he simply let himself go and slid, grasping the first root or branch that presented itself in his dare-devil course.

Arrived at the bottom, he found his clothes torn and his hands bleeding; but that was nothing. With grim determination he made his way through the ravine and struck across the sand trail with a sure realization of his danger, but without the least abatement of his resolution. The sand was firm under his feet. The water had receded a sufficient length of time before to make the thought of quicksands an idle fear. No puff of cloudy smoke leaped from a rifle barrel. If, as he more than half suspected, the island was a rendezvous for cattle thieves, a place surely admirably fitted by nature for such unlawful operations, the rustlers were either overconfident of the inaccessibility of their retreat and kept no lookout, or they were insolently indifferent to exposure. The former premise was the more likely. A light breeze, born of the afterglow, came scurrying down the river bed. Here and there, where the sand was finest and driest, it rose in little whirlwinds. No sound broke the stillness of the summer evening.

What was that? Coyotes barking over yonder across the river? That alien sound! A man's laugh, a curse, a heart-breaking bellow of pain. Williston parted ever so slightly the thick foliage of underbrush that separated him from the all too familiar sounds and peered within.

In the midst of a small clearing,—man-made, for several stumps were scattered here and there,—two men were engaged in unroping and releasing a red steer, similar in all essential respects to a bunch of three or four huddled together a little to one side. They were all choice, well-fed animals, but there were thousands of just such beasts herding on the free ranges. He owned red steers like those, but was there a man in the cattle country who did not? They were impossible of identification without the aid of their

brand, and it happened that they were so bunched as to completely baffle Williston in his eager efforts to decipher the stamp that would disclose their ownership. That they were the illegitimate prey of cattle rustlers, he never for one moment doubted. The situation was conclusive. A bed of glowing embers constantly replenished and kept at white heat served to lighten up the weird scene growing dusky under the surrounding cottonwoods.

Williston thought he recognized in one of the men—the one who seemed to be directing the procedure of this little affair, whose wide and dirty hat-rim was so tantalizingly drawn over his eyes—the solitary rider whose unexpected appearance had so startled him a short time before. Both he and his companion were dressed after the rough, nondescript manner of cattle men, both were gay, laughing and talkative, and seemingly as oblivious to possible danger as if engaged in the most innocent and legitimate business.

A little to the left and standing alone was an odd creature of most striking appearance—a large, spotted steer with long, peculiar-looking horns. It were quite impossible to mistake such a possession if it had once been yours. Its right side was turned full toward Williston and in the centre of the hip stood out distinctly the cleanly cauterized three perpendicular lines that were the identifying mark of the Three Bars ranch, one of those same big, opulent, self-centred outfits whose astonishingly multiplying sign was becoming such a veritable and prophetic writing on the wall for Williston and his kind.

Who then had dared to drive before him an animal so branded? The boldness of the transgression and the insolent indifference to the enormity of attendant consequences held him for the moment breathless. His attention was once more called to the movements of the men. The steer with which they had been working was led away still moaning with surprise and pain, and another brought forward from the reserve bunch. The branded hip, if there was a brand, was turned away from Williston. The bewildered animal was cleverly roped and thrown to the ground. The man who was plainly directing the affair, he of the drooping hat and lazy shoulders, stepped to the fire. Williston held his breath with the intensity of his interest. The man stooped and took an iron from the fire. It was the end-gate rod of a wagon and it was red-hot. In the act of straightening himself from

his stooping position, the glowing iron stick in his right hand, he flung from his head with an easy swing the flopping hat that interfered with the nicety of sight requisite in the work he was about to do, and faced squarely that quiet, innocent-looking spot which held the watching man in its brush; and in the moment in which Williston drew hastily back, the fear of discovery beating a tattoo of cold chills down his spine, recognition of the man came to him in a clarifying burst of comprehension.

But the man evidently saw nothing and suspected nothing. His casual glance was probably only a manifestation of his habitual attitude of being never off his guard. He approached the prostrate steer with indifference to any meaning that might be attached to the soft snapping of twigs caused by Williston's involuntary drawing back into the denser shadows.

"Y' don't suppose now, do you, that any blamed, interferin' off'cer is a-loafin' round where he oughtn't to be?" said the second man with a laugh.

Williston, much relieved, again peered cautiously through the brush. He was confident a brand was about to be worked over. He must see—what there was to see.

"Easy now, boss," said the second man with an officious warning. He was a big, beefy fellow with a heavy, hardened face. Williston sounded the depths of his memory but failed to place him among his acquaintances in the cow country.

"Gamble on me," returned the leader with ready good-nature, "I'll make it as clean as a boiled shirt. I take it you don't know my reputation, pard. Well, you'll learn. You're all right, only a trifle green, that's all."

With a firm, quick hand, he began running the searing iron over the right hip of the animal. When he had finished and the steer, released, staggered to its feet, Williston saw the brand clearly. It was J R. If it had been worked over another brand, it certainly was a clean job. He could see no indications of any old markings whatsoever.

"Too clean to be worked over a lazy S," thought Williston, "but not over three bars."

“There were six reds,” said the chief, surveying the remaining bunch with a critical eye. “One must have wandered off while I was gone. Get out there in the brush and round him up, Alec, while I tackle this long-horned gentleman.”

Williston turned noiselessly away from the scene which so suddenly threatened danger. Both men were fully armed and would brook no eavesdropping. Once more he crossed the sand in safety and found his horse where he had left him, up the ravine. He vaulted into the saddle and galloped away into the quiet night.

CHAPTER II—"ON THE TRAIL"

Williston himself came to the door. His thin, scholarly face looked drawn and worn in the mid-day glare. A tiredness in the eyes told graphically of a sleepless night.

"I'm glad to see you, Langford," he said. "It was good of you to come. Leave your horse for Mary. She'll give her water when she's cooled off a bit."

"You sent for me, Williston?" asked the young man, rubbing his face affectionately against the wet neck of his mare.

"I did. It was good of you to come so soon."

"Fortunately, your messenger found me at home. As for the rest, Sade, here, hasn't her beat in the cow country, if she is only a cow pony, eh, Sade?"

At that moment, Mary Williston came into the open doorway of the rude claim shanty set down in the very heart of the sun-seared plain which stretched away into heart-choking distances from every possible point of the compass. And sweet she was to look upon, though tanned and glowing from close association with the ardent sun and riotous wind. Her auburn hair, more reddish on the edges from sunburn, was fine and soft and there was much of it. It seemed newly brushed and suspiciously glossy. One sees far on the plains, and two years out of civilization are not enough to make a girl forget the use of a mirror, even if it be but a broken sliver, propped up on a pine-board dressing table. She looked strangely grown-up despite her short, rough skirt and badly scuffed leather riding-leggings. Langford stared at her with a startled look of mingled admiration and astonishment. She came forward and put her hand on the mare's bridle. She was not embarrassed in the least. But color came into the stranger's face. He swept his wide hat from his head quickly.

“No indeed, Miss Williston; I’ll water Sade myself.”

“Please let me. I’d love to.”

“She’s used to it, Langford,” said Williston in his quiet, gentlemanly voice, the well-bred cadence of which spoke of a training far removed from the harassments and harshnesses of life in this plains country. “You see, she is the only boy I have. She must of necessity be my chore boy as well as my herd boy. In her leisure moments she holds down her kitchen claim; I don’t know how she does it, but she does. You had better let her do it; she will hold it against you if you don’t.”

“But I couldn’t have a woman doing my grooming for me. Why, the very idea!”

He sprang into the saddle.

“But you waited for me to do it,” said the girl, looking up at him curiously.

“Did I? I didn’t mean to. Yes, I did, too. But I beg your pardon. You see—say, look here; are you the ‘little girl’ who left word for me this morning?”

“Yes. Why not?”

“Well, you see,” smiling, but apologetic, “one of the boys said that Williston’s little girl had ridden over and said her father wanted to see me as soon as I could come. So, you see, I thought—”

“Dad always calls me that, so most of the people around here do, too. It is very silly.”

“I don’t think so at all. I only wonder why I have not known about you before,” with a frank smile. “It must be because I’ve been away so much of the time lately. Why didn’t you wait for me?” he asked suddenly. “Ten miles is a sort of a lonesome run—for a girl.”

“I did wait a while,” said Mary, honestly, “but you didn’t seem in any hurry. I expect you didn’t care to be bored that long way with the silly chatter of a ‘little girl.’”

“Well,” said Langford, ruefully, “I’m afraid I did feel a little relieved when I found you had not waited. I never will again. I do beg your pardon,” he called, laughingly, over his shoulder as he galloped away to the spring.

When he returned there was no one to receive him but Williston. Together they entered the house. It was a small room into which Langford was ushered. It was also very plain. It was more than that, it was shabby. An easy-chair or two that had survived the wreckage of the house of Williston had been shipped to this “land of promise,” together with a few other articles such as were absolutely indispensable. The table was a big shipping box, though Langford did not notice that, for it was neatly covered with a moth-eaten, plum-colored felt cloth. A rug, crocheted out of particolored rags, a relic of Mary’s conservative and thrifty grandmother, served as a carpet for the living-room. A peep through the open door into the next and only other room disclosed glimpses of matting on the floor. There was a holy place even in this castaway house on the prairie. As the young man’s careless eyes took in this new significance, the door closed softly. The “little girl” had shut herself in.

The two men sat down at the table. It was hot. They were perspiring freely. The flies, swarming through the screenless doorway, stung disagreeably.

Laconically Williston told his story. He wasted no words in the telling. In the presence of the man whose big success made his own pitiful failures incongruous, his sensitive scholar’s nature had shut up like a clam.

Langford’s jaw was set. His young face was tense with interest. He had thrown his hat on the floor as he came in, as is the way with men who have lived much without women. He had a strong, bronzed face, with dare-devil eyes, blue they were, too, and he had a certain turn of the head, a mark of distinction which success always gives to her sons. He had big shoulders, clad in a blue flannel shirt open at the throat. In his absorption he had forgotten the “little girl” as completely as if she had, in very truth, been the ten-year-old of his imagination. How plainly he could see all the unholy situation,—the handful of desperate men perfectly protected on the little island. One man sighting from behind a cottonwood could play havoc with a whole sheriff’s posse on that open stretch of sand-bar. Nothing but a surprise—and did these insolent men fear surprise? They had laughed at the

suggestion of the near presence of an officer of the law. And did they not do well to laugh? Surely it was a joke, a good one, this idea of an officer's being where he was needed in Kemah County.

"And my brand was on that spotted steer," he interrupted. "I know the creature—know him well. He has a mean eye. Had the gall to dispute the right of way with me once, not so long ago, either. He was in the corral at the time, but he's been on the range all Summer. He may have the evil eye all right, but he's mine, bad eye and all; and what is mine, I will have. And is that the only original brand you saw?"

"The only one," quietly, "unless the J R on that red steer when he got up was an original one."

"J R? Who could J R be?"

"I couldn't say, but the man was—Jesse Black."

"Jesse Black!"

The repeated words were fairly spit out.

"Jesse Black! I might have known. Who else bold enough to loot the Three Bars? But his day has come. Not a hair, nor a hide, not a hoof, not tallow enough to fry a flapjack shall be left on the Three Bars before he repents his insolence."

"What will you do?" asked Williston.

"What will you do?" retorted Langford.

"I? What can I do?" in the vague, helpless tone of the dreamer.

"Everything—if you will," briefly.

He snatched up his wide hat.

"Where are you going?" asked Williston, curiously.

“To see Dick Gordon before this day is an hour older. Will you come along?”

“Ye—es,” hesitatingly. “Gordon hasn’t made much success of things so far, has he?”

“Because you—and men like you—are under the thumb of men like Jesse Black,” said Langford, curtly. “Afraid to peach for fear of antagonizing the gang. Afraid to vote against the tools of the cattle thieves for fear of antagonizing the gang. Afraid to call your souls your own for fear of antagonizing the gang. Your ‘on the fence’ policy didn’t work very well this time, did it? You haven’t found your cattle, have you? The angel must have forgotten. Thought you were tainted of Egypt, eh?”

“It is easy for you to talk,” said Williston, simply. “It would be different if your bread and butter and your little girl’s as well depended on a scrawny little bunch like mine.”

“Maybe,” said Langford, shrugging his shoulders. “Doesn’t seem to have exempted you, though, does it? But Black is no respecter of persons, you know. However, the time has come for Dick Gordon to show of what stuff he is made. It was for this that I worked for his election, though I confess I little thought at the time that proofs for him would be furnished from my own herds. Present conditions humiliate me utterly. Am I a weakling that they should exist? Are we all weaklings?”

A faint, appreciative smile passed over Williston’s face. No, Langford did not look a weakling, neither had the professed humiliation lowered his proud head. Here was a man—a godlike type, with his sunny hair and his great strength. This was the man who had thrown not only the whole weight of his personal influence, which was much, but his whole-hearted and aggressive service as well, into the long and bitter campaign for county sovereignty, and had thus turned the scale in favor of the scarcely hoped-for victory over the puppet of the cattle rustlers. Williston knew his great object had been to rid the county of its brigands. True it was that this big, ruddy, self-confident ranchman was no weakling.

Langford strode to the door. Then he turned quickly.

“Look here, Williston, I shall make you angry, I suppose, but it has to go in the cattle country, and you little fellows haven’t shown up very white in these deals; you know that yourself.”

“Well?”

“Are you going to stand pat with us?”

“If you mean, am I going to tell what I know when called upon,” answered Williston, with a simple dignity that made Langford color with sudden shame, “I am. There are many of us ‘little fellows’ who would have been glad to stand up against the rustling outrage long ago had we received any backing. The moral support of men of your class has not been what you might call a sort of ‘on the spot’ support, now, has it?” relapsing into a gentle sarcasm. “At least, until you came to the front,” he qualified.

“You will not be the loser, and there’s my hand on it,” said Langford, frankly and earnestly, ignoring the latter part of the speech. “The Three Bars never forgets a friend. They may do you before we are through with them, Williston, but remember, the Three Bars never forgets.”

Braggadocio? Maybe. But there was strength back of it, there was determination back of it, and there was an abiding faith in the power of the Three Bars to make things happen, and a big wrath destined to sleep not nor slumber till some things had happened in the cattle country.

Mary Williston, from her window, as is the way with a maid, watched the two horsemen for many a mile as they galloped away. She followed them with her eyes while they slowly became faint, moving specks in the level distance and until they were altogether blotted out, and there was no sign of living thing on the plain that stretched between. But Paul Langford, as is the way with a man, forgot that he had seen a beautiful girl and had thrilled to her glance. He looked back not once as he urged his trusty little mare on to see Dick Gordon.

CHAPTER III—LOUISE

It was raining when she left Wind City, but the rain had soon been distanced. Perhaps the Judge was right when he said it never rained north or west of Wind City. But the Judge had not wanted her to go. Neither had the Judge's wife.

Full twenty minutes, only day before yesterday, the Judge had delayed his day's outing at the mill where the Jim River doubles right around on its tracks, in order to make it perfectly clear to her that it was absolutely outside of the bounds of her duty, that it was altogether an affair on the side, that she could not be expected to go, and that the prosecuting attorney up there had merely asked her out of courtesy, in deference to her position. Of course he would be glad enough to get her, but let him get some one nearer home, or do without. It wasn't at all necessary for the court reporter to hold herself in readiness to answer the call of anything outside her prescribed circuit duties. To be sure she would earn a trifle, but it was a hard trip, a hard country, and she had much better postpone her initial journey into the unknown until the regular term of court, when he could be with her. He had then thrown his minnow seine over his shoulders, taken his minnow pail in one hand and his reel case and lunch box in the other, and walked out to the road wagon awaiting him at the gate, and so off to his frolic, leaving her to fight it out for herself.

The Judge's wife had not been so diplomatic, not by any means. She had dwelt long and earnestly, and no doubt to a large extent truly, on the uncivilized condition of their neighbors up the line; the roughness of accommodation, the boldness and license of the cowboys, the daring and insolence of the cattle thieves, the cunning and dishonesty of the Indians, and the uncouthness and viciousness of the half-breeds. She had ended by declaring eloquently that Louise would die of lonesomeness if, by God's good providence, she escaped a worse fate at the hands of one or all of the many evils she had enumerated. Yes, it was very evident Aunt Helen had not wanted her to go. But Aunt Helen's real reason had been that she held it

so dizzily unconventional for her niece to go out to that wild and unholy land alone. She did not actually fear for her niece's personal safety, and Louise more than half suspected the truth.

She had heard all the arguments before. They had little or no terrors for her now. They were the arguments used by the people back in her eastern home, those dear, dear people, her people—how far away she was!—when they had schemed and plotted so pathetically to keep her with them, the second one to break away from the slow, safe, and calm traditions of her kin in the place where generation after generation of her people had lived and died, and now lay waiting the Great Judgment in the peaceful country burying-ground.

She had listened to them dutifully, half-believingly, swallowed hard and followed her uncle, her father's youngest brother, to the "Land of the Dakotahs," the fair land of promise, right in the face of her fears and the loneliness that loomed before her—a thing with smirks and horns and devil's eyes that would not be suppressed, but perched itself insolently before her, a heart-choking presence, magnified by the mist in her eyes, through all the long, long journey to the west country. It had left her for a while when she had crossed the Sioux and was on Dakota soil at last. It was such a glorious land through which she was passing, the fair region of the corn-belt, and such a prosperous land, and the fields spread so broadly. It had been a sunny day with clear skies, one of those days when distances are so infinite in South Dakota, the land of widespread spaces. It was indeed a fertile valley through which she was passing. There is none better on earth.

When her train had pulled out of Yankton, she reflected with a whimsical smile that she had not yet seen an Indian. To be sure, she had not really expected to see one in feathers and war-paint, but surely an Indian of some description—did not the traditions of her youth run that Dakota was the land of Indians and blizzards? She well remembered—indeed, could she ever forget?—when, a tot of seven or eight, she had run out into the road to gaze after the carry-all that was taking her well-beloved young uncle away, away, into that dreadful land where blood ran like rivers and where people trimmed their clothes with scalps. She even remembered the feel of the warm, yellow dust up to her bare ankles and the dreadful lump that she

couldn't swallow when her uncle leaned out and waved his hat vigorously, crying out gayly:—

“Good-bye, little girl, good-bye. If they take my scalp, I'll beg them as a special favor to send it back to you as a keepsake. Don't forget to take good care of it. I was always rather proud of my yaller mop.”

He had said more; he had kept on calling to her till the big woods swallowed him. But she had understood nothing after that last awful charge. It had happened more than fifteen years before, but for many and many a day thereafter, sensitive mite that she had been, she would run and hide in the hay-mow whenever she saw her father or the boys coming from town with the mail. It was years before the horror of the expected packet containing the fair hair of her young uncle, dabbled with blood, fell away from her.

Gradually the awfulness of that dread expectation passed away. Now, that same dear uncle was a man of power and position in the new land that had graciously permitted him his scalp. Only last November he had been reelected to his third term on the bench of his circuit with a big, heart-stirring majority. In the day of his prosperity he had not forgotten the little, tangle-haired girl who had cried so inconsolably when he went away, and the unaccountable horror in whose eyes he had tried to laugh away on that never-to-be-forgotten day when he had wrenched his heartstrings from their safe abiding-place and gone forth in quest of the pot of gold at the rainbow's end—the first of many generations. Tradition knew no other since his ancestors had felled forests and built homes of hewn logs. Now he had sent for Louise. His court reporter had recently left him for other fields of labor.

There was commotion among her people on receipt of the astounding proposition. She lived over again the dark days of the first flitting. It might well be her uncle had exaggerated the dangers of life in the new land. It was great fun to shock his credulous relatives. He had surely written them some enormous tales during those fifteen years and more. He used to chuckle heartily to himself at reading some of the sympathizing replies. But these tales were held in evidence against him now that he dared to want Louise. Every letter was brought out by Louise's dear old grandmother and read to

her over again. Louise did not half believe them, but they were gospel truth to her grandmother and almost so to her father and mother as well. She remembered the old spirit of fun rampant in her favorite uncle, and while his vivid pictures took all the color from her sensitive face, deep down in her heart she recognized them for what they were worth. The letters were a strange medley of grasshoppers, blizzards, and Indians. But a ten-dollar per diem was a great temptation over a five-dollar per diem, and times were pretty hard on the old farm. More than all, the inexplicable something that had led her uncle to throw tradition to the four winds of heaven was calling her persistently and would not be denied. So she had written to him for the truth.

“My dear child,” he had answered, “I live in a little city whose civilization would make some of our good friends in the old home stare. As for grasshoppers, I believe there was some crazy talk ages ago, but in my day I do well to corner enough scrawny, scared specimens to land a fish in midsummer. Their appalling scarcity is a constant sorrow to me. Makes me plumb mad even yet to think of the hopeless hours I used to spend blistering my nose on White River, dangling for my finny favorite with dough-balls. Dough-balls—ugh! ‘Send us more grasshoppers, oh, Lord,’ is my daily prayer. As for your last question, I cannot answer it so well. Not enjoying the personal acquaintance of many Indians I cannot tell you much about them. I believe there are a few over on the Crow Creek Reservation and perhaps as many on Lower Brule. I wouldn’t be positive, but I think so. Occasionally I meet one coming from that direction. I have heard—mind, this is only hearsay—that there are a handful or so down on the Rosebud Reservation. I wouldn’t vouch for it. You can hear most anything in this day and generation. The few I have met seem mild enough. They appear to be rather afraid of me. Their chief occupations seem to be dog-eating and divorce-getting, so you can see for yourself how highly modern and civilized they are becoming. I am sure you will have no trouble.”

Louise had not altogether believed this rollicking letter, but it had helped her to her decision.

Wind City and still no Indians; but there was the dear hero of her childhood. He was much changed to be sure; his big joints had taken on more flesh and

he had gained in dignity of deportment what he had lost in ease of movement. His once merry eyes had grown keen with the years of just judging. The lips that had laughed so much in the old days were set in lines of sternness. Judge Hammond Dale was a man who would live up to the tenets of his high calling without fear or favor, through good and evil report. Yet through all his gravity of demeanor and the pride of his integrity, Louise instinctively felt his kindness and loved him for it. The loneliness fell away from her and a measure of content had come in its place, until the letter had come from the State's attorney up in the Kemah County:—

My dear Miss Dale:—The eighteenth of August is the date set for the preliminary hearing of Jesse Black. Will you come and take the testimony? I am very anxious that the testimony be taken by a competent reporter and shall be grateful to you if you decide to come.

The Judge will tell you about our poor accommodations. Let me recommend to your consideration some good friends of mine, the Willistons, father and daughter. They live three miles northwest of Kemah. The Judge will remember Williston, George Williston of the Lazy S. They are cultured people, though their way of living is necessarily primitive. I am sure you will like it better there than at our shabby little hotel, which is a rendezvous for a pretty rough class of men, especially at court time.

If you decide to come, Mary Williston will meet you at Velpen. Please let me know your decision.

Very sincerely, Richard Gordon.

So here she was, going into the Indian country at last. A big State, South Dakota, and the phases of its civilization manifold. Having come so far, to refuse to go on seemed like turning back with her hand already on the plough, so with a stout heart she had wired Richard Gordon that she would go. But it was pretty hard now, to be sure, and pretty dreary, coming into Velpen knowing that she would see no one she knew in all the wide, wide world. The thought choked her and the impish demon, Loneliness, he of the smirk and horns and devil's eyes, loomed leeringly before her again. Blindly, she picked up her umbrella, suit-case, and rain-coat.

“Homesick?” asked the kindly brakeman, with a consolatory grin as he came to assist her with her baggage.

She bit her lip in mortification to think she had carried her feelings so palpably on her sleeve. But she nodded honestly.

“Maybe it won’t be so bad,” sympathized the brakeman. His rough heart had gone out to the slim, fair-haired young creature with the vague trouble in her eyes.

“Thank you,” said Louise, gratefully.

There was a moment’s bewilderment on the station platform. There was no one anywhere who seemed to be Mary—no one who might be looking for her. It was evening, too, the lonesome evening to those away from home, when thoughts stab and memories sap the courage. Some one pushed her rudely aside. She was in the way of the trucks.

“Chuck it! None o’ your sass, my lad! There’s my fist. Heft it if you don’t put no stock in its looks. Git out o’ this, I say!”

The voice was big and convincing. The man wasn’t so big, but some way he looked convincing, too. The truckman stepped aside, but with plucky temerity answered back.

“Get out yourself! Think you own the whole cattle country jest ’cause you herd a few ornery, pink-eyed, slab-sided critters for your salt? Well, the railroad ain’t the range, le’ me tell you that. Jest you run your own affairs, will you?”

“Thanky. Glad to. And as my affairs is at present a lady, I’ll thank you to jest trundle this here railroad offspring to the back o’ this here lady—the back, I say—back ain’t front, is it? Wasn’t where I was eddicated. That’s better. And ef you ain’t satisfied, why, I belong to the Three Bars. Ever hear o’ the Three Bars? Ef I’m out, jest leave word with the Boss, will you? He’ll see I git the word. Yes, sir, you ol’ hoss thief, I belong to the Three Bars.”

The encounter was not without interested spectators. Louise's brakeman was grinning broadly at the discomfiture of his fellow-employee. Louise herself had forgotten her predicament in the sudden whirlwind of which she was the innocent storm-centre.

The cowboy with the temper, having completely routed the enemy to the immense satisfaction of the onlookers, though why, no one knew exactly, nor what the merits of the case, turned abruptly to Louise.

"Are you her?" he asked, with a perceptible cooling of his assertive bravado.

"I don't know," said Louise, smiling fearlessly at her champion, though inwardly quaking at the intuition that had flashed upon her that this strange, uncouth man had come to take the place of Mary. "The boldness and license of the cowboys," her aunt had argued. There could be no doubt of the boldness. Would the rest of the statement hold good?

"I think maybe I am, though I am Louise Dale, the new court reporter. I expected Miss Mary Williston to meet me."

"Then you are her," said the man, with renewed cheerfulness, seizing her suit-case and striding off. "Come along. We'll git some supper afore we start. You're dead tired, more'n likely. It'll be moonlight so't won't matter ef we are late a gittin' home."

"Court reporter! I'll be doggoned!" muttered the brakeman. "The new girl from down East. A pore little white lamb among a pack o' wolves and coyotes, and homesick a'ready. No wonder! I'll be takin' you back to-morrow, I'm thinkin', young lady."

He didn't know the "little white lamb" who had come to help Paul Langford and Dick Gordon in their big fight.

CHAPTER IV—"MAGGOT"

An hour prior to this little episode, Jim Munson had sauntered up to the ticket window only to find that the train from the East was forty minutes late. He turned away with a little shrug of relief. It was a foreign role he was playing,—this assumption of the duties of a knight in dancing attendance on strange ladies. Secretly, he chafed under it; outwardly, he was magnificently indifferent. He had a reputation to sustain, a reputation of having yet to meet that which would lower his proud boast that he was afraid of nothing under the sun, neither man nor devil. But he doubted his ability so to direct the point of view of the Boss or the Scribe or the rest of the boys of the Three Bars ranch, who were on a still hunt for his spot of vulnerability.

The waiting-room was hot,—unbearably so to a man who practically lived in the open. He strolled outside and down the tracks. He found himself wishing the train had been on time. Had it been so, it—the impending meeting—would now have been a thing of the forgotten past. He must needs fortify himself all over again. But sauntering down the track toward the stockyards, he filled his cob pipe, lighted it, and was comforted. He had a forty-minute reprieve.

The boys had tried most valiantly to persuade him to “fix up” for this event. He had scorned them indignantly. If he was good enough as he was—black woollen shirt, red neckerchief and all—for men, just so was he good enough for any female that ever lived. So he assumed a little swagger as he stepped over the ties, and tried to make himself believe that he was glad he had not allowed himself to be corrupted by proffers of blue shirts and white neckerchiefs.

He was approaching the stockyards. There was movement there. Sounds of commands, blows, profane epithets, and worried bawlings changed the placid evening calm into noisy strife. It is always a place interesting to cowmen. Jim relegated thoughts of the coming meeting to the background

while he leaned on the fence, and, with idle absorption, watched the loading of cattle into a stock car. A switch engine, steaming and spluttering, stood ready to make way for another car so soon as the present one should be laden. He was not the only spectator. Others were before him. Two men strolled up to the side opposite as he settled down to musing interest.

“Gee!” he swore gently under his breath, “ef that ain’t Bill Brown! Yep. It is, for a fac’. Wonder what he’s a shippin’ now for!” He scrambled lightly over the high fence of the pen.

“Hullo, there, Bill Brown!” he yelled, genially, making his way as one accustomed through the bunch of reluctant, excited cattle.

“Hullo yourself, Jim! What you doin’ in town?” responded the man addressed, pausing in his labor to wipe the streaming moisture from his face. He fanned himself vigorously with his drooping hat while he talked.

“Gal huntin’,” answered Jim, soberly and despondently.

“Hell!” Brown surveyed him with astonished but sympathetic approbation. “Hell!” he repeated. “You don’t mean it, do you, Jim, honest? Come, now, honest? So you’ve come to it, at last, have you? Well, well! What’s comin’ over the Three Bars? What’ll the boys say?”

He came nearer and lowered his voice to a confidential tone. “Say, Jim, how did it come about? And who’s the lady? Lord, Jim, you of all people!” He laughed uproariously.

“Aw, come off!” growled Jim, in petulant scorn. “You make me tired! You’re plumb luney, that’s what you are. I’m after the new gal reporter. She’s due on that low-down, ornery train. Wish—it—was in Kingdom Come. Yep, I do, for a fac’.”

“Oh, well, never mind! I didn’t mean anything,” laughed Brown, good-naturedly. “But it does beat the band, Jim, now doesn’t it, how you people scare at petticoats. They ain’t pizen—honest.”

Jim looked on idly. Occasionally, he condescended to head a rebellious steer shute-wards. Out beyond, it was still and sweet and peaceful, and the late afternoon had put on that thin veil of coolness which is a God-given refreshment after the heat of the day. But here in the pen all was confusion. The raucous cattle-calls of the cowboys smote the evening air startlingly.

“Here, Bill Brown!” he exclaimed suddenly, “where did you run across that critter?” He slapped the shoulder of a big, raw-boned, long-eared steer as he spoke. The animal was on the point of being driven up the shute.

“What you want to know for?” asked Brown in surprise.

“Reason ’nough. That critter belongs to us, that’s why; and I want to know where you got him, that’s what I want to know.”

“You’re crazy, Jim! Why, I bought that fellow from Jesse Black t’ other day. I’ve got a bill-of-sale for him. I’m shippin’ a couple of cars to Sioux City and bought him to send along. That’s on the square.”

“I don’t doubt it—s’ far as you’re concerned, Bill Brown,” said Jim, “but that’s our critter jest the same, and I’ll jest tote ’im along ’f you’ve no objections.”

“Well, I guess not!” said Brown, laconically.

“Look here, Bill Brown,” Jim was getting hot-headedly angry, “didn’t you know Jesse Black stands trial to-morrow for rustlin’ that there very critter from the Three Bars ranch?”

“No, I didn’t,” Brown answered, shortly. “Any case?”

“I guess yes! Williston o’ the Lazy S saw this very critter on that island where Jesse Black holds out.” He proceeded to relate minutely the story to which Williston was going to swear on the morrow. “But,” he concluded, “Jesse’s goin’ to fight like hell against bein’ bound over.”

“Well, well,” said Brown, perplexedly. “But the brand, Jim, it’s not yours or Jesse’s either.”

“Quainted with any J R ranch in these parts?” queried Jim, shrewdly. “I ain’t.”

“Well, neither am I,” confessed Brown, “but that’s not sayin’ there ain’t one somewhere. Maybe we can trace it back.”

“Shucks!” exploded Jim.

“Maybe you’re right, Jim, but I don’t propose to lose the price o’ that animal less’n I have to. You can’t blame me for that. I paid good money for it. If it’s your’n, why, of course, it’s your’n. But I want to be sure first. Sure you’d know him, Jim? How could you be so blamed sure? Your boss must range five thousand head.”

“Know him? Know Mag? I’d know Mag ef my eyes were full o’ soundin’ cataracts. He’s an old and tried friend o’ mine. The meanest critter the Lord ever let live and that’s a fac’. But the Boss calls ’im his maggot. Seems to actually cherish a kind o’ ’fection for the ornery critter, and says the luck o’ the Three Bar would sort o’ peak and pine ef he should ever git rid o’ the pesky brute. Maybe he’s right. Leastwise, the critter’s his, and when a thing’s yours, why, it’s yours and that’s all there is about it. By cracky, the Boss is some mad! You’d think him and that walleyed, cross-grained son-of-a-gun had been kind and lovin’ mates these many years. Well, I ain’t met up with this ornery critter for some time. Hullo there, Mag! Look kind o’ sneakin’, now, don’t you, wearin’ that outlandish and unbeknownst J R?”

Bill Brown thoughtfully surveyed the steer whose ownership was thus so unexpectedly disputed.

“You hold him,” insisted Jim. “Ef he ain’t ours, you can send him along with your next shipment, can’t you? What you wobblin’ about? Ain’t afraid the Boss’ll claim what ain’t his, are you, Bill Brown?”

“Well, I can’t he’p myself, I guess,” said Brown, in a tone of voice which told plainly of his laudable effort to keep his annoyance in subjection to his good fellowship. “You send Langford down here first thing in the morning. If he says the critter’s his’n, that ends it.”

Now that he had convinced his quondam acquaintance, the present shipper, to his entire satisfaction, Jim glanced at his watch with ostentatious ease. His time had come. If all the minutes of all the time to come should be as short as those forty had been, how soon he, Jim Munson, cow-puncher, would have ridden them all into the past. But his “get away” must be clean and dignified.

“Likely bunch you have there,” he said, casually, turning away with unassumed reluctance.

“Fair to middlin’,” said Brown with pride.

“Shippin’ to Sioux City, you said?”

“Yep.”

“Well, so long.”

“So long. Shippin’ any these days, Jim?”

“Nope. Boss never dribbles ’em out. When he ships he ships. Ain’t none gone over the rails since last Fall.”

He stepped off briskly and vaulted the fence with as lightsome an air as though he were bent on the one errand his heart would choose, and swung up the track carelessly humming a tune. But he had a vise-like grip on his cob pipe. His teeth bit through the frail stem. It split. He tossed the remains away with a gesture of nervous contempt. A whistle sounded. He quickened his pace. If he missed her,—well, the Boss was a good fellow, took a lot of nonsense from the boys, but there were things he would not stand for. Jim did not need to be told that this would be one of them.

The platform was crowded. The yellow sunlight fell slantingly on the gay groups.

“Aw, Munson, you’re bluffin’,” jested the mail carrier. “You ain’t lookin’ fer nobody; you know you ain’t. You ain’t got no folks. Don’t believe you never had none. Never heard of ’em.”

“Lookin’ for my uncle,” explained Jim, serenely. “Rich old codger from the State o’ Pennsylvaney some’ers. Ain’t got nobody but me left.”

“Aw, come off! What you givin’ us?”

But Jim only winked and slouched off, prime for more adventures. He was enjoying himself hugely,—when he was not thinking of petticoats.

CHAPTER V—AT THE BON AMI

Unlike most of those who ride much, her escort was a fast walker. Louise had trouble in keeping up with him, though she had always considered herself a good pedestrian. But Jim Munson was laboring under strange embarrassment. He was red-facedly conscious of the attention he was attracting striding up the inclined street from the station in the van of the prettiest and most thoroughbred girl who had struck Velpen this long time.

Not that he objected to attention under normal conditions. Not he! He courted it. His chief aim in life seemed to be to throw the limelight of publicity, first, on the Three Bars ranch, as the one and only in the category of ranches, and to be connected with it in some way, however slight, the unquestioned aim and object of existence of every man, woman, and child in the cattle country; secondly, on Paul Langford, the very boss of bosses, whose master mind was the prop and stay of the Northwest, if not of all Christendom; and lastly upon himself, the modest, but loyal servitor in this Paradise on earth. But girls were far from normal conditions. There were no women at the Three Bars. There never had been any woman at the Three Bars within the memory of man. To be sure, Williston's little girl had sometimes ridden over on an errand, but she didn't count. This—this was the real thing, and he didn't know just how to deal with it. He needed time to enlarge his sight to this broadened horizon.

He glanced with nonchalance over his shoulder. After all, she was only a girl, and not such a big one either. She wore longer skirts than Williston's girl, but he didn't believe she was a day older. He squared about immediately, and what he had meant to say he never said, on account of an unaccountable thickening of his tongue.

Presently, he bolted into a building, which proved to be the Bon Ami, a restaurant under the direct supervision of the fat, voluble, and tragic Mrs. Higgins, where the men from the other side of the river had right of way and unlimited credit.

“What’ll you have?” he asked, hospitably, the familiar air of the Bon Ami bringing him back to his accustomed self-confident swagger.

“Might I have some tea and toast, please?” said Louise, sinking into a chair at the nearest table, with two startling yet amusing thoughts rampant in her brain. One was, that she wished Aunt Helen could have seen her swinging along in the wake of this typical “bold and licentious” man, and calmly and comfortably sitting down to a cosy little supper for two at a public eating house; the other startling thought was to the effect that the invitation was redolent with suggestiveness, and she wondered if she was not expected to say, “A whiskey for me, please.”

“Guess you kin,” answered Jim, wonder in his voice at the exceeding barrenness of the order. “Mrs. Higgins, hello there, Mrs. Higgins! I say, there, bring on some tea and toast for the lady!”

“Where is the Three Bars?” asked Louise, her thoughts straying to the terrors of a fifteen-mile drive through a strange and uncanny country with a stranger and yet more uncanny man. She had accepted him without question. He was part and parcel with the strangeness of her new position. But the suddenness of the transition from idle conjecture to startling reality had raised her proud head and she looked this new development squarely in the face without outward hint of inward perturbation.

“Say, where was you raised?” asked Jim, with tolerant scorn, between huge mouthfuls of boiled pork and cabbage, interspersed with baked potatoes, hot rolls, and soggy dumplings, shovelled in with knife, fork, or spoon. He occasionally anticipated dessert by making a sudden sortie into the quarter of an immense custard pie, hastening the end by means of noisy draughts of steaming coffee. Truly, the Three Bars connection had the fat of the land at the Bon Ami.

“Why, it’s the Three Bars that’s bringin’ you here. Didn’t you know that? There’s nary a man in the hull country with backbone enough to keep him off all-fours ’ceptin’ Paul Langford. Um. You just try once to walk over the Boss, will you? Lord! What a grease spot you’d make!”

“Mr. Gordon isn’t being walked over, is he?” asked Louise, finished with her tea and toast and impatient to be off.

“Oh, Gordon? Pretty decent sort o’ chap. Right idees. Don’t know much about handlin’ hoss thieves and sich. Ain’t smooth enough. Acted kind o’ like a chicken with its head cut off till the Boss got into the roundup.”

“Oh!” said Louise, whose conception of the young counsel for the State did not tally with this delineation.

“Yep, Miss, this here’s the Boss’s doin’s. Yep. Lord! What’ll that gang look like when we are through with ’em? Spendin’ the rest o’ their days down there in Sioux Falls, meditatin’ on the advisability o’ walkin’ clear o’ the toes o’ the Three Bars in the future and cussin’ their stupendified stupidity in foolin’ even once with the Three Bars. Yep, sir—yep, ma’am, I mean,—Jesse Black and his gang have acted just like pesky, little plum’-fool moskeeters, and we’re goin’ to slap ’em. The cheek of ’em, lightin’ on the Three Bars! Lord!”

“Mr. Williston informed, did he not?”

“Williston? Oh, yes, he informed, but he’d never ’a’ done it if it hadn’t ’a’ been for the Boss. The ol’ jellyfish wouldn’t ’a’ had the nerve to inform without backin’, as sure as a stone wall. The Boss is a doin’ this, I tell you, Miss. But Williston’s a goin’ on the stand to-morrer all right, and so am I.”

The two cowboys at the corner table had long since finished their supper. They now lighted bad-smelling cigars and left the room. To Louise’s great relief, Munson rose, too. He was back very soon with a neat little runabout and a high-spirited team of bays.

“Boss’s private,” explained Jim with pride. “Nothin’ too good for a lady, so the Boss sent this and me to take keer o’ it. And o’ you, too, Miss,” he added, as an afterthought.

He held the lines in his brown, muscular hands, lovingly, while he stowed away Louise’s belongings and himself snugly in the seat, and then the blood burned hot and stinging through his bronzed, tough skin, for suddenly in his

big, honest, untrained sensibilities was born the consciousness that the Boss would have stowed away the lady first. It was an embarrassing moment. Louise saved the day by climbing in unconcernedly after him and tucking the linen robe over her skirt.

“It will be a dusty drive, won’t it?” she asked, simply.

“Miss, you’re a—dandy,” said Jim as simply.

As they drove upon the pontoon bridge, Louise looked back at the little town on the bluffs, and felt a momentary choking in her throat. It was a strange place, yet it had tendrils reaching homeward. The trail beyond was obscurely marked and not easy to discern. She turned to her companion and asked quickly: “Why didn’t Mary come?”

“Great guns! Did I forgit to tell you? Williston’s got the stomach-ache to beat the band and Mary’s got to physic him up ’gin to-morrer. We’ve got to git him on that stand if it takes the hull Three Bars to hol’ him up and the gal a pourin’ physic down him between times. Yep, Ma’am. He was pizenen. You see, everybody that ate any meat last night was took sick with gripin’ cramps, yep; but Williston he was worse’n all, he bein’ a hearty eater. He was a stayin’ in town over night on this preliminary business, and Dick Gordon he was took, too, but not so bad, bein’ what you might call a light eater. The Boss and me we drove home after all, though we’d expected to stay for supper. The pesky coyotes got fooled that time. Yep, Ma’am, no doubt about it in the world. Friends o’ Jesse’s that we ain’t able to lay hands on yit pizenen that there meat. Yep, no doubt about it. Dick was in an awful sweat about you. Was bound he was a comin’ after you hisself, sick as he was, when we found Mary was off the count. So then the Boss was a comin’ and they fit and squabbled for an hour who could be best spared, when I, comin’ in, settled it in a jiffy by offerin’ my services, which was gladly accepted. When there’s pizenin’ goin’ on, why, the Boss’s place is hum. And nothin’ would do but the Boss’s own particular outfit. He never does things by halves, the Boss don’t. So I hikes home after it and then hikes here.”

“I am very grateful to him, I am sure,” murmured Louise, smiling.

And Jim, daring to look upon her smiling face, clear eyes, and soft hair under the jaunty French sailor hat, found himself wondering why there was no woman at the Three Bars. With the swift, half-intuitive thought, the serpent entered Eden.

CHAPTER VI—"NOTHIN' BUT A HOSS THIEF, ANYWAY"

The island teemed with early sunflowers and hints of goldenrod yet to come. The fine, white, sandy soil deadened the sound of the horses' hoofs. They seemed to be spinning through space. Under the cottonwoods it grew dusky and still.

At the toll house a dingy buckboard in a state of weird dilapidation, with a team of shaggy buckskin ponies, stood waiting. Jim drew up. Two men were lounging in front of the shanty, chatting to the toll-man.

"Hello, Jim!" called one of them, a tall, slouching fellow with sandy coloring.

"Now, how the devil did you git so familiar with my name?" growled Jim.

"The Three Bars is gettin' busy these days," spoke up the second man, with an insolent grin.

"You bet it is," bragged Jim. "When the off'cers o' the law git to sleepin' with hoss thieves and rustlers, and take two weeks to arrest a bunch of 'em, when they know prezactly where they keep theirselves, and have to have special deputies app'inted over 'em five or six times and then let most o' the bunch slip through their fingers, it's time for some one to git busy. And when Jesse Black and his gang are so desp'rit they pizen the chief witnesses —"

A gentle pressure on his arm stopped him. He turned inquiringly.

"I wouldn't say any more," whispered Louise. "Let's get on."

The hint was sufficient, and with the words, "Right you are, Miss Reporter, we'll be gittin' on," Jim paid his toll and spoke to his team.

"Just wait a bit, will you?" spoke up the sandy man.

“What for?”

“We’re not just ready.”

“Well, we are,” shortly.

“We aren’t, and we don’t care to be passed, you know.”

He spoke indifferently. In deference to Louise, Jim waited. The men smoked on carelessly. The toll-man fidgeted.

“You go to hell! The Three Bars ain’t waitin’ on no damned hoss thieves,” said Jim, suddenly.

His nervous team sprang forward. Quick as a flash the sandy man was in the buckboard. He struck the bays a stinging blow with his rawhide, and as they swerved aside he swung into the straight course to the narrow bridge of boats. In another moment the way would be blocked. With a burning oath Jim, keeping to the side of the steep incline till the river mire cut him off, deliberately turned his stanch little team squarely, and crowded them forward against the shaggy buckskins. It was team against team. Louise, clinging tightly to the seat, lips pressed together to keep back any sound, felt a wild, inexplicable thrill of confidence in the strength of the man beside her.

The bays were pitifully, cruelly lashed by the enraged owner of the buckskins, but true as steel to the familiar voice that had guided them so often and so kindly, they gave not nor faltered. There was a snapping of broken wood, a wrench, a giving way, and the runabout sprang over debris of broken wheel and wagon-box to the narrow confines of the pontoon bridge.

“The Three Bars is gettin’ busy!” gibed Jim over his shoulder.

“It’s a sorry day for you and yours,” cried the other, in black and ugly wrath.

“We ain’t afeared. You’re nothin’ but a hoss thief, anyway!” responded Jim, gleefully, as a parting shot.

“Now what do you suppose was their game?” he asked of the girl at his side.

“I don’t know,” answered Louise, thoughtfully. “But I thought it not wise to say too much to them. You are a witness, I believe you said.”

“Then you think they are part o’ the gang?”

“I consider them at least sympathizers, don’t you? They seemed down on the Three Bars.”

In the Indian country at last. Mile after mile of level, barren stretches after the hill region had been left behind. Was there no end to the thirst-inspiring, monotonous, lonely reach of cacti? Prairie dogs, perched in front of their holes, chattered and scolded at them. The sun went down and a refreshing coolness crept over the hard, baked earth. Still, there was nothing but distance anywhere in all the land, and a feeling of desolation swept over the girl.

The air of August was delicious now that night was coming on. There was no wind, but the swift, unflagging pace of the Boss’s matched team made a stiff breeze to play in their faces. It was exhilarating. The listlessness and discouragement of the day were forgotten. Throwing her rain-coat over her shoulders, Louise felt a clumsy but strangely gentle hand helping to draw it closer around her. Someway the action, simple as it was, reminded her of the look in that brakeman’s eyes, when he had asked her if she were homesick. Did this man think she was homesick, too? She was grateful; they were very kind. What a lot of good people there were in the world! Now, Jim Munson did not call her “little white lamb” to himself, the metaphor never entered his mind; but in his big, self-confident heart he did feel a protecting tenderness for her. She was not like any woman he had ever seen, and it was a big, lonesome country for a slip of a girl like her.

The moon came up. Then there were miles of white moonlight and lonely plain. But for some time now there has been a light in front of them. It is as

if it must be a will-o'-the-wisp. They never seem to get to it. But at last they are there. The door is wide open. A pleasant odor of bacon and coffee is wafted out to the tired travellers.

“Come right in,” says the cheery voice of Mary. “How tired you must be, Miss Dale. Tie up, Jim, and come in and eat something before you go. Well, you can eat again—two suppers won’t hurt you. I have kept things warm for you. Your train must have been late. Yes, Dad is better, thank you. He’ll be all right in the morning.”

CHAPTER VII—THE PRELIMINARY

Very early in the morning of the day set for the preliminary hearing of Jesse Black, the young owner of the Three Bars ranch rode over to Velpen. He identified and claimed the animal held over from shipment by Jim's persuasion. Brown gave possession with a rueful countenance.

"First time Billy Brown ever was taken in," he said, with great disgust.

Langford met with no interruption to his journey, either going or coming, although that good cowpuncher of his, Jim Munson, had warned him to look sharp to his pistols and mind the bridge. Jim being of a somewhat belligerent turn of mind, his boss had not taken the words with much seriousness. As for the fracas at the pontoon, cowmen are touchy when it comes to a question of precedence, and it might well be that the inflammable Jim had brought the sudden storm down on his head. Paul Langford rode through the sweet early summer air without let or hindrance and looking for none. He was jubilant. Now was Williston's story verified. The county attorney, Richard Gordon, had considered Williston's story, coupled with his reputation for strict honesty, strong and sufficient enough to bind Jesse Black over to appear at the next regular term of the circuit court. Under ordinary circumstances, the State really had an excellent chance of binding over; but it had to deal with Jesse Black, and Jesse Black had flourished for many years west of the river with an unsavory character, but with an almost awesome reputation for the phenomenal facility with which he slipped out of the net in which the law—in the person of its unpopular exponent, Richard Gordon—was so indefatigably endeavoring to enmesh him. The State was prepared for a hard fight. But now—here was the very steer Williston saw on the island with its Three Bars brand under Black's surveillance. Williston would identify it as the same. He, Langford, would swear to his own animal. The defence would not know he had regained possession and would not have time to readjust its evidence. It would fall down and hurt itself for the higher court, and Dick Gordon would know how to use any inadvertencies against it—when the time came.

No wonder Langford was light-hearted. In all his arrogant and unhampered career, he had never before received such an affront to his pride and his sense of what was due to one of the biggest outfits that ranged cattle west of the river. Woe to him who had dared tamper with the concerns of Paul Langford of the Three Bars.

Williston drove in from the Lazy S in ample time for the mid-day dinner at the hotel—the hearing was set for two o’clock—but his little party contented itself with a luncheon prepared at home, and packed neatly and appetizingly in a tin bucket. It was not likely there would be a repetition of bad meat. It would be poor policy. Still, one could not be sure, and it was most important that Williston ate no bad meat that day.

Gordon met them in the hot, stuffy, little parlor of the hotel.

“It was good of you to come,” he said to Louise, with grave sincerity.

“I didn’t want to,” confessed Louise, honestly. “I’m afraid it is too big and lonesome for me. I am sure I should have gone back to Velpen last night to catch the early train had it not been for Mary. She is so—good.”

“The worst is over now that you have conquered your first impulse to fly,” he said.

“I cried, though. I hated myself for it, but I couldn’t help it. You see I never was so far from home before.”

He was an absorbed, hard-working lawyer. Years of contact with the plain, hard realities of rough living in a new country had dried up, somewhat, his stream of sentiment. Maybe the source was only blocked with debris, but certainly the stream was running dry. He could not help thinking that a girl who cries because she is far from home had much better stay at home and leave the grave things which are men’s work to men. But he was a gentleman and a kindly one, so he answered, quietly, “I trust you will like us better when you know us better,” and, after a few more commonplaces, went his way.

“There’s a man,” said Louise, thoughtfully, on the way to McAllister’s office “I like him, Mary.”

“And yet there are men in this county who would kill him if they dared.”

“Mary! what do you mean? Are there then so many cut-throats in this awful country?”

“I think there are many desperate men among the rustlers who would not hesitate to kill either Paul Langford or Richard Gordon since these prosecutions have begun. There are also many good people who think Mr. Gordon is just stirring up trouble and putting the county to expense when he can have no hope of conviction. They say that his failures encourage the rustlers more than an inactive policy would.”

“People who argue like that are either tainted with dishonesty themselves or they are foolish, one of the two,” said Louise, with conviction.

“Mr. Gordon has one staunch supporter, anyway,” said Mary, smiling. “Maybe I had better tell him. Precious little encouragement or sympathy he gets, poor fellow.”

“Please do not,” replied Louise, quickly. “I wonder if my friend, Mr. Jim Munson, has managed to escape ‘battle, murder, and sudden death,’ including death by poison, and is on hand with his testimony.”

As they approached the office, the crowd of men around the doorway drew aside to let them pass.

“Our chances of worming ourselves through that jam seem pretty slim to me,” whispered Mary, glancing into the already overcrowded room.

“Let me make a way for you,” said Paul Langford, as he separated himself from the group of men standing in front, and came up to them.

“I have watered my horse,” he said, flashing a merry smile at Mary as he began shoving his big shoulders through the press, closely followed by the two young women.

It was a strange assembly through which they pressed; ranchmen and cowboys, most of them, just in from ranch and range, hot and dusty from long riding, perspiring freely, redolent of strong tobacco and the peculiar smell that betokens recent and intimate companionship with that part and parcel of the plains, the horse. The room was indeed hot and close and reeking with bad odors. There were also present a large delegation of cattle dealers and saloon men from Velpen, and some few Indians from Rosebud Agency, whose curiosity was insatiable where the courts were concerned, far from picturesque in their ill-fitting, nondescript cowboy garments.

Yet they were kindly, most of the men gathered there. Though at first they refused, with stolid resentment, to be thus thrust aside by the breezy and aggressive owner of the Three Bars, planting their feet the more firmly on the rough, uneven floor, and serenely oblivious to any right of way so arrogantly demanded by the big shoulders, yet, when they perceived for whom the way was being made, most of them stepped hastily aside with muttered and abashed apologies. Here and there, however, though all made way, there would be no red-faced or stammering apology. Sometimes the little party was followed by insolent eyes, sometimes by malignant ones. Had Mary Williston spoken truly when she said the will for bloodshed was not lacking in the county?

But if there was aught of hatred or enmity in the heavy air of the improvised court-room for others besides the high-minded young counsel for law and order, Mary Williston seemed serenely unconscious of it. She held her head proudly. Most of these men she knew. She had done a man's work among them for two years and more. In her man's work of riding the ranges she had had good fellowship with many of them. After to-day much of this must end. Much blame would accrue to her father for this day's work, among friends as well as enemies, for the fear of the law-defiers was an omnipresent fear with the small owner, stalking abroad by day and by night. But Mary was glad and there was a new dignity about her that became her well, and that grew out of this great call to rally to the things that count.

At the far end of the room they found the justice of the peace enthroned behind a long table. His Honor, Mr. James R. McAllister, more commonly known as Jimmie Mac, was a ranchman on a small scale. He was ignorant,

but of an overweening conceit. He had been a justice of the peace for several years, and labored under the mistaken impression that he knew some law; but Gordon, on short acquaintance, had dubbed him "Old Necessity" in despairing irony, after a certain high light of early territorial days who "knew no law." Instead of deciding the facts in the cases brought before him from the point of view of an ordinary man of common sense, McAllister went on the theory that each case was fraught with legal questions upon which the result of the case hung; and he had a way of placing himself in the most ridiculous lights by arguing long and arduously with skilled attorneys upon questions of law. He made the mistake of always trying to give a reason for his rulings. His rulings, sometimes, were correct, but one would find it hard to say the same of his reasons for them.

Louise's little table was drawn closely before the window nearest the court. She owed this thoughtfulness to Gordon, who, nevertheless, was not in complete sympathy with her, because she had cried. The table was on the sunny side, but there was a breeze out of the west and it played refreshingly over her face, and blew short strands of her fair hair there also. To Gordon, wrapped up as he was in graver matters, her sweet femininity began to insist on a place in his mental as well as his physical vision. She was exquisitely neat and trim in her white shirt-waist with its low linen collar and dark blue ribbon tie of the same shade as her walking skirt, and the smart little milliner's bow on her French sailor hat, though it is to be doubted if Gordon observed the harmony. She seemed strangely out of place in this room, so bare of comfort, so stuffy and stenchy and smoke-filled; yet, after all, she seemed perfectly at home here. The man in Gordon awoke, and he was glad she had not stayed at home or gone away because she cried.

Yes, Jim was there—and swaggering. It was impossible for Jim not to swagger a little on any occasion. The impulse to swagger had been born in him. It had been carefully nurtured from the date of his first connection with the Three Bars. He bestowed an amiable grin of recognition on the new reporter from the far side of the room, which was not very far.

The prisoner was brought in. His was a familiar personality. He was known to most men west of the river—if not by personal acquaintance, certainly by

hearsay. Many believed him to be the animating mind of a notorious gang of horse thieves and cattle rustlers that had been operating west of the river for several years. Lax laws were their nourishment. They polluted the whole. It was a deadly taint to fasten itself on men's relations. Out of it grew fear, bribery, official rottenness, perjury. There was an impudent half smile on his lips. He was a tall, lean, slouching-shouldered fellow. To-day, his jaws were dark with beard bristles of several days' standing. He bore himself with an easy, indifferent manner, and chewed tobacco enjoyingly.

Louise, glancing casually around at the mass of interested, sunbrowned faces, suddenly gave a little start of surprise. Not far in front of Jimmie Mac's table stood the man of the sandy coloring who had so insolently disputed their right of way the day before. His hard, light eyes, malignant, sinister, significant, were fixed upon the prisoner as he slouched forward to hear his arraignment. The man in custody yawned occasionally. He was bored. His whole body had a lazy droop. So far as Louise could make out he gave no sign of recognition of the man of sandy coloring.

Then came the first great surprise of this affair of many surprises. Jesse Black waived examination. It came like a thunderbolt to the prosecution. It was not Black's way of doing business, and it was generally believed that, as Munson had so forcibly though inelegantly expressed it to Billy Brown, "He would fight like hell" to keep out of the circuit courts. He would kill this incipient Nemesis in the bud. What, then, had changed him? The county attorney had rather looked for a hard-fought defence—a shifting of the burden of responsibility for the misbranding to another, who would, of course, be off somewhere on a business trip, to be absent an indefinite length of time; or it might be he would try to make good a trumped-up story that he had but lately purchased the animal from some Indian cattle-owner from up country who claimed to have a bill-of-sale from Langford. He would not have been taken aback had Black calmly produced a bill-of-sale.

There were lines about the young attorney's mouth, crow's feet diverging from his eyes; his forehead was creased, too. He was a tall man, slight of build, with drooping shoulders. One of the noticeable things about him was his hands. They were beautiful—the long, slim, white kind that attract attention, not so much, perhaps, on account of their graceful lines, as

because they are so seldom still. They belong preëminently to a nervous temperament. Gordon had trained himself to immobility of expression under strain, but his hands he had not been able so to discipline. They were always at something, fingering the papers on his desk, ruffling his hair, or noisily drumming. Now he folded them as if to coerce them into quiet. He had handsome eyes, also, too keen, maybe, for everyday living; they would be irresistible if they caressed.

The absoluteness of the surprise flushed his clean-shaven face a little, although his grave immobility of expression underwent not a flicker. It was a surprise, but it was a good surprise. Jesse Black was bound over under good and sufficient bond to appear at the next regular term of the circuit court in December. That much accomplished, now he could buckle down for the big fight. How often had he been shipwrecked in the shifting sands of the really remarkable decisions of “Old Necessity” and his kind. This time, as by a miracle, he had escaped sands and shoals and sunken rocks, and rode in deep water.

A wave of enlightenment swept over Jim Munson.

“Boss,” he whispered, “that gal reporter’s a hummer.”

“How so?” whispered Langford, amused. He proceeded to take an interested, if hasty, inventory of her charms. “What a petite little personage, to be sure! Almost too colorless, though. Why, Jim, she can’t hold a tallow candle to Williston’s girl.”

“Who said she could?” demanded Jim, with a fine scorn and much relieved to find the Boss so unappreciative. Eden might not be lost to them after all. Strict justice made him add: “But she’s a wise one. Spotted them blamed meddlin’ hoss thieves right from the word go. Yep. That’s a fac’.”

“What ‘blamed meddlin’ hoss thieves,’ Jim? You are on intimate terms with so many gentlemen of that stripe,—at least your language so leads us to presume,—that I can’t keep up with the procession.”

“At the bridge yistidy. I told you ’bout it. Saw ’em first at the Bon Amy—but they must a trailed me to the stockyards. She spotted ’em right away.

She's a cute 'n. Made me shet my mouth when I was a blabbin' too much, jest before the fun began. Oh, she's a cute 'n!"

"Who were they, Jim?"

"One of 'em, I'm a thinkin', was Jake Sanderson, a red-headed devil who came up here from hell, I reckon, or Wyoming, one of the two. Nobody knows his biz. But he'll look like a stepped-on potato bug 'gainst I git through with him. Didn't git on to t' other feller. Will next time, you bet!"

"But what makes you think they are mixed up in this affair?"

"They had their eyes on me to see what I was a doin' in Velpen. And I was a doin' things, too."

Langford gave a long, low whistle of comprehension. That would explain the unexpected waiving of examination. Jesse Black knew the steer had been recovered and saw the futility of fighting against his being bound over.

"Now, ain't she a hummer?" insisted Jim, admiringly, but added slightly, "Homely, though, as all git-out. Mouse-hair. Plumb homely."

"On the contrary, I think she is plumb pretty," retorted Langford, a laugh in his blue eyes. Jim fairly gasped with chagrin.

Unconcerned, grinning, Black slouched to the door and out. Once straighten out that lazy-looking body and you would have a big man in Jesse Black. Yes, a big one and a quick one, too, maybe. The crowd made way for him unconsciously. No one jostled him. He was a marked man from that day. His lawyer, Small, leaned back in his chair, radiating waves of self-satisfaction as though he had but just gained a disputed point. It was a manner he affected when not on the floor in a frenzy of words and muscular action.

Jim Munson contrived to pass close by Jake Sanderson.

"So you followed me to find out about Mag, did you? Heap o' good it did you! We knew you knew," he bragged, insultingly.

The man's face went white with wrath.

"Damn you!" he cried. His hand dropped to his belt.

The two glared at each other like fighting cocks. Men crowded around, suddenly aware that a quarrel was on.

"The Three Bars's a gittin' busy!" jeered Jim.

"Come, Jim, I want you." It was Gordon's quiet voice. He laid a restraining hand on Munson's over-zealous arm.

"Dick Gordon, this ain't your put-in," snarled Sanderson. "Git out the way!" He shoved him roughly aside. "Now, snappin' turtle," to Jim, "the Three Bars'd better git busy!"

A feint at a blow, a clever little twist of the feet, and Munson sprawled on the floor, men pressing back to give him the full force of the fall. They believed in fair play. But Jim, uncowed, was up with the nimbleness of a monkey.

"Hit away!" he cried, tauntingly. "I know 'nough to swear out a warrant 'gainst you! 'T won't be so lonesome for Jesse now breakin' stones over to Sioux Falls."

"Jim!" It was Gordon's quiet, authoritative voice once more. "I told you I wanted you." He threw his arm over the belligerent's shoulder.

"Comin', Dick. I didn't mean to blab so much," Jim answered, contritely.

They moved away. Sanderson followed them up.

"Dick Gordon," he said with cool deliberateness, "you're too damned anxious to stick your nose into other people's affairs. Learn your lesson, will you? My favorite stunt is to teach meddlers how to mind their own business,—this way."

It was not a fair blow. Gordon doubled up with the force of the punch in his stomach. In a moment all was confusion. Men drew their pistols. It looked

as if there was to be a free-for-all fight.

Langford sprang to his friend's aid, using his fists with plentiful freedom in his haste to get to him.

"Never mind me," whispered Gordon. He was leaning heavily on Jim's shoulder. His face was pale, but he smiled reassuringly. There was something very sweet about his mouth when he smiled. "Never mind me," he repeated. "Get the girls out of this—quick, Paul."

Mary and Louise had sought refuge behind the big table.

"Quick, the back door!" cried Langford, leading the way; and as the three passed out, he closed the door behind them, saying, "You are all right now. Run to the hotel. I must see how Dick is coming on."

"Do you think he is badly hurt?" asked Louise. "Can't we help?"

"I think you had best get out of this as quickly as you can. I don't believe he is knocked out, by any means, but I want to be on hand for any future events which may be called. Just fly now, both of you."

The unfair blow in the stomach had given the sympathy of most of the bystanders, for the time being at least, to Gordon. Men forgot, momentarily, their grudge against him. Understanding from the black looks that he was not in touch with the crowd, Sanderson laughed—a short snort of contempt—and slipped out of the door. Unable to resist the impulse, Jim bounded out after his enemy.

When Paul hastened around to the front of the building, the crowd was nearly all in the street. The tension was relaxed. A dazed expression prevailed—brought to life by the suddenness with which the affair had developed to such interesting proportions and the quickness with which it had flattened out to nothing. For Sanderson had disappeared, completely, mysteriously, and in all the level landscape, there was no trace of him nor sign.

“See a balloon, Jim?” asked Langford, slapping him on the shoulder with the glimmer of a smile. “Well, your red-headed friend won’t be down in a parachute—yet. Are you all right, Dick, old man?”

“Yes. Where are the girls?”

“They are all right. I took them through the back door and sent them to the hotel.”

“You kin bet on the Boss every time when it comes to petticoats,” said Jim, disconsolately.

“Why, Jim, what’s up?” asked Langford, in amused surprise.

But Jim only turned and walked away with his head in the air. The serpent was leering at him.

CHAPTER VIII—THE COUNTY ATTORNEY

“I too am going to Wind City,” said a pleasant voice at her side. “You will let me help you with your things, will you not?”

The slender girl standing before the ticket window, stuffing change into her coin purse, turned quickly.

“Why, Mr. Gordon,” she said, holding out a small hand with frank pleasure. “How very nice! Thank you, will you take my rain-coat? It has been such a bother. I would bring it right in the face of Uncle Hammond’s objections. He said it never rained out this way. But I surely have suffered a plenty for my waywardness. Don’t you think so?”

“It behooves a tenderfoot like you to sit and diligently learn of such experienced and toughened old-timers as we are, rather than flaunt your untried ideas in our faces,” responded Gordon, with a smile that transformed the keen gray eyes of this man of much labor, much lofty ambition, and much sorrow, so that they seemed for the moment strangely young, laughing, untroubled; as clear of taint of evil knowledge as the source of a stream leaping joyously into the sunlight from some mountain solitude. It was a revelation to Louise.

“I will try to be a good and diligent seeker after knowledge of this strange land of yours,” she answered, with a little laugh half of embarrassment, half of enjoyment of this play of nonsense, and leading the way to her suit-case and Mary outside. “When I make mistakes, will you tell me about them? Down East, you know, our feet travel in the ancient, prescribed circles of our forefathers, and they are apt to go somewhat uncertainly if thrust into new paths.”

And this laughing, clever girl had cried with homesickness! Well, no wonder. The worst of it was, she could never hope to be acclimated. She was not—their kind. Sooner or later she must go back to God’s country.

To her surprise, Gordon, though he laughed softly for a moment, answered rather gravely.

“If my somewhat niggardly fate should grant me that good fortune, that I may do something for you, I ask that you be not afraid to trust to my help. It would not be half-hearted—I assure you.”

She looked up at him gratefully. His shoulders, slightly stooped, betokening the grind at college and the burden-bearing in later years, instead of suggesting any inherent weakness in the man, rather inspired her with an intuitive faith in their quiet, unswerving, utter trustworthiness.

“Thank you,” she said, simply. “I am so glad they did not hurt you much that day in the court-room. We worried—Mary and I.”

“Thank you. There was not the least danger. They were merely venting their spite on me. They would not have dared more.”

There is always a crowd at the Velpen station for outgoing or incoming trains. This meeting of trains is one of the dissipations of its people—and an eminently respectable dissipation. It was early—the eastbound leaves at something past eight—yet there were many people on the platform who did not seem to be going anywhere. They were after such stray worms as always fell to the lot of the proverbial early bird. The particular worm in question that morning was the new girl court reporter, homeward bound. Many were making the excuse of mailing belated letters. Mary was standing guard over the suit-case and umbrella near the last car. She seemed strangely alone and aloof standing there, the gravity of the silent prairie a palpable atmosphere about her.

“There’s my brakeman,” said Louise, when she and Gordon had found a seat near the rear. Mary had gone and a brakeman had swung onto the last car as it glided past the platform, and came down the aisle with a grin of recognition for his “little white lamb.”

“How nice it all seems, just as if I had been gone months instead of days and was coming home again. It would be funny if I should be homesick for the range when I get to Wind City, wouldn’t it?”

“Let us pray assiduously that it may be so,” answered Gordon, with one of his rare smiles. He busied himself a moment in stowing away her belongings to the best advantage. “It gets in one’s blood,—how or when, one never knows.”

They rode in silence for a while.

“Tell me about your big fight,” said Louise, presently. The road-bed was fairly good, and they were spinning along on a down grade. He must needs bend closer to hear her.

She was good to look at, fair and sweet, and it had been weary years since women had come close to Gordon’s life. In the old college days, before this hard, disappointing, unequal fight against the dominant forces of greed, against tolerance of might overcoming right, had begun to sap his vitality, he had gone too deeply into his studies to have much time left for the gayeties and gallantries of the social side in university life. He had not been popular with women. They did not know him. Yet, though dubbed a “dig” by his fellow-collegians, the men liked him. They liked him for his trustworthiness, admired him for his rugged honesty, desired his friendship for the inspiration of his high ideals.

The memory of these friendships with men had been an ever-present source of strength and comfort to him in these later years of his busy life. Yet of late he had felt himself growing calloused and tired. The enthusiasm of his younger manhood was falling from him somewhat, and he had been but six years out of the university. But it was all so hopeless, so bitterly futile, this moral fight of one man to stay the mind-bewildering and heart-sickening ceaseless round of wheels of open crime and official chicanery. Was the river bridged? And what of the straw? His name was a joke in the cattle country, a joke to horse thief, a joke to sheriff. Its synonym was impotency among the law-abiders who were yet political cowards. What was the use? What could a man do—one man, when a fair jury was a dream, when ballots were so folded that the clerk, drawing, might know which to select in order to obtain a jury that would stand pat with the cattle rustlers? Much brain and brawn had been thrown away in the unequal struggle. Let it pass. Was there any further use?

Then a woman came to him in his dark hour. His was a stubborn and fighting blood, a blood that would never cry “enough” till it ceased to flow. Yet what a comforting thing it was that this woman, Louise, should be beside him, this woman who knew and who understood. For when she lifted those tender gray eyes and asked him of his big fight, he knew she understood. There was no need of explanation, of apology, for all the failure of all these years. A warm gratitude swept across his heart. And she was so neat and sweet and fair, unspoiled by constant contact with, and intimate knowledge of, the life of the under world; rather was she touched to a wonderful sympathy of understanding. It was good to know such a woman; it would be better to be a friend of such a woman; it would be best of all to love such a woman—if one dared.

“What shall I talk about, Miss Dale? It is all very prosaic and uninteresting, I’m afraid; shockingly primitive, glaringly new.”

“I breakfasted with a stanch friend of yours this morning,” answered Louise, somewhat irrelevantly. She had a feeling—a woman’s feeling—that this earnest, hard-working, reserved man would never blurt out things about himself with the bland self-centredness of most men. She must use all her woman’s wit to draw him out. She did not know yet that he was starved for sympathy—for understanding. She could not know yet that two affinities had drifted through space—near together. A feathery zephyr, blowing where it listed, might widen the space between to an infinity of distance so that they might never know how nearly they had once met; or it might, as its whim dictated, blow them together so that for weal or for woe they would know each the other.

“Mrs. Higgins, at the Bon Ami,” she continued, smiling. “I was so hungry when we got to Velpen, though I had eaten a tremendous breakfast at the Lazy S. But five o’clock is an unholy hour at which to eat one’s breakfast, isn’t it, and I just couldn’t help getting hungry all over again. So I persuaded Mary to stop for another cup of coffee. It is ridiculous the way I eat in your country.”

“It is a good country,” he said, soberly.

“It must be—if you can say so.”

“Because I have failed, shall I cry out that law cannot be enforced in Kemah County? Sometimes—may it be soon—there will come a man big enough to make the law triumphant. He will not be I.”

He was still smarting from his many set-backs. He had worked hard and had accomplished nothing. At the last term of court, though many cases were tried, he had not secured one conviction.

“We shall see,” said Louise, softly. Her look, straight into his eyes, was a glint of sunlight in dark places. Then she laughed.

“Mrs. Higgins said to me: ‘Jimmie Mac hain’t got the sense he was born with. His little, dried-up brain ’d rattle ’round in a mustard seed and he’s gettin’ shet o’ that little so fast it makes my head swim.’ She was telling about times when he hadn’t acted just fair to you. I am glad—from all I hear—that this was taken out of his hands.”

“I can count my friends, the real ones, on one hand, I’m afraid,” said Gordon, with a good-humored smile; “and Mrs. Higgins surely is the thumb.”

“I am glad you smiled,” said Louise. “That would have sounded so bitter if you had not.”

“I couldn’t help smiling. You—you have such a way, Miss Dale.”

It was blunt but it rang true.

“It is true, though, about my friends. If I could convict—Jesse Black, for instance,—a million friends would call me blessed. But I can’t do it alone. They will not do it; they will not help me do it; they despise me because I can’t do it, and swear at me because I try to do it—and there you have the whole situation in a nutshell, Miss Dale.”

The sun struck across her face. He reached over and lowered the blind.

“Thank you. But it is ‘vantage in’ now, is it not? You will get justice before Uncle Hammond.”

Unconsciously his shoulders straightened.

“Yes, Miss Dale, it is ‘vantage in.’ One of two things will come to pass. I shall send Jesse Black over or—” he paused. His eyes, unseeing, were fixed on the gliding landscape as it appeared in rectangular spots through the window in front of them.

“Yes. Or—” prompted Louise, softly.

“Never mind. It is of no consequence,” he said, abruptly. “No fear of Judge Dale. Juries are my Waterloo.”

“Is it, then, such a nest of cowards?” cried Louise, intense scorn in her clear voice.

“Yes,” deliberately. “Men are afraid of retaliation—those who are not actually blood-guilty, as you might say. And who can say who is and who is not? But he will be sent over this time. Paul Langford is on his trail. Give me two men like Langford and that anachronism—an honest man west of the river—Williston, and you can have the rest, sheriff and all.”

“Mr. Williston—he has been unfortunate, has he not? He is such a gentleman, and a scholar, surely.”

“Surely. He is one of the finest fellows I know. A man of the most sensitive honor. If such a thing can be, I should say he is too honest, for his own good. A man can be, you know. There is nothing in the world that cannot be overdone.”

She looked at him earnestly. His eyes did not shift. She was satisfied.

“Your work belies your words,” she said, quietly.

Dust and cinders drifted in between the slats of the closed blind. Putting her handkerchief to her lips, Louise looked at the dark streaks on it with reproach.

“Your South Dakota dirt is so—black,” she said, whimsically.

“Better black than yellow,” he retorted. “It looks cleaner, now, doesn’t it?”

“Maybe you think my home a fit dwelling place for John Chinaman,” pouted Louise.

“Yes—if that will persuade you that South Dakota is infinitely better. Are you open to conviction?”

“Never! I should die if I had to stay here.”

“You will be going back—soon?”

“Some day, sure! Soon? Maybe. Oh, I wish I could. That part of me which is like Uncle Hammond says, ‘Stay.’ But that other part of me which is like the rest of us, says, ‘What’s the use? Go back to your kind. You’re happier there. Why should you want to be different? What does it all amount to?’ I am afraid I shall be weak enough and foolish enough to go back and—stay.”

There was a stir in the forward part of the car. A man, hitherto sitting quietly by the side of an alert wiry little fellow who sat next the aisle, had attempted to bolt the car by springing over the empty seat in front of him and making a dash for the door. It was daring, but in vain. His companion, as agile as he, had seized him and forced him again into his place before the rest of the passengers fully understood that the attempt had really been made.

“Is he crazy? Are they taking him to Yankton?” asked Louise, the pretty color all gone from her face. “Did he think to jump off the train?”

“That’s John Yellow Wolf, a young half-breed. He’s wanted up in the Hills for cattle-rustling—United States Court case. That’s Johnson with him, Deputy United States Marshal.”

“Poor fellow,” said Louise, pityingly.

“Don’t waste your sympathy on such as he. They are degenerates—many of these half-breeds. They will swear to anything. They inherit all the evils of

the two races. Good never mixes. Yellow Wolf would swear himself into everlasting torment for a pint of whiskey. You see my cause of complaint? But never think, Miss Dale, that these poor chaps of half-breeds, who are hardly responsible, are the only ones who are willing to swear to damnable lies." There was a tang of bitterness in his voice. "Perjury, Miss Dale, perjury through fear or bribery or self-interest, God knows what, it is there I must break, I suppose, until the day of judgment, unless—I run away."

Louise, through all the working of his smart and sting, felt the quiet reserve strength of this man beside her, and, with a quick rush of longing to do her part, her woman's part of comforting and healing, she put her hand, small, ungloved, on his rough coat sleeve.

"Is that what you meant a while ago? But you don't mean it, do you? It is bitter and you do not mean it. Tell me that you do not mean it, Mr. Gordon, please," she said, impulsively.

Smothering a wild impulse to keep the hand where it had lain such a brief, palpitating while, Gordon remained silent. God only knows what human longing he crushed down, what intense discouragement, what sick desire to lay down his thankless task and flee to the uttermost parts of the world to be away from the crying need he yet could not still. Then he answered simply, "I did not mean it, Miss Dale."

And then there did not seem to be anything to say between them for a long while. The half-breed had settled down with stolid indifference. People had resumed their newspapers and magazines and day dreams after the fleeting excitement. It was very warm. Louise tried to create a little breeze by flicking her somewhat begrimed handkerchief in front of her face. Gordon took a newspaper from his pocket, folded it and fanned her gently. He was not used to the little graces of life, perhaps, but he did this well. An honest man and a kindly never goes far wrong in any direction.

"You must not think, Miss Dale," he said, seriously, "that it is all bad up here. I am only selfish. I have been harping on my own little corner of wickedness all the while. It is a good land. It will be better before long."

"When?" asked Louise.

“When we convict Jesse Black and when our Indian neighbors get over their mania for divorce,” he answered, laughing softly.

Louise laughed merrily and so the journey ended as it had begun, with a laugh and a jest.

In the Judge’s runabout, Louise held out her hand.

“I’m almost homesick,” she cried, smiling.

CHAPTER IX—THE ATTACK ON THE LAZY S

It was late. The August night was cool and sweet after a weary day of intense heat. The door was thrown wide open. It was good to feel the night air creeping into the stifling room. There was no light within; and without, nothing but the brilliant stars in the quiet, brooding sky. Williston was sitting just within the doorway. Mary, her hands clasped idly around her knees, sat on the doorstep, thoughtfully staring out into the still darkness. There was a stir.

“Bedtime, little girl,” said Williston.

“Just a minute more, daddy. Must we have a light? Think how the mosquitoes will swarm. Let’s go to bed in the dark.”

“We will shut the door and next Summer, little girl, you shall have your screens. I promise you that, always providing, of course, Jesse Black leaves us alone.”

Had it not been so dark, Mary could have seen the wistful smile on the thin, scholarly face. But though she could not see it, she knew it was there. There had been fairer hopes and more generous promises in the past few years. They had all gone the dreary way of impotent striving, of bitter disappointment. There was little need of light for Mary to read her father’s thoughts.

“Sure, daddy,” she answered, cheerily. “And I’ll see that you don’t forget. As for Jesse Black, he wouldn’t dare with the Three Bars on his trail. Well, if you must have a light, you must,” rising and stretching her firm-fleshed young arms far over her head. “You can’t forget you were born in civilization, can you, daddy? I am sure I could be your man in the dark, if you’d let me, and I always turn your nightshirt right side out before hanging it on your bedpost, and your sheet and spread are turned down, and water right at hand. You funny, funny little father, who can’t go to bed in the

dark.” She was rummaging around a shelf in search of matches. “Now, I have forgotten long since that I wasn’t born on the plains. It wouldn’t hurt me if I had misplaced my nightdress. I’ve done it,” with a gay little laugh. He must be cheered up at all costs, this buffeted and disappointed but fine-minded, high-strung, and lovable father of hers. “And I haven’t taken my hair down nights since—oh, since months ago, till—oh, well—so you see it’s easy enough for me to go to bed in the dark.”

Her hand touched the match box at last. A light flared out.

“Shut the door quick, dad,” she said, lighting the lamp on the table. “The skeeters’ll eat us alive.”

Williston stepped to the door. Just a moment he stood there in the doorway, the light streaming out into the night, tall, thoughtful, no weakling in spite of many failures and many mistakes. A fair mark he made, outlined against the brightly lighted room. It was quiet. Not even a coyote shrilled. And while he stood there looking up at the calm stars, a sudden sharp report rang out and the sacred peace of God, written in the serenity of still summer nights, was desecrated. Hissing and ominous, the bullet sang past Williston’s head, perilously near, and lodged in the opposite wall. At that moment, the light was blown out. A great presence of mind had come to Mary in the time of imminent danger.

“Good, my dear!” cried Williston, in low tones. Quick as a flash, the door was slammed shut and bolted just as a second shot fell foul of it.

“Oh, my father!” cried Mary, groping her way to his side.

“Hush, my dear! They missed me clean. Don’t lose your nerve, Mary. They won’t find it so easy after all.”

There had been no third shot. A profound silence followed the second report. There was no sound of horse or man. Whence, then, the shots? One man, maybe, creeping up like some foul beast of prey to strike in the dark. Was he still lurking near, abiding another opportunity?

It took but a moment for Williston to have the rifles cocked and ready. Mary took her own from him with a hand that trembled ever so slightly.

“What will you do, father?” she asked, holding her rifle lovingly and thanking God in a swift, unformed thought for every rattlesnake or other noxious creature whose life she had put out while doing her man’s work of riding the range,—work which had given her not only a man’s courage but a man’s skill as well.

“Take the back window, girl,” he answered, briefly. “I’ll take the front. Stand to the side. Get used to the starlight and shoot every shadow you see, especially if it moves. Keep track of your shots, don’t waste an effort and don’t let anything creep up on you. They mustn’t get near enough to fire the house.”

His voice was sharp and incisive. The drifting habit had fallen from him, and he was his own master again.

Several heavy minutes dragged away without movement, without sound from without. The ticking of the clock pressed on strained ears like ghastly bell-tolling. Their eyes became accustomed to the darkness and, by the dim starlight, they were able to distinguish the outlines of the cattle-sheds, still, empty, black. Nothing moved out there.

“I think they’re frightened off,” said Mary at last, breathing more freely. “They were probably just one, or they’d not have left. He knew he missed you, or he would not have fired again. Do you think it was Jesse?”

“Jesse would not have missed,” he said, grimly.

At that moment, a new sound broke the stillness, the whinny of a horse. Reinforcement had approached within the shadow of the cattle-sheds. Something moved out there at last.

“Daddy!” called Mary, in a choked whisper. “Come here—they are down at the sheds.”

Williston stepped to the back window quickly.

“Change places,” he said, briefly.

“Daddy!”

“Yes?”

“Keep up your nerve,” she breathed between great heart-pumps.

“Surely! Do you the same, little comrade, and shoot to kill.”

There was a savage note in his last words. For himself, it did not matter so much, but Mary—he pinned no false faith in any thought of possible chivalrous intent on the part of the raiders to exempt his daughter from the grim fate that awaited him. He had to deal with a desperate man; there would be no clemency in this desperate man’s retaliation.

To his quickened hearing came the sound of stealthy creeping. Something moved directly in front of him, but some distance away. “Shoot every shadow you see, especially if it moves,” were the fighting orders, and his was the third shot of that night.

“Hell! I’ve got it in the leg!” cried a rough voice full of intense anger and pain, and there were sounds of a precipitate retreat.

Out under protection of the long row of low-built sheds, other orders were being tersely given and silently received.

“Now, men, I’ll shoot the first man of you who blubbers when he’s hit. D’ye hear? There have been breaks enough in this affair already. I don’t intend for that petticoat man and his pulin’ petticoat kid in there to get any satisfaction out o’ this at all. Hear me?”

There was no response. None was needed.

Some shots found harmless lodgment in the outer walls of the shanty. They were the result of an unavailing attempt to pick the window whence Williston’s shot had come. Mary could not keep back a little womanish gasp of nervous dread.

“Grip your nerve, Mary,” said her father. “That’s nothing—shooting from down there. Just lie low and they can do nothing. Only watch, child, watch! They must not creep up on us. Oh, for a moon!”

She did grip her nerve, and her hand ceased its trembling. In the darkness, her eyes were big and solemn. Sometime, to-morrow, the reaction would come, but to-night—

“Yes, father, keep up your own nerve,” she said, in a brave little voice that made the man catch his breath in a sob.

Again the heavy minutes dragged away. At each of the two windows crouched a tense figure, brain alert, eyes in iron control. It was a frightful strain, this waiting game. Could one be sure nothing had escaped one’s vigilance? Starlight was deceptive, and one’s eyes must needs shift to keep the mastery over their little horizon. It might well be that some one of those ghostly and hidden sentinels patrolling the lonely homestead had wormed himself past staring eyeballs, crawling, crawling, crawling; it might well be that at any moment a sudden light flaring up from some corner would tell the tale of the end.

Now and then could be heard the soft thud of a hoof as some one rode to execute an order. Occasionally, something moved out by the sheds. Such movement, if discernible from the house, was sure to be followed on the instant by a quick sharp remonstrance from Williston’s rifle. How long could it last? Would his nerve wear away with the night? Could he keep his will dominant? If so, he must drag his mind resolutely away from that nerve-racking, still, and unseen creeping, creeping, creeping, nearer and nearer. How the stillness weighed upon him, and still his mind dwelt upon that sinuous, flat-bellied creeping, crawling, worming! God, it was awful! He fought it desperately. He knew he was lost if he could not stop thinking about it. The sweat came out in big beads on his forehead, on his body; he prickled with the heat of the effort. Then it left him—the awful horror—left him curiously cold, but steady of nerve and with a will of iron and eyes, cat’s eyes, for their seeing in the dark. Now that he was calm once more, he let himself weigh the chances of succor. They were pitifully remote. The Lazy S was situated in a lonely stretch of prairie land far from any direct trail. True, it lay between Kemah, the county seat, and the Three Bars ranch,

but it was a good half mile from the straight route. Even so, it was a late hour for any one to be passing by. It was not a travelled trail except for the boys of the Three Bars, and they were known to be great home-stayers and little given to spreeing. As for the rustlers, if rustlers they were, they had no fear of interruption by the officers of the law, who held their places by virtue of the insolent and arbitrary will of Jesse Black and his brotherhood, and were now carousing in Kemah by virtue of the hush-money put up by this same Secret Tribunal.

Yet now that Williston's head was clear, he realized, with strengthening confidence in the impregnability of their position, that two trusty rifles behind barred doors are not so bad a defence after all, especially when one took into consideration that, with the exception of the sheds overlooking which he had chosen his position as the point of greatest menace, and a small clump of half-grown cottonwoods by the spring which Mary commanded from her window, there were no hiding places to be utilized for this Indian mode of warfare. He could not know how many desperadoes there were, but he reasoned well when he confided in his belief that they would not readily trust themselves to the too dangerous odds of the open space between. An open attack was not probable. Vigilance, then, a never-lapsing vigilance that they be not surprised, was the price of their salvation. What human power could do, he would do, and trust Mary to do the same. She was a good girl and true. She would do well. She had not yet shot. Surely, they would make use of that good vantage ground of the cottonwood clump. Probably they were even now making a detour to reach it.

"Watch, child, watch!" he said again, without in the least shifting his tense position.

"Surely!" responded Mary, quite steadily.

Now was her time come. Dark, sinister figures flitted from tree to tree. At first, she could not be sure, it was so heartlessly dark, but there was movement—it was different from that terrible blank quiet which she had hitherto been gazing upon till her eyes burned and pricked as with needle points, and visionary things swam before them. She winked rapidly to dispel the unreal and floating things, opened wide her longlashed lids, fixed

them, and—fired. Then Williston knew that his “little girl,” his one ewe lamb, all that was left to him of a full and gracious past, must go through what he had gone through, all that nameless horror and expectant dread, and his heart cried out at the unholy injustice of it all. He dared not go to her, dared not desert his post for an instant. If one got within the shadow of the walls, all was lost.

Mary’s challenge was met with a rather hot return fire. It was probably given to inspire the besieged with a due respect for the attackers’ numbers. Bullets pattered around the outside walls like hailstones, one even whizzed through the window perilously near the girl’s intent young face.

Silence came back to the night. There was no more movement. Yet down there at the spring, something, maybe one of those dark, gaunt cottonwoods, held death—death for her and death for her father. A stream of icy coldness struck across her heart. She found herself calculating in deliberation which tree it was that held this thing—death. The biggest one, shadowing the spring, helping to keep the pool sweet and cool where Paul Langford had galloped his horse that day when—ah! if Paul Langford would only come now!

A wild, girlish hope flashed up in her heart. Langford would come—had he not sworn it to her father? Had he not given his hand as a pledge? It means something to shake hands in the cattle country. He was big and brave and true. When he came, these awful, creeping terrors would disperse—grim shadows that must steal away when morning comes. When he came, she could put her rifle in his big, confident hands, lie down on the floor and—cry. She wanted to cry—oh, how she did want to cry! If Paul Langford would only come, she could cry. Cold reason came back to her aid and dissipated the weak and womanish longing to give way to tears. There was a pathetic droop to her mouth, a long, quivering, sobbing sigh, and she buried her woman’s weakness right deeply and stamped upon it. How utterly wild and foolish her brief hope had been! Langford and all his men were sound in sleep long ago. How could he know? Were the ruffians out there men to tell? Ah, no! There was no one to know. It would all happen in the dark,—in awful loneliness, and there would be no one to know until it was all over—to-morrow, maybe, or next week, who could tell? They were

off the main trail, few people ever sought them out. There would be no one to know.

As her strained sight stared out into the darkness, it was borne to her intuitively, it may be, that something was creeping up on her. She could see nothing and yet knew it to be true. Every fibre of her being tingled with the certainty of it. It was coming closer and closer. She felt it like an actual presence. Her eyes shifted here, there—swept her half-circle searchingly—stared and stared. Still nothing moved. And yet the nearness of some unseen thing grew more and more palpable. If she could not see it soon, she must scream aloud. She breathed in little quickened gasps. Soon, very soon now, she would scream. Ah! A shadow down by the biggest cottonwood! It boldly sought a nearer and a smaller trunk. Another slinking shadow glided behind the vacated position. It was a ghastly presentation of “Pussy-wants-a-corner” played in nightmare. But at last it was something tangible,—something to do away with that frightful sensation of that crawling, creeping, twisting, worming, insinuating—nearer and nearer, so near now that it beat upon her—unseen presence. She pressed her finger to the trigger to shoot at the tangible shadows and dispel that enveloping, choking, blanket horror, when God knows what stayed the muscular action of her fingers. Call it instinct, what you will, her hand was stayed even before her physical eye was caught and held by a blot darker still than the night, over to her right, farthest from the spring. It lay perfectly still. It came to her, the wily plan, with startling clearness. The blot was waiting for her to fire futilely at grinning shadows among the trees and, under cover of her engrossed attention, insinuate its treacherous body the farther forward. Then the play would go merrily on till—the end. She turned the barrel of her rifle slowly and deliberately away from the moving shapes among the cottonwood clump, sighted truly the motionless blur to her right, and fired, once, twice, three times.

The completeness of the surprise seemed to inspire the attackers with a hellish fury. They returned the fire rapidly and at will, remaining under cover the while. Shrinking low at her window, her eyes glued on the still black mass out yonder, Mary wondered if it were dead. She prayed passionately that it might be, and yet—it is a dreadful thing to kill. Once

more the wild firing ceased. Mary responded once or twice just to keep the deadly chill from returning—if that were possible.

Under cover of the desperadoes' fire, at obtuse angles with the first attempt, a second blot began its tortuous twisting. It accomplished a space, stopped; pulled itself its length, stopped, waited, watchful eyes on the window whence came Mary's scattered firing still into the clump of trees. They had drawn her close regard at last. Would it hold out? Forward again, crawling flat on the ground, ever advancing, slowly, very slowly, but also very surely, creeping, creeping, creeping, now stopping, now creeping, stopping, creeping.

All at once the gun play began again, sharp, quick, from the spring, from the sheds. The blot lay perfectly still for a moment—waiting, watching. The plucky little rifle was silent. But so it had been before. Quarter length, half, whole length, cautiously with frequent stops, eyes so steely, so intent—could it be possible that this gun was really silenced—out of the race? It would not do to trust too much. The blot waited, scarcely breathed, crept forward again.

A sudden bright light flashed up through the darkness under the unprotected wall to Mary's left. Almost simultaneously a kindred light sprang into being from the region of the cattle-sheds. The men down there had been waiting for this signal. It meant that for some reason the second effort to creep up unobserved to fire the house had been successful. The flare grew and spread. It became a glare.

When the whole cabin seemed to be in flames save the door,—the dry, rude boarding had caught and burned like paper,—when the heat had become unbearable, Williston held out his hand to his daughter, silently. As silently she put her hand, her left hand, in his; nor did Williston notice that it was her left, nor how limply her right arm hung to her side. In the glare, her face shone colorless, but her dark eyes were stars. Her head was held high. With firm step, Williston advanced to the door. Deliberately he unbarred it, as deliberately threw it open, and stepped over the threshold. They were covered on the instant by four rifles.

“Drop your guns!” called the chief, roughly. Then the desperadoes moved up.

“I take it that I am the one wanted,” said Williston.

His voice was calm and scholarly once more. In the uselessness of further struggle, it had lost the sharp incisiveness that had been the call to action. If one must die, it is good to die after a brave fight. One is never a coward then. Williston’s face wore an almost exalted look.

“My daughter is free to go?” he asked, his first words having met with no response. Better, much better, for the sake of a man like Williston to die in the dignity of silence, but for Mary’s sake he parleyed.

“I guess not!” responded the leader, curtly. “If a pulin’ idiot hadn’t missed the broadside of you—as pretty a mark this side heaven as man could want,—then we might talk about the girl. She’s showed up too damned much like a man now to let her loose.”

His big, shuffling form lounged in his saddle. He raised his rifle with every appearance of lazy indifference. They were to be shot down where they stood, now, right on the threshold of their burning homestead.

Williston bowed his head to the inevitable for a moment; then raised it proudly to meet the inevitable.

A rifle shot rang out startlingly clear. At the very moment the leader’s hawk’s eye had swept the sight, his rifle arm had twitched uncertainly, then fallen nerveless to his side, while his bullet, playing a faltering and discordant second to the first true shot, tore up the ground in front of him and swerved harmlessly to one side. Instantly the wildest confusion reigned,—shouts, curses, the plunging of horses mingled with the sharp crack of fire-arms. The shooting was wild. The surprise was too complete for the outlaws to recover at once. They had heard no sound of approaching hoofbeats. The roaring flames licking up the dry lumber, and rendering the surrounding darkness the blacker for the contrast, had been of saving grace to the besiegers after all.

In a moment, the desperadoes rallied. They closed in and imposed a cursing, malignant wall between the rescuers and the blazing door of the shanty and what stood and lay before it. Mary had sunk down at her father's feet, and had no cognizance of the fierce though brief conflict that ensued.

Presently, she was dragged roughly to her feet. A big, muscular arm had heavy grasp of her.

"Make sure of the girl, Red!" commanded a sharp voice near, and it was gone out into the night.

Afterward, she heard—oh, many, many times in the night watches—the eerie galloping of horses' hoofs, growing fainter and ever fainter, heard it above the medley of trampling horses and yelling men, and knew it for what it meant; but to-night—this evil night—she gave but one quick, bewildered glance into the sinister face above her and in a soft, shuddering voice breathed, "Please don't," and fainted.

CHAPTER X—IN WHICH THE X Y Z FIGURES SOMEWHAT MYSTERIOUSLY

Jim Munson, riding his pony over the home trail at a slow walk, drooped sleepily in his saddle. It was not a weirdly late bedtime, half-past ten, maybe, but he would have been sleeping soundly a good hour or more had this not been his night to go to town—if he chose. He had chosen. He would not have missed his chance for a good deal. But his dissipation had been light. The Boss never tolerated much along that line. He had drunk with some congenial cronies from the Circle E outfit complimentary to the future well-being and increasing wealth of this already well-known and flourishing cattle ranch. Of course he must drink a return compliment to the same rose-colored prosperity for the Three Bars, which he did and sighed for more. That made two, and two were the limit, and here was the limit overreached already; for there had always to be a last little comforter to keep him from nodding in his saddle.

Before the time arrived for that, there were some errands to be executed for the boys on duty at the home ranch. These necessitated a call at the post-office, the purchase of several slabs of plug tobacco, some corn-cob pipes, and some writing material for Kin Lathrop. He must not forget the baking powder for the cook. Woe to him, Munson, if there were no biscuits for breakfast. Meanwhile he must not neglect to gather what little news was going. That would be a crime as heinous as the forgetting of the baking powder. But there didn't seem to be anything doing to-night. Only the sheriff was playing again behind the curtain. Couldn't fool him. Damned hypocrite!

The errands accomplished to his satisfaction and nothing forgotten, as frequent and close inspection of the list written out by the Scribe proved, his comforter swallowed, lingeringly, and regretfully, he was now riding homeward, drowsy but vastly contented with the world in general and particularly with his own lot therein. It was a sleepy night, cool and soft and still. He could walk his horse all the way if he wanted to. There was no

haste. The boys would all be in bed. They would not even wait up for the mail, knowing his, Jim's, innate aversion to hurry. Had he not been so drowsy, he would like to have sung a bit; but it required a little too much effort. He would just plod along.

Must all be in bed at Williston's—no light anywhere. A little short of where the Williston branch left the main trail, he half paused. If it were not so late, he would ride up and give them a hail. But of course they were asleep. Everything seemed still and dark about the premises. He would just plod along.

"Hello, there! Where'd you come from?" he cried of a sudden, and before he had had time to carry his resolve into action.

A man on horseback had drawn rein directly in front of him. Jim blinked with the suddenness of the shock.

"Might ask you the same question," responded the other with an easy laugh. "I'm for town to see the doctor about my little girl. Been puny for a week."

"Oh! Where you from?" asked Jim, with the courteous interest of his kind.

"New man on the X Y Z," answered the other, lightly. "Must be gettin' on. Worried about my baby girl."

He touched spurs to his horse and was off with a friendly "So long," over his shoulder.

Jim rode on thoughtfully.

"Now don't it beat the devil," he was thinking, "how that there cow-puncher struck this trail comin' from the X Y Z—with the X Y Z clean t'other side o' town? Yep, it beats the devil, for a fac'. He must be a ridin' for his health. It beats the devil." This last was long drawn out. He rode a little farther. "It beats the devil," he thought again,—the wonder of it was waking him up,—"how that blamed fool could a' struck this here trail a goin' for Doc."

At the branch road he stopped irresolutely.

“It beats the devil—for a fac’.” He looked helplessly over his shoulder. The man was beyond sight and sound. “If he hadn’t said he was goin’ for Doc and belonged to the X Y Z,” he pondered. He was swearing because he could not think of a way out of the maze of contradiction. He was so seldom at a loss, this braggadocio Jim. “Well, I reckon I won’t get any he’p a moonin’ here less’n I wait here till that son-of-a-gun comes back from seein’ Doc. Lord, I’d have to camp out all night. Guess I’ll be a movin’ on. But I’m plumb a-foot for an idee as to how that idjit got here from the X Y Z.”

He shrugged his shoulders and picked up the fallen bridle-rein. He kept on straight ahead, and it was well for him that he did so. It was not the last of the affair. The old, prosaic trail seemed fairly bristling with ghostly visitants that night. He had gone but a scant quarter-mile when he met with a second horseman, and this time he would have sworn on oath that the man had not been on the forward trail as long as he should have been to be seen in the starlight. Jim was not dozing now and he knew what he was about. The fellow struck the trail from across country and from the direction of Williston’s home cattle sheds.

“The devil!” he muttered, and this time he was in deep and terrible earnest.

“Hullo!” the fellow accosted him, genially.

“Too damned pleasant—the whole bunch of em,” found quick lodgment in Jim’s active brain. Aloud, he responded with answering good-nature, “Hullo!”

“Where ye goin’?” asked the other, as if in no particular haste to part company. If he had met with a surprise, he carried it off well.

“Home. Been to town.” Jim was on tenter hooks to be off.

“Belong to the Three Bars, don’t you?”

“Yep.”

“Thought so. Well, good luck to you.”

“Say,” said Jim, suddenly, “you don’t happen to hang out at the X Y Z, do you?”

“Naw! What d’ye suppose I’d be doing here this time of night if I did?” There was scorn in his voice and suspicion, too. “Why?” he asked.

“Oh, nothin’. Thought I knew your build, but I guess I was mistaken. So long.”

He had an itching desire to ask if this night traveller, too, was in quest of the doctor, but caution held him silent. He had need to proceed warily. He rode briskly along until he judged he had gone far enough to allay suspicion, then he halted suddenly. Very wide-awake was Jim now. His hand rested unconsciously on the Colt’s 45, protruding from his loosely hanging belt. His impulse was to ride boldly back and up to Williston’s door, and thus satisfy himself as to what was doing so mysteriously. There was not a cowardly drop in Jim’s circulation. But if foul play was abroad for Williston that night, he, Jim, of course, was spotted and would never be permitted to reach the house. It would mean a useless sacrifice. Now, he needed to be alive. There was a crying need for his good and active service. Afterwards—well, it was all in the day’s work. It wouldn’t so much matter then. He touched spurs lightly, bent his head against the friction of the air and urged his horse to the maddest, wildest race he had ever run since that day long ago, to be forgotten by neither, when he had been broken to his master’s will.

Paul Langford dropped one shoe nervelessly to the wolfskin in front of his bed. Though his bachelor room was plain in most respects, plain for the better convenience of the bachelor hands that had it to put to rights every day,—with the exception of a cook, Langford kept no servant,—the wolfskin here, an Indian blanket thrown over a stiff chair by the table, a Japanese screen concealing the ugly little sheet-iron stove that stood over in its corner all the year round, gave evidence that his tastes were really luxurious. An oil lamp was burning dimly on the table. The soot of many burnings adhered to the chimney’s inner side.

“One would know it was Jim’s week by looking at that chimney,” muttered the Boss, eyeing the offending chimney discontentedly as he dropped the other shoe. “He seems to have an inborn aversion to cleaning chimneys. It must be a birthmark, or maybe he was too anxious to get to town to-night. I see I’ll have to discipline Jim. I have to stop and think even now, sometimes, who’s boss of this shebang, he or I. Sometimes I’m inclined to the opinion that he is. Come to think of it, though,” whimsically, “I lean to a vague misgiving that I didn’t touch that low-down chimney myself last week. We’re kind of an ornery set, I’m thinking, every mother’s son of us—and I’m the worst of the lot. Sometimes I wonder if it wouldn’t be better for the bunch of us, if one of the boys were to marry and bring his girl to the Three Bars. But I’ll be hanged if I know which one I’d care to give up to the feminine gender. Besides, she’d be bossy—they all are—and she’d wear blue calico wrappers in the morning—they all do.”

He began pacing the floor in his stocking feet.

“Wish I could get that blamed little girl of Williston’s out of my head to-night. Positively red-headed. Well, call it auburn for the sake of politeness. What’s the difference? She’s a winner, though. Wonder why I didn’t know about her before? Wonder if Dick’s in love with her? Shouldn’t wonder. He’s plumb daffy on the subject of the old man. Never thought of that before. Or maybe it’s Jim. No, she’s not his kind.” He stopped for a moment at the open window and looked out into the still, starry night “Guess I’ll have to let the Scribe commit matrimony, if he’s ‘willin’.” He’s the only one of the bunch—fit.”

The sound of galloping hoof-beats on the hard road below came up to him as he stood at the window. A solitary horseman was coming that way and he was putting his horse to the limit, too.

“Who the—deuce,” began Langford. “It’s Jim’s cow pony as sure as I’m a sinner! What brings him home at that pace, I wonder? Is he drunk?”

He peered out indifferently. The hoof-beats rang nearer and nearer, clattered through the stable yards and, before they ceased, two or three revolver shots rang out in rapid succession. Jim had fired into the air to arouse the house.

Springing from his reeking bronco, he ran quickly to the stable and threw wide the door. Here the Boss, the first to gain the outside because already dressed, found him hastily saddling a fresh mount. Langford asked no question. That would come later. He stepped silently to Sade's stall.

In an incredibly short space of time the rest of the boys came leaping out of the ranchhouse, slamming the door behind them. To be up and doing was the meat they fed upon. In less than ten minutes they were all mounted and ready, five of them, silent, full to the brim of reckless hardihood, prime for any adventure that would serve to break the monotony of their lives. More than that, every fibre of their being, when touched, would respond, a tuneful, sounding string of loyalty to the traditions of the Three Bars and to its young master. Each was fully armed. They asked no question. Yet there could be no doubt of a surprise when the time came for action. They were always prepared, these boys of the most popular ranch outfit west of the river. Right in the face of this popularity, perhaps because of it, they were a bit overbearing, these boys, and held fellowship with any outside the Three Bars a thing not to be lightly entered into. It was a fine thing to work for the Boss, and out of the content accruing therefrom sprang a conservatism like that of the proudest aristocrat of the land.

Langford took the trail first. Jim had said but the one word, "Williston." It was enough. Nothing was to be heard but the rapid though regular pound of hoof-beats on the level trail. It is a silent country, the cow country, and its gravity begets gravity.

Langford, riding slightly in advance, was having a bad time with himself. The keenest self-reproach was stabbing him like a physical pain. His honor—his good honor, that he held so high and stainless—was his word not given by it that the Willistons might count on his sure protection? What had he done to merit this proud boast? Knowing that Jesse Black was once more at liberty, fully realizing of what vast import to the State would be Williston's testimony when the rustlers should be brought to trial, he had sat stupidly back and done nothing. And he had promised. Would Williston have had the courage without that promise? Why were not some of his cowboys even now sleeping with an eye upon that little claim shack where lived that scholar-man who was not fit for the rough life of the plains,

maybe, but who had been brave enough and high-minded enough to lay his all on the white altar of telling what he knew for right's sake. And the girl—

“God! The girl!” he cried aloud.

“What did you say, Boss?” asked Jim, pounding alongside.

“Nothing!” said Langford, curtly.

He spurred his mare savagely. In the shock of the surprise, and the sting that his neglected word brought him, he had forgotten the girl—Williston's “little girl” with the grave eyes—the girl who was not ten but twenty and more—the girl who had waited for him, whom he had sent on her long way alone, joyously, as one free of a duty that promised to be irksome—the girl who had brought the blood to his face when, ashamed, he had galloped off to the spring—the girl who had closed her door when a man's curious eyes had roved that way. How could he forget?

The little cavalcade swept on with increased speed, following the lead of the master. Soon the sound of shooting was borne to them distinctly through the quiet night.

“Thank God, boys!” cried Langford, digging in his spurs, once more. “They are not surprised! Listen! God! What a plucky fight! If they can only hold out!”

At that moment a tiny tongue of flame leaped up away to the front of them, gleaming in the darkness like a beacon light. Now there were two—they grew, spread, leaped heavenward in mad revel. Langford's heart sank like lead. He groaned in an exceeding bitterness of spirit. The worst had happened. Would they be in time? These claim shanties burn like paper. And the girl! He doubted not that she had sustained her share of the good fight. She had fought like a man, she must die like a man,—would be the outlaw's reasoning. He believed she would die like a man—if that meant bravely,—but something clutched at his heart-strings with the thought. Her big, solemn eyes came back to him now as they had looked when she had lifted them to him gravely as he sat his horse and she had said she had waited for him. Was she waiting now?

The boys rallied to the new impetus gloriously. They knew now what it meant and their hardy hearts thrilled to the excitement of it, and the danger. They swept from the main trail into the dimmer one leading to Williston's, without diminution of speed. Presently, the Boss drew rein with a suddenness that would have played havoc with the equilibrium of less seasoned horsemen than cowboys. They followed with the precision and accord of trained cavalymen. Now and then could be seen a black, sinister figure patrolling the burning homestead, but hugging closely the outer skirt of darkness, waiting for the doomed door to open.

"Boys!" began Langford. But he never gave the intended command to charge at once with wild shouting and shooting to frighten away the marauders and give warning to the besieged that rescue was at hand. For at that moment the door opened, and Williston and his daughter stepped out in full view of raider and rescuer. Would there be parley? A man, slouching in his saddle, rode up into the circle of lurid light. Was it Jesse Black? There was something hauntingly familiar about the droop of the shoulders. That was all; hardly enough to hang a man.

Langford raised his rifle quickly. His nerves were perfectly steady. His sight was never truer. His bullet went straight to the rifle arm of the outlaw; with a ringing shout he rallied his comrades, spurred his pony forward, and the little party charged the astounded raiders with a fury of shots that made each rustler stand well to his own support, leaving the Willistons, for the time being, free from their attention.

The desperadoes were on the run. They cared to take no risk of identification. It was not easy to determine how many there were. There seemed a half-dozen or more, but probably four or five at the most would tell their number.

The flames were sinking. Williston had disappeared. The boys scattered in wild pursuit. Wheeling his horse, Langford was in time to see a big, muscular fellow swing a girlish form to the saddle in front of him. Quick as a flash he spurred forward, lifted his heavy Colt's revolver high over his head and brought it down on the fellow's skull with a force that knocked him senseless without time for a sigh or moan. As his arms fell lax and he

toppled in his saddle, Langford caught the girl and swung her free of entanglement.

“Poor little girl,” he breathed over her as her white face dropped with unconscious pathos against his big shoulder. “Poor little girl—I’m sorry—I didn’t mean to—honest—I’m sorry.” He chafed her hands gently. “And I don’t know where your father is, either. Are you hurt anywhere, or have you only fainted? God knows I don’t wonder. It was hellish. Why, child, child, your arm! It is broken! Oh, little girl, I didn’t mean to—honest—honest. I’m sorry.”

Jim rode up panting, eyes blood-shot.

“We can’t find him, Boss. They’ve carried him off, dead or alive.”

“Is it so, Jim? Are you sure? How far did you follow?”

“We must have followed the wrong lead. If any one was ridin’ double, it wasn’t the ones we was after, that’s one thing sure. The blamed hoss thieves pulled clean away from us. Our hosses were plumb winded anyway. And—there’s a deader out there, Boss,” lowering his voice; “I found him as I came back.”

“That explains why no one was riding double,” said Langford, thoughtfully.

“How’s the gal, Boss?”

“I don’t know, Jim. I—don’t know what to do now.”

His eyes were full of trouble.

“Ain’t no use cryin’ over spilt milk and that’s a fac’. ’Bout as sensible as a tryin’ to pick it up after it is spilt. We won’t find Williston this here night, that’s one thing sure. So we’ll just tote the little gal home to the Three Bars with us.”

The boys were returning, silent, gloomy, disconsolate. They eyed the Boss tentatively. Would they receive praise or censure? They had worked hard.

“You’re all right, boys,” said Langford, smiling away their gloom. “But about the girl. There is no woman at the Three Bars, you know—”

“So you’d leave her out all night to the dew and the coyotes and the hoss thieves, would you,” interrupted Jim, with a fine sarcasm, “jest because there ain’t no growed-up woman at the Three Bars? What d’ye think Williston’s little gal’d care for style? She ain’t afraid o’ us ol’ grizzled fellers. I hope to the Lord there won’t never be no growed-up woman at the Three Bars,—yep, that’s what I hope. I think that mouse-haired gal reporter’d be just tumble fussy, and I think she’s a goin’ to marry a down Easterner chap, anyway.”

“Just pick up that fellow, will you, boys, and strap him to his horse, and we’ll take him along,” said Langford. “I don’t believe he’s dead.”

“What fellow?” asked the Scribe, peering casually about.

Langford had unconsciously ridden forward a bit to meet the boys as they had clattered up shamefacedly. Now he turned.

“Why, that fellow over there. I knocked him out.”

He rode back slowly. There was no man there, nor the trace of a man. They stared at each other a moment, silently. Then Langford spoke.

“No, I am not going to leave Williston’s little girl out in the dew,” he said, with an inscrutable smile. “While some of you ride in to get some one to see about that body out there and bring out the doctor, I’ll take her over to White’s for to-night, anyway. Mrs. White will care for her. Then perhaps we will send for the ‘gal reporter,’ Jim.”

CHAPTER XI—"YOU ARE—THE BOSS"

She held out her left hand with a sad little smile. "It is good of you to come so soon," she said, simply.

She had begged so earnestly to sit up that Mrs. White had improvised an invalid's chair out of a huge old rocker and a cracker box. It did very well. Then she had partially clothed the girl in a skimpy wrapper of the sort Langford abominated, throwing a man's silk handkerchief where the wrapper failed to meet, and around the injured arm. Mrs. White had then recalled her husband from the stables where he was on the point of mounting to join the relief party that was to set off in search of Williston at ten o'clock. The starting point unanimously agreed upon was to be the pitiful remnants of Williston's home. Men shook their heads dubiously whenever the question of a possible leading trail was broached. The soil was hard and dry from an almost rainless July and August. The fugitives might strike across country anywhere with meagre chances of their trail being traced by any.

Mrs. White and her husband, kindly souls both, lifted the girl as gently as might be from the bed to the rudely constructed invalid's chair by the sitting-room window. Then they had left her—the woman to putter around her kitchen, the man to make good his appointment. But the exertion had been too much for Mary. She had counted on strength that she did not possess. Where had she lost it all? she wondered, lacking comprehension of her exceeding weakness. To be sure, her arm alternately ached and smarted, but one's arm was really such a small part of one, and she had been so strong—always. She tried to shake off the faintness creeping over her. It was effort thrown away. She lay back on her pillow, very white and worn, her pretty hair tangled and loosened from its coils.

Paul came. He was dusty and travel-stained. He had been almost continuously in his saddle since near midnight of the night before. He was here, big, strong, and worthy. Mary did not cry, but she remembered how

she had wanted to a few hours ago and she wondered that she could not now. Strangely enough, it was Paul who wanted to cry now—but he didn't. He only swallowed hard and held her poor hand with all gentleness, afraid to let go lest he also let go his mastery over the almost insurmountable lump in his throat.

"I tried to come sooner," he said, huskily, at last, releasing her hand and standing before her. "But I've been riding all over—for men, you know,—and I had a talk with Gordon, too. It took time. He is coming out to see you this afternoon. He is coming with Doc. Don't you think you had better go back to bed now? You are so—so white. Let me carry you back to bed before I go."

"Are you going, too?" asked Mary, looking at him with wide eyes of gratitude.

"Surely," he responded, quickly. "Did you think I wouldn't?"

"I—I—didn't know. I thought—there were a lot going—there would be enough without you. But—I am glad. If you go, it will be all right. You will find him if any one can."

"Won't you let me carry you back to bed till Doc comes?" said Langford, brokenly.

"I could not bear it in bed," she said, clearly. Her brown eyes were beginning to shine with fever, and red spots had broken out in her pale cheeks. "If you make me go, I shall die. I hear it all the time when I am lying down—galloping, galloping, galloping. They never stop. They always begin all over again."

"What galloping, little girl?" asked Langford, soothingly. He saw she was becoming delirious. If Doc and Dick would only come before he had to go. But they were not coming until after dinner. He gazed down the dusty road. They would wait for him, the others. He was their leader by the natural-born right of push and energy, as well as by his having been the sole participant, with his own cowboys, in the last night's tragedy. But would he

do well to keep them waiting? They had already delayed too long. And yet how could he leave Williston's little girl like this—even to find Williston?

“They are carrying my father away,” she said, with startling distinctness. “Don’t you hear them? If you would listen, you could hear them. Do listen! They are getting faint now—you can hardly hear them. They are fainter—fainter—fainter—”

She had raised her head. There was an alert look on her face. She leaned slightly toward the window.

“Good God! A man can’t stand everything!” cried Langford, hoarsely. He tore the knotted handkerchief from his throat. It was as if he was choking. Then he put his cool, strong hand to her burning forehead and gently smoothed back the rough hair. Gradually, the fixed look of an indescribable horror passed away from her face. The strained, hard eyes softened, became dewy. She looked at him, a clinging helplessness in her eyes, but sweet and sane.

“Don’t you worry, child,” he said, comfortingly. “They can’t help finding him. Twenty men with the sheriff start on the trail. There’ll be fifty before night. They can’t help finding him. I’m going to stay right here with you till Doc comes. I’ll catch up with them before they’ve gone far. I’ll send word to the boys not to wait. Must be somebody around the house, I reckon, besides the old lady.”

He started cheerily for the door.

“Mr. Langford!”

“Yes?”

“Please come back.”

He came quickly to her.

“What is it?”

“Mr. Langford, will you grant me a favor?”

“Certainly, Miss Mary. Anything in this world that I can do for you, I will do. You know that, don’t you?”

“I am all right now. I don’t think I shall get crazy again if you will let me sit here by this window and look out. If I can watch for him, it will give me something to do. You see, I could be watching all the time for the party to come back over that little rise up the road. I want you to promise me,” she went on, steadily, “that I may sit here and wait for you—to come back.”

“God knows you may, little girl, anyway till Doc comes.”

“You are wiser than Doc,” pursued the girl. “He is a good fellow, but foolish, you know, sometimes. He might not understand. He might like to use authority over me because I am his patient—when he did not understand. Promise that I may sit up till you come back.”

“I do promise, little girl. Tell him I said so. Tell him—”

“I will tell him you are—the Boss,” she said, with a pitiful little attempt at a jest, and smiling wanly. “He will mind—the Boss.”

Langford was in agony. Perspiration was springing out on his forehead though August was wearing away peacefully in soft coolness with drifting depths of white cloud as a lounging-robe,—a blessed reprieve from the blazing sun of the long weeks which had gone before.

“And then I want you to promise me,” went on Mary, quietly, “that you will not think any more of staying behind. I could not bear that. I trust you to go. You will, won’t you?”

“Yes, I will go. I will do anything you say. And I want you to believe that everything will be all right. They would not dare to kill him now, knowing that we are after them. If we are not back to-night, you will not worry, will you? They had so much the start of us.”

“I will try not to worry.”

“Well, good-bye. Be a good girl, won’t you?”

“I will try,” she answered, wearily.

With a last look into the brave, sweet face, and smothering a mad, uncowman-like desire to stay and comfort this dear little woman while others rode away in stirring quest, Langford strode from the sick-room into the kitchen.

“Don’t let her be alone any more than you can help, Mother White,” he said, brusquely, “and don’t worry her about going to bed.”

“Have a bite afore you start, Mr. Langford, do,” urged the good woman, hospitably. “You’re that worn out you’re white around the gills. I’ll bet you haven’t had any bite o’ breakfast.”

“I had forgotten—but you are right. No, thank you, I’ll not stop for anything now. I’ll have to ride like Kingdom come. I’m late. Be good to her, Mother White,” this last over his shoulder as he sprang to his mount from the kitchen stoop.

The long day wore along. Mother White was baking. The men would be ravenous when they came back. Many would stop there for something to eat before going on to their homes. It might be to-night, it might be to-morrow, it might not be until the day after, but whenever the time did come, knowing the men of the range country, she must have something “by her.” The pleasant fragrance of new bread just from the oven, mixed with the faint, spicy odor of cinnamon rolls, floated into the cheerless sitting-room. Mary, idly watching Mother White through the open door as she bustled about in a wholesome-looking blue-checked gingham apron, longed with a childish intensity to be out where there were human warmth and companionship. It was such a weary struggle to keep cobwebs out of her head in that lonely, carpetless sitting-room, and to keep the pipe that reared itself above the squat stove, from changing into a cottonwood tree. Some calamity seemed to hover over her all the time. She was about to grasp the terrible truth,—she knew she must look around. Now some one was creeping toward her from under the bed. Unless she stared it out of countenance, something awful would surely come to pass.

Mother White came to the door from time to time to ask her how she was, with floury hands, and stove smutch on her plump cheek. She never failed to break the evil spell. But Mary was weak, and Mrs. White on one of her periodical pauses at the door found her sobbing in pitiful self-abandonment. She went to her quickly, her face full of concern.

“My dear, my dear,” she cried, anxiously, “what is it? Tell me. Mr. Langford will never forgive me. I didn’t mean to neglect you, child. It’s only that I’m plumb a-foot for time. Tell me what ails you—that’s a dearie.”

Mary laid her head on the motherly shoulder and cried quietly for a while. Then she looked up with the faintest ghost of a smile.

“I’m ashamed to tell you, Mother White,” she half whispered. “It is—only—that I was afraid you hadn’t put enough cinnamon in the rolls. I like cinnamon rolls.”

“Lord love the child!” gasped Mrs. White, but without the least inclination to laugh. “Why, I lit’rally buried ’em in cinnamon. I couldn’t afford not to. If I do say it who shouldn’t, my rolls is pretty well known in Kemah County. The boys wouldn’t stand for no economizin’ in spice. No, sirree.”

She hastened wonderingly back to her kitchen, only to return with a heaped-up plate of sweet-smelling rolls.

“Here you are, honey, and they wont hurt you a mite. I can’t think what keeps that fool Doc.” She was getting worried. It was nearly four and he was not even in sight.

Now that she had them, Mary did not want the rolls. She felt they would choke her. She waited until her kindly neighbor had trotted back to her household cares, and pushed the plate away. She turned to her window with an exaggerated feeling of relief. It was hard to watch ceaselessly for some one to top that little rise out yonder and yet for no one ever to do it. But there were compensations. It is really better sometimes not to see things than to see—some things. And it was easier to keep her head clear when she was watching the road.

A younger White, an over-grown lad of twelve, came in from far afield. He carried a shot-gun in one hand and a gunny-sack thrown over his shoulder. He slouched up and deposited the contents of the bag in front of Mary's window with a bashful, but sociable grin. Mary nodded approvingly, and the boy was soon absorbed in dressing the fowls. What a feast there would be that night if the men got back!

At last came the doctor and Gordon, driving up in the doctor's top-buggy, weather-stained, mud-bedaubed with the mud of last Spring, of many Springs. The doctor was a badly dressed, pleasant-eyed man, past middle age, with a fringe of gray whiskers. He was a sort of journeyman doctor, and he had drifted hither one day two Summers ago from the Lake Andes country in this selfsame travel-worn conveyance with its same bony sorrel. He had found good picking, he had often jovially remarked since, chewing serenely away on a brand of vile plug the while. He had elected to remain. He was part and parcel of the cattle country now. He was an established condition. People had learned to accept him as he was and be grateful. Haste was a mental and physical impossibility to him. He took his own time. All must perforce acquiesce.

But as he took Mary's wrist between well-shaped fingers disfigured with long, black nails, he had not been able as yet to readjust himself to old conditions after last night's grewsome experience. He was still walking in a maze. He occasionally even forgot the automatic movement of his jaws. Ah, little doctor, something untoward must have happened to cause you to forget that! What that something was he was thinking about now, and that was what made his blue eyes twinkle so merrily.

Last night,—was it only last night?—oh, way, way in the night, when ghosts and goblins stalked abroad and all good people were safely housed and deeply asleep, there had come a goblin to his door in the hotel, and cried for admittance with devilish persistence and wealth of language. When he, the doctor, had desired information as to the needs of his untimely visitant, the shoulders of some prehistoric giant had been put to the door, and it had fallen open as to the touch of magic. A dazzling and nether-world light had flamed up in his room, and this Hercules-goblin with lock-destroying tendencies had commanded him to clothe himself, with

such insistency that the mantle of nimbleness had descended upon all the little doctor's movements. That this marvellous agility was the result, pure and simple, of black arts, was shown by the fact that the little doctor was in a daze all the rest of the night. He did not even make show of undue astonishment or nervousness when, clothed in some wonderful and haphazard fashion, he was escorted through the dimly lit hall, down the dark stairway, past the office where a night-lamp burned dully, out into the cool night air and into the yawning depths of a mysterious vehicle which rattled with a suspiciously familiar rattle when it suddenly plunged into what seemed like everlasting darkness ahead. He had felt a trifle more like himself after he had unconsciously rammed his hand through the rent in the cushion where the hair stuffing was coming out. But he had not been permitted the reins, so he could not be sure if they were tied together with a piece of old suspender or not; and if that was Old Sorrel, he certainly had powers of speed hitherto unsuspected.

Witchcraft? Ay! Had not he, the little doctor, heard ghostly hoof-beats alongside all the way? It had been nerve-racking. Sometimes he had thought it might just be a cow pony, but he could not be sure; and when he had been tossed profanely and with no dignity into the house of one White, homesteader, with the enigmatical words, "There, damn ye, Doc! I reckon ye got a move on once in your life, anyway," the voice had sounded uncannily like that of one Jim Munson, cow-puncher; but that was doubtless a hallucination of his, brought about by the unusualness of the night's adventures.

"You have worked yourself into a high fever, Miss Williston, that's what you've done," he said, with professional mournfulness.

"I know it," she smiled, wanly. "I couldn't help it. I'm sorry."

Gordon drew up a chair and sat down by her, saying with grave kindness, "You are fretting. We must not let you. I am going to stay with you all night and shoo the goblins away."

"You are kind," said Mary, gratefully. "May I tell you when they come? If some one speaks to me, they go away."

“Indeed you may, dear child,” he exclaimed, heartily. He had been half joking when he spoke of keeping things away. He now perceived that these things were more serious than he knew.

The doctor administered medicine to reduce the fever, dressed the wounded arm, with Gordon’s ready assistance, and then called in Mother White to prepare the bed for his patient; but he paused nonplussed before the weight of entreaty in Mary’s eyes and voice.

“Please don’t,” she cried out, in actual terror. “Oh, Mr. Gordon, don’t let him! I see such awful things when I lie down. Please! Please! And Mr. Langford said I might sit up till he came. Mr. Gordon, you will not let him put me to bed, will you?”

“I think it will be better to let her have her way, Lockhart,” said Gordon, in a low voice.

“Mebbe it would, Dick,” said the doctor, with surprising meekness.

“I’ll stay all night and I’ll take good care of her, Lockhart. There’s Mother White beckoning to supper. You’ll eat before you go? No, I won’t take any supper now, thank you, mother, I will stay with Mary.”

And he did stay with her all through the long watches of that long night. He never closed his eyes in sleep. Sometimes, Mary would drop off into uneasy slumber—always of short duration. When she awakened suddenly in wide-eyed fright, he soothed her with all tenderness. Sometimes when he thought she was sleeping, she would clutch his arm desperately and cry out that there was some one behind the big cottonwood. Again it would be to ask him in a terrified whisper if he did not hear hoof-beats, galloping, galloping, galloping, and begged him to listen. He could always quiet her, and she tried hard to keep from wandering; but after a short, broken rest, she would cry out again in endless repetition of the terrors of that awful night.

Mrs. White and several of her small progeny breathed loudly from an adjoining room. A lamp burned dimly on the table. It grew late—twelve o’clock and after. At last she rested. She passed from light, broken slumber to deep sleep without crying out and thus awakening herself. Gordon was

tired and sad. Now that the flush of fever was gone, he saw how white and miserable she really looked. The circles under her eyes were so dark they were like bruises. The mantle of his misfortune was spreading to bring others besides himself into its sombre folds.

The men were coming back. But they were coming quietly, in grim silence. He dared not awaken Mary for the news he knew they must carry. He stepped noiselessly to the door to warn them to a yet greater stillness, and met Langford on the threshold.

The two surveyed each other gravely with clasped hands.

“You tell her, Dick. I—I can’t,” said Langford. His big shoulders drooped as under a heavy burden.

“Must I?” asked Gordon.

“Dick, I—I can’t,” said Langford, brokenly. “Don’t you see?—if I had been just a minute sooner—and I promised.”

“Yes, I see, Paul,” said Gordon, quietly. “I will tell her.”

“You need not,” said a sweet clear voice from across the room. “I know. I heard. I think I knew all the time—but you were all so good to make me hope. Don’t worry about me any more, dear friends. I am all right now. It is much better to know. I hope they didn’t hang him. You think they shot him, don’t you?”

“Little girl, little girl,” cried Langford, on his knees beside her, “it is not that! It is only that we have not found him. But no news is good news. That we have found no trace proves that they have to guard him well because he is alive. We are going on a new tack to-morrow. Believe me, little girl, and go to bed now, won’t you, and rest?”

“Yes,” she said, wearily, as one in whom no hope was left, “I will go. I will mind—the Boss.”

As he laid her gently on the bed, while Mrs. White, aroused from sleep, fluttered aimlessly and drowsily about, he whispered, his breath caressing her cheek:

“You will go to sleep right away, won’t you?”

“I will try. You are the Boss.”

CHAPTER XII—WAITING

The man found dead the night the Lazy S was burned out was not easily identified. He was a half-breed, but half-breeds were many west of the river, and the places where they laid their heads at night were as shifting as the sands of that rapid, ominous, changing stream of theirs, which ever cut them off from the world of their fathers and kept them bound, but restless, chafing, in that same land where their mothers had stared stolidly at a strange little boat-load tugging up the river that was the forerunner of the ultimate destiny of this broad northwest country, but which brought incidentally—as do all big destinies in the great scheme bring sorrow to some one—wrong, misunderstanding, forgetfulness, to a once proud, free people now in subjection.

At last the authorities found trace of him far away at Standing Rock, through the agent there, who knew him as of an ugly reputation,—a dissipated, roving profligate, who had long since squandered his government patrimony. He had been mixed up in sundry bad affairs in the past, and had been an inveterate gambler. So much only were the Kemah County authorities able to uncover of the wayward earthly career of the dead man. Of his haunts and cronies of the period immediately preceding his death, the agent could tell nothing. He had not been seen at the agency for nearly a year. The reprobate band had covered its tracks well. There was nothing to do but lay the dead body away and shovel oblivion over its secret.

In the early morning after the return of the men from their unsuccessful man hunt, Gordon, gray and haggard from loss of sleep and from hard thought, stepped out into the kitchen to stretch his cramped limbs. He stumbled over the figure of Langford prone upon the floor, dead asleep in utter exhaustion. He smiled understandingly and opened the outer door quietly, hoping he had not aroused the worn-out Boss. The air was fresh and cool, with a hint of Autumn sharpness, and a premature Indian Summer haze, that softened

the gauntness of the landscape, and made the distances blue and rest-giving. He felt the need of invigoration after his night's vigil, and struck off down the road with long strides, in pleasant anticipation of a coming appetite for breakfast.

Thus it was that Langford, struggling to a sitting posture, rubbing his heavy eyes with a dim consciousness that he had been disturbed, and wondering drowsily why he was so stupid, felt something seeping through his senses that told him he did not do well to sleep. So he decided he would take a plunge into the cold artesian pond, and with such drastic measures banish once and for all the elusive yet all-pervading cobwebs which clung to him. Rising to his feet with unusual awkwardness, he looked with scorn upon the bare floor and accused it blindly and bitterly as the direct cause of the strange soreness that beset his whole anatomy. The lay of the floor had changed in a night. Where was he? He glanced helplessly about. Then he knew.

Thus it was, that when Mary languidly opened her eyes a little later, it was the Boss who sat beside her and smiled reassuringly.

"You have not slept a wink," she cried, accusingly.

"Indeed I have," he said. "Three whole hours. I feel tip-top."

"You are—fibbing," she said. "Your eyes look so tired, and your face is all worn."

His heart leaped with the joy of her solicitude.

"You are wrong," he laughed, teasingly. "I slept on the floor; and a good bed it was, too. No, Miss Williston, I am not 'all in' yet, by any means."

In his new consciousness, a new formality crept into his way of addressing her. She did not seem to notice it.

"Forgive me for forgetting, last night," she said, earnestly. "I was very selfish. I forgot that you had not slept for nearly two days, and were riding all the while in—our behalf. I forgot. I was tired, and I went to sleep. I want

you to forgive me. I want you to believe that I do appreciate what you have done. My father—”

“Don’t, don’t, little girl,” cried Langford, forgetting his new awe of her maidenhood in his pity for the stricken child.

“My father,” she went on, steadily, “would thank you if he were here. I thank you, too, even if I did forget to think whether or no you and all the men had any sleep or anything to eat last night. Will you try to believe that I did not forget wittingly? I was so tired.”

When Langford answered her, which was not immediately, his face was white and he spoke quietly with a touch of injured pride.

“If you want to hurt us, Miss Williston, that is the way to talk. We cowmen do not do things for thanks.”

She looked at him wonderingly a moment, then said, simply, “Forgive me,” but her lips were trembling and she turned to the wall to hide the tears that would come. After all, she was only a woman—with nerves—and the reaction had come. She had been brave, but a girl cannot bear everything. She sobbed. That was too much for Langford and his dignity. He bent over her, all his heart in his honest eyes and broken voice.

“Now you will kill me if you don’t stop it. I am all sorts of a brute—oh, deuce take me for a blundering idiot! I didn’t mean it—honest I didn’t. You will believe me, won’t you? There is nothing in the world I wouldn’t do for you, little girl.”

She was sobbing uncontrollably now.

“Mr. Langford,” she cried, turning to him with something of the past horror creeping again into her wet eyes, “do you think I killed—that man?”

“What man? There was only one man killed, and one of my boys potted him on the run,” he said.

“Are you sure?” she breathed, in quick relief.

“Dead sure,” convincingly.

“And yet,” she sobbed, memory coming back with a rush, “I wish—I wish—I had killed them all.”

“So do I!” he agreed, so forcefully that she could but smile a little, gratefully. She said, with just the faintest suggestion of color in her white cheeks:

“Where is everybody? Have you been sitting with me long?”

“Mrs. White is getting breakfast, and I haven’t been sitting with you as long as I wish I had,” he answered, boldly; and then added, regretfully, “Dick was the man who had the luck to watch over you all night. I went to sleep.”

“You were so tired,” she said, sympathizingly. “And besides, I didn’t need anything.”

“It is good of you to put it that way,” he said, his heart cutting capers again.

“Mr. Gordon is the best man I know,” she said, thoughtfully.

“There you are right, Miss Williston,” he assented, heartily, despite a quick little sting of jealousy. “He is the best man I know. I wish you would shake hands on that—will you?”

“Surely.”

He held the smooth brown hand in his firmly with no thought of letting it go—yet.

“I am not such a bad chap myself, you know, Miss Williston,” he jested, his bold eyes flashing a challenge.

“I know it,” she said, simply. “I do not know what I should do without you. You will be good to me always, wont you? There is no one but me—now.”

She was looking at him trustingly, confident of his friendship, innocent, he knew, of any feminine wile in this her dark hour. The sweetness of it went

to his head. He forgot that she was in sorrow he could not cure, forgot that she was looking to him in all probability only as the possible saviour of her father. He forgot everything except the fact that there was nothing in all the world worth while but this brown-eyed, white-cheeked, grieving girl, and he went mad with the quick knowledge thereof. He held the hand he had not released to his face, brushed it against his lips, caressed it against his breast; then he bent forward—close—and whispering, “I will be good to you—always—little girl,” kissed her on the forehead and was gone just as Gordon, filled with the life of the new day, came swinging into the house for his well-earned breakfast.

The sheriff and his party of deputies made a diligent search for Williston that day and for many days to come. It was of no avail. He had disappeared, and all trace with him, as completely as if he had been spirited away in the night to another world—body and soul. That the soul of him had really gone to another world came to be generally believed—Mary held no hope after the return of the first expedition; but why could they find no trace of his body? Where was it? Where had it found a resting place? Was it possible for a man, quick or dead, even west of the river in an early day of its civilization when the law had a winking eye, to fall away from his wonted haunts in a night and leave no print, neither a bone nor a rag nor a memory, to give mute witness that this way he passed, that way he rested a bit, here he took horse, there he slept, with this man he had converse, that man saw his still body borne hence? Could such a thing be? It seemed so.

After a gallant and dauntless search, which lasted through the best days of September, Langford was forced to let cold reason have its sway. He had thought, honestly, that the ruffians would not dare commit murder, knowing that they were being pursued; but now he was forced to the opinion that they had dared the worst, after all. For, though it would be hard to hide all trace of a dead man, infinitely greater would be the difficulty in covering the trail of a living one,—one who must eat and drink, who had a mouth to be silenced and strength to be restrained. It came gradually to him, the belief that Williston was dead; but it came surely. With it came the jeer of the spectre that would not let him forget that he should have foreseen what would surely happen. With it came also a great tenderness for Mary, and a redoubled vigilance to keep his unruly tongue from blurting out things that

would hurt her who was looking to him, in the serene confidence in his good friendship, for brotherly counsel and comfort.

In the first dark days of his new belief, he spoke to Gordon, and the young lawyer had written a second letter to the “gal reporter.” In response, she came at once to Kemah and from thence to the White homestead in the Boss’s “own private.” This time the Boss did the driving himself, bringing consternation to the heart of one Jim Munson, cow-puncher, who viewed the advent of her and her “mouse-colored hair” with serious trepidation and alarm. What he had dreaded had come to pass. ’T was but a step now to the Three Bars. A fussy woman would be the means of again losing man his Eden. It was monstrous. He sulked, aggrievedly, systematically.

Louise slipped into the sad life at the Whites’ easily, sweetly, adaptably. Mary rallied under her gentle ministrations. There was—would ever be—a haunting pathos in the dark eyes, but she arose from her bed, grateful for any kindness shown her, strong in her determination not to be a trouble to any one by giving way to weak and unavailing tears. If she ever cried, it was in the night, when no one knew. Even Louise, who slept with her, did not suspect the truth for some time. But one night she sat straight up in bed suddenly, out of her sleep, with an indefinable intuition that it would be well for her to be awake. Mary was lying in a strange, unnatural quiet. Instinctively Louise reached out a gentle, consoling hand to her. She was right. Mary was not sleeping. The following night the same thing happened, and the next night also; but one night when she reached over to comfort, she found her gentle intention frustrated by a pillow under which Mary had hidden her head while she gave way guardedly to her pent-up grief.

Louise changed her tactics. She took Mary on long walks over the prairie, endeavoring to fatigue her into sleep. The length of these jaunts grew gradually and systematically. It came at last to be an established order of the day for the two girls to strike off early, with a box of luncheon strapped over Louise’s shoulder, for—nowhere in particular, but always somewhere that consumed the better part of the day in the going and coming. Sometimes the hills and bluffs of the river region drew them. Sometimes a woman’s whim made them hold to a straight line over the level distance for the pure satisfaction of watching the horizon across illimitable space remain

stationary and changeless, despite their puny efforts to stride the nearer to it. Sometimes, when they chose the level, they played, like children, that they would walk and walk till the low-lying horizon had to change, until out of its hazy enchantment rose mountain-peaks and forests and valleys and cities. It proved an alluring game. A great and abiding friendship grew out of this *wanderlust*, cemented by a loneliness that each girl carried closely in the innermost recesses of her heart and guarded jealously there. It was a like loneliness in the littleness and atom-like inconsequence of self each must hug to her breast,—and yet, how unlike! Louise was alone in a strange, big land, but there was home for her somewhere, and kin of her own kind to whom she might flee when the weight of alienism pressed too sorely. But Mary was alone in her own land; there was nowhere to flee to when her heart rebelled and cried out in the bitterness of its loneliness; this was her home, and she was alone in it.

Louise learned to love the plains country. She revelled in its winds; the high ones, blowing bold and free with their call to throw off lethargy and stay from drifting; the low ones, sighing and rustling through the already dead grass—a mournful and whispering lament for the Summer gone. She had thought to become reconciled to the winds the last of all. She was a prim little soul with all her sweet graciousness, and dearly desired her fair hair ever to be in smooth and decorous coil or plait. Strangely enough, the winds won her first allegiance. She loved to climb to the summit of one of the barren hills flanking the river and stand there while the wind just blew and blew. Loosened tendrils of hair bothered her little these days. She relegated hats and puny, impotent hat-pins to oblivion. Her hair roughened and her fair skin tanned, but neither did these things bother her. It was the strength of the wind and the freedom, and because it might blow where it listed without regard to the arbitrary and self-important will of strutting man, that enthralled her imagination. It came about that the bigness and loneliness of this big country assumed a like aspect. It was not yet subjugated. The vastness of it and the untrammelled freedom of it, though it took her girl's breath away, was to dwell with her forever, a sublime memory, even when the cow country—unsubjugated—was only a retrospection of silver hairs.

Mary, because of her abounding health, healed of her wound rapidly. Langford took advantage of the girls' absorption in each other's company to

ride often and at length on quests of his own creation. With October, Louise must join Judge Dale for the Autumn term of court. He haunted the hills. He was not looking now for a living man; he was seeking a cleverly concealed grave. He flouted the opinion—held by many—that the body had been thrown into the Missouri and would wash ashore some later day many and many a mile below. He held firmly to his fixed idea that impenetrable mystery clouding the ultimate close of Williston's earthly career was the sought aim of his murderers, and they would risk no river's giving up its dead to their undoing.

It had been ascertained beyond reasonable doubt that Williston could not have left the country in any of the usual modes. His description was at all the stations along the line, together with the theory that he would be leaving under compulsion.

Meanwhile, Gordon had buckled down for the big fight. He was sadly handicapped, with the whole prop of his testimony struck from under him by Williston's disappearance. However, those who knew him best—the number was not large—looked for things to happen in those days. They, the few, the courageous minority, through all the ups and downs—with the balance in favor of the downs most of the time—of the hardest-fought battle of his life, the end of which left him gray at the temples, maintained a deep and abiding faith in this quiet, unassuming young man, who had squared his shoulders to this new paralyzing blow and refused to be knocked out, who walked with them and talked with them, but kept his own counsel, abided his time, and in the meantime—worked.

One day, Langford was closeted with him for a long two hours in his dingy, one-roomed office on the ground floor. The building was a plain wooden affair with its square front rising above the roof. In the rear was a lean-to where Gordon slept and had his few hours of privacy.

"It won't do, Paul," Gordon said in conclusion. "I have thought it all out. We have absolutely nothing to go upon—nothing at least but our own convictions and a bandaged arm, and they won't hang a man with Jesse's diabolical influence. We'll fight it out on the sole question of 'Mag,' Paul. After that—well—who knows? Something else may turn up. There may be

developments. Meanwhile, just wait. There will be justice for Williston yet.”

CHAPTER XIII—MRS. HIGGINS RALLIES TO HER COLORS

The Kemah County Court convened on a Tuesday, the second week in December. The Judge coming with his court reporter to Velpen on Monday found the river still open. December had crept softly to its appointed place in the march of months with a gentle heralding of warm, southwest winds.

“Weather breeder,” said Mrs. Higgins of the Bon Ami, with a mournful shake of her head. “You mark my words and remember I said it. It’s a sorry day for the cows when the river’s running in December.”

She was serving the judicial party herself, and capably, too. She dearly loved the time the courts met, on either side of the river. It brought many interesting people to the Bon Ami, although not often the Judge. His coming for supper was a most unusual honor, and it was due to Louise, who had playfully insisted. He had humored her much against his will, it must be confessed; for he had a deeply worn habit of making straight for the hotel from the station and there remaining until Hank Bruebacher, liveryman, who never permitted anything to interfere with or any one to usurp his prerogative of driving his honor to and from Kemah when court was in session, whistled with shameless familiarity the following morning to make his honor cognizant of the fact that he, Hank, was ready. But he had come to the Bon Ami because Louise wished it, and he reflected whimsically on the astonishment, amounting almost to horror, on the face of his good landlord at the Velpen House when it became an assured fact that he was not and had not been in the dining-room.

“You are right, Mrs. Higgins,” assented the Judge gravely to her weather predictions, “and the supper you have prepared for us is worthy the hand that serves it. Kings and potentates could ask no better. Louise, dear child, I am fond of you and I hope you will never go back East.”

“Thank you, Uncle Hammond,” said Louise, who knew that an amusing thought was seeping through this declaration of affection. “I am sorry to

give you a heartache, but I am going back to God's country some day, nevertheless."

"Maybe so—maybe not," said the Judge. "Mrs. Higgins, my good woman, how is our friend, the canker-worm, coming on these days?"

"Canker-worm?" repeated Mrs. Higgins. "Meanin', your honor—"

"Just what I say—canker-worm. Isn't he the worm gnawing in discontent at the very core of the fair fruit of established order and peace in the cow country?"

"I—I—don't understand, your honor," faltered the woman, in great trepidation. Would his honor consider her a hopeless stupid? But what was the man talking about? Louise looked up, a flush of color staining her cheeks.

"Maybe fire-brand would suit you better, madame? My young friend, the fire-brand," resumed the Judge, rising. "That is good—fire-brand. Is he not inciting the populace to 'open rebellion, false doctrine, and schism'? Is it not because of him that roofs are burned over the very heads of the helpless homesteader?"

"For shame, Uncle Hammond," exclaimed Louise, still flushed and with a mutinous little sparkle in her eyes. "You are poking fun at me. You haven't any right to, you know; but that's your way. I don't care, but Mrs. Higgins doesn't understand."

"Don't you, Mrs. Higgins?" asked the Judge.

"No, I don't," snapped Mrs. Higgins, and she didn't, but she thought she did. "Only if you mean Mr. Richard Gordon, I'll tell you now there ain't no one in this here God-forsaken country who can hold a tallow candle to him. Just put that in your pipe and smoke it, will you?"

She piled up dishes viciously. She did not wait for her guests to depart before she began demolishing the table. It was a tremendous breach of

etiquette, but she didn't care. To have an ideal shattered ruthlessly is ever a heart-breaking thing.

"But my dear Mrs. Higgins," expostulated the Judge.

"You needn't," said that lady, shortly. "I don't care," she went on, "if the president himself or an archangel from heaven came down here and plastered Dick Gordon with bad-smellin' names from the crown of his little toe to the tip of his head, I'd tell 'em to their very faces that they didn't know what they was a talkin' about, and what's more they'd better go back to where they belong and not come nosin' round in other people's business when they don't understand one single mite about it. We don't want 'm puttin' their fingers in our pie when they don't know a thing about us or our ways. That's my say," she closed, with appalling significance, flattering herself that no one could dream but that she was dealing in the most off-hand generalities. She was far too politic to antagonize, and withal too good a woman not to strike for a friend. She congratulated herself she had been true to all her gods—and she had been.

Louise smiled in complete sympathy, challenging the Judge meanwhile with laughing eyes. But the Judge—he was still much of a boy in spite of his grave calling and mature years—just threw back his blonde head and shouted in rapturous glee. He laughed till the very ceiling rang in loud response; laughed till the tears shone in his big blue eyes. Mrs. Higgins looked on in undisguised amazement, hands on hips.

"Dear me, suz!" she sputtered, "is the man gone clean daffy?"

"Won't you shake hands with me, Mrs. Higgins?" he asked, gravely. "I ask your pardon for my levity, and I assure you there isn't a man in the whole world I esteem more or hold greater faith in than Dick Gordon—or love so much. I thank you for your championship of him. I would that he had more friends like you. Louise, are you ready?"

Their walk to the hotel was a silent one. Later, as she was leaving him to go to her own room, Louise laid her head caressingly on her uncle's sleeve.

“Uncle Hammond,” she said, impulsively, “you are—incurable, but you are the best man in all the world.”

“The very best?” he asked, smilingly.

“The very best,” she repeated, firmly.

There was a full calendar that term, and the close of the first week found the court still wrestling with criminal cases, with that of Jesse Black yet uncalled. Gordon reckoned that Black’s trial could not possibly be taken up until Tuesday or Wednesday of the following week. Long before that, the town began filling up for the big rustling case. There were other rustling cases on the criminal docket, but they paled before this one where the suspected leader of a gang was on trial. The interested and the curious did not mean to miss any part of it. They began coming in early in the week. They kept coming the remainder of that week and Sunday as well. Even as late as Monday, delayed range riders came scurrying in, leaving the cattle mostly to shift for themselves. The Velpen aggregation, better informed, kept to its own side of the river pretty generally until the Sunday, at least, should be past.

The flats southeast of town became the camping grounds for those unable to find quarters at the hotel, and who lived too far out to make the nightly ride home and back in the morning. They were tempted by the unusually mild weather. These were mostly Indians and half-breeds, but with a goodly sprinkling of cowboys of the rougher order. Camp-fires spotted the plain, burning redly at night. There was plenty of drift-wood to be had for the hauling. Blanketed Indians squatted and smoked around their fires—a revival of an older and better day for them. Sometimes they stalked majestically through the one street of the town.

The judicial party was safely housed in the hotel, with the best service it was possible for the management to give in this busy season of congested patronage. It was impossible to accommodate the crowds. Even the office was jammed with cots at night. Mary Williston had come in from White’s to be with Louise. She was physically strong again, but ever strangely quiet, always sombre-eyed.

“What shall I do, Louise?” she asked, one night. They were sitting in darkness. From their east window they could see the gleaming red splotches that were fires on the flat.

“What do you mean, Mary?” asked Louise, dreamily. She was thinking how much sterner Gordon grew every day. He still had a smile for his friends, but he always smiled under defeat. That is what hurt so. She had noticed that very evening at supper how gray his hair was getting at the temples. He had looked lonely and sad. Was it then all so hopeless?

“I mean, to make a living for myself,” Mary answered, earnestly. “There is no one in the world belonging to me now. There were only father and I. What shall I do, Louise?”

“Mary, dear, dear Mary, what are you thinking of doing?”

“Anything,” she answered, her proud reticence giving way before her need, “that will keep me from the charity of my friends. The frock I have on, plain as it is, is mine through the generosity of Paul Langford. The bread I eat he pays for. He—he lied to me, Louise. He told me the cowmen had made a purse for my present needs. They hadn’t. It was all from him. I found out. Mrs. White is poor. She can’t keep a great, strapping girl like me for nothing. I am such a hearty eater, and he has been paying her, Louise, for what I ate. Think of it! I thought I should die when I found it out. I made her promise not to take another cent from him—for me. So I have been working to make it up. I have washed and ironed and scrubbed and baked. I was man of affairs at the ranch while Mr. White went out with the gang for the Fall round-up. I have herded. But one has to have things besides one’s bread. The doctor was paid out of that make-believe purse, but it must all be made up to Paul Langford—every cent of it.”

“Mr. Langford would be very much hurt if you should do that,” began Louise, slowly. “It was because of him, you know, primarily, that—”

“He owes me nothing,” interrupted Mary, sharply.

“Oh,” said Louise, smiling in the dark.

“I believe I could teach school,” went on Mary, with feverish haste, “if I could get a school to teach.”

“I should think Mr. Gordon could help you to secure a place here,” said Louise.

“I have not told Mr. Gordon my troubles,” said Mary, gravely. “I should not dream of intruding with such petty affairs while his big fight is on—his glorious fight. He will avenge my father. Nothing matters but that. He has enough to bear—without a woman’s trivial grievances.”

“But he would be glad to take that little trouble for you if he knew,” persisted Louise. She was feeling small and of little worth in the strength of Mary’s sweeping independence. She was hauntingly sure that in like circumstances she would be weak enough to take her trouble to—a man like Gordon, for instance. It came to her, there in the dark, that maybe he loved Mary. She had no cause to wonder, if this were true. Mary was fine—beautiful, lovable, staunch and true and capable, and he had known her long before he knew there was such a creature in existence as the insignificant, old-maidenish, mouse-haired reporter from the East. The air of the room suddenly became stifling. She threw open a window. The soft, damp air of the cloudy, warm darkness floated in and caressed her hot cheeks. Away, away over yonder, beyond the twinkling camp-fires on the flat, across the river, away to the east, were her childhood’s home and her kin. Here were the big, unthinking, overbearing cow country and—the man who loved Mary Williston, maybe.

It was getting late bedtime. Men were shuffling noisily through the hall on their way to their rooms. Scraps of conversation drifted in to the two girls.

“He’s a fool to make the try without Williston.”

“It takes some folks a mighty long time to learn their place in this here county.”

“Well, I reckon he thinks the county kin afford to stand good for his fool play.”

“He’ll learn his mistake—when Jesse gets out.”

“Naw! Not the ghost of a show!”

“He’d ought to be tarred and feathered and shot full o’ holes, and shipped back to where he come from to show his kind how we deal with plumb idjits west o’ the river.”

“Well, he’ll dance a different stunt ’gainst this is over.”

“You bet! Jesse’ll do his stunt next.”

And then they heard the lazy doctor’s voice drawling, “Mebby so, but let’s wait and see, shall we?”

Men’s minds were set unshiftingly on this coming trial. How Gordon would have to fight for a fair jury!

“I think it is as you said,” said Mary, presently. “Mr. Langford feels he owes me—bread and clothes. He is anxious to pay off the debt so there will be nothing on his conscience. He owes me nothing, nothing, Louise, but he is a man and he thinks he can pay off any obligation he may feel.”

“That is a harsh motive you ascribe to Mr. Langford,” said Louise, closing the window and coming to sit affectionately at Mary’s feet. “I don’t think he means it in that way at all. I think it is a fine and delicate and manly thing he has done. He did not intend for you to know—or any one. And don’t you think, Mary, that the idea of making up a purse should have come from some one else—just as he tried to make you believe? It was not done, so what was left for Mr. Langford to do? He had promised to see your father through. He was glad to do it. I think it was fine of him to do—what he did—the way he did it.”

She had long thought the Boss dreamed dreams of Mary. She was more sure of it than ever to-night. And now if Gordon did, too—well, Mary was worth it. But she would be sorry for one of them some day. They were fine men—both of them.

“But I shall pay him back—every cent,” replied Mary, firmly. “He owes me nothing, Louise, nothing, I tell you. I will not accept alms—of him. You see that I couldn’t, don’t you?”

“I know he does not feel he owes you anything—in the way you are accusing him,” answered Louise, wisely. “He is doing this because you are you and he cannot bear to think of you suffering for things when he wants to help you more than he could dare to tell you now. Mary, don’t you see? I think, too, you must pay him back some day, but don’t worry about it. You would hurt him too much if you do not take plenty of time to get strong and well before repaying him—paltry dollars. There will be a way found, never fear. Meanwhile you can amuse yourself correcting my transcripts to keep you content till something turns up, and we will *make* something turn up. Wait until this term is over and don’t fret. You won’t fret, will you?”

“I will try not to, Louise,” said Mary, with a little weary gesture of acquiescence.

CHAPTER XIV—CHANNEL ICE

A jolly party set off for Velpen Sunday morning. Hank Bruebacher had remained over night on purpose to escort them to the river in his 'bus. It had been caught on the wrong side. The channel had closed over about the middle of the week. The ice had been very thin at first; there had been no drop of the thermometer, but a gradual lowering night after night had at last made men deem it safe to cross on foot. A rumor to this effect had drifted in to the tired jurors hanging around and killing time, waiting to be called. Sunday in Kemah was impossible—to many. Besides, they had had a week of it. They were sure of a good dinner at Velpen, where there had been no such fearful inroads on the supplies, and the base of whose supplies, moreover, was not cut off as it was at Kemah by the closing of the river, which was not yet solid enough for traffic. That consideration held weight with many. Saloon service was a little better, and that, too, had its votaries. Business appointments actuated Gordon and perhaps a few others. *Ennui* pure and simple moved the Court and the Court's assistant.

It was about ten in the morning. It was frosty, but bright, and the little cold snap bade fair to die prematurely. It surely was wonderful weather for South Dakota.

"Where is Mary?" asked the Judge, as Louise came lightly down the stairs, ready to put on her gloves.

"She went out to the Whites' an hour or so ago—to do the week's washing, I suspect. Mr. Langford took her out."

"Louise! On Sunday!" Even the tolerant Judge was shocked.

"It's true, Uncle Hammond," persisted Louise, earnestly.

She wore a modish hat that was immensely becoming, and looked charming. Gordon stood at the worn, wooden steps, hat off, despite the

nipping air, waiting to assist her to the place the gallant Hank had reserved for her.

He sat down at her right, Judge Dale at her left. The jurymen filled the other places rapidly. The heavy wagon lurched forward. The road was good; there had been no snows or thaws. Now was Hank in his element. It is very probable that he was the most unreservedly contented man in seven States that fair Sunday morning—always excepting Munson of the Three Bars. A few straggling buckboards and horsemen brought up the rear. Judge Dale, taking to himself as much room as it was possible to confiscate with elbows slyly pressed outward chickenwing-wise, fished out his newspaper leisurely, leaned over Gordon to say in a matter-of-fact voice, “Just amuse Louise for a little while, will you, Dick, while I glance at the news; you won’t have to play, just talk,—she likes to talk,” and buried himself in the folds of the jiggling paper; much jiggled because Hank had no intention of permitting any vehicle to pass the outfit of which the Judge was passenger while he, Hank Bruebacher, held the reins. He was an authority of the road, and as such, he refused to be passed by anything on wheels.

The rattle of the wagon drowned all coherent conversation. The Judge’s outspread arms had forced Louise very close to her neighbor on the right, who had the instructions to keep her amused, but even then he must bend his head if he were to obey orders strictly and—talk. He chose to obey. Last night, he had been worn out with the strain of the week; he had not been able to forget things. To-day,—well, to-day was to-day.

“Are you going to hear the bishop?” asked Louise. It was a little hard to make conversation when every time one lifted one’s eyes one found one’s self so startlingly close to a man’s fine face.

“Surely!” responded Gordon. “An incomparable scholar—an indefatigable workman—truest of saints.” There was grave reverence in his lowered voice.

“You know him well?”

“Yes. I see him often in his Indian mission work. He is one of the best friends I have.”

The river gleamed with a frozen deadness alongside. The horses' hoofs pounded rhythmically over the hardened road. Opposite, a man who had evidently found saloon service in Kemah pretty good, but who doubtless would put himself in a position to make comparisons as soon as ever his unsteady feet could carry him there, began to sing a rollicking melody in a maudlin falsetto.

"Shut up!" One of the men nudged him roughly.

"Right you are," said the singer, pleasantly, whose name was Lawson. "It is not seemly that we lift up our voices in worldly melody on this holy day and—in the presence of a lady," with an elaborate bow and a vacant grin that made Louise shrink closer to the Judge. "I suggest we all join in a sacred song." He followed up his own suggestion with a discordant burst of "Yes, we will gather at the river."

"He means the kind o' rivers they have in the 'Place around the Corner,'" volunteered Hank, turning around with a knowing wink. "They have rivers there—plenty of 'em—only none of 'em ever saw water."

"I tell you, shut up," whispered the man who had first chided. "Can't you see there's a lady present? No more monkey-shines or we'll oust you. Hear?"

"I bow to the demands of the lady," said Lawson, subsiding with happy gallantry.

"You have many 'best friends' for a man who boasted not so long ago that he stood alone in the cow country," said Louise, resuming the interrupted conversation with Gordon.

"He is one of the fingers," retorted Gordon. "I confessed to one hand, you will remember."

"Let me see," said Louise, musingly. She began counting on her own daintily gloved hand.

"Mrs. Higgins is the thumb, you said?" questioningly.

“Yes.”

“Mr. Langford is the first finger, of course?”

“Of course.”

“And Uncle Hammond is the middle finger?”

“You have said it.”

“And the bishop is the third finger?”

“He surely is.”

“And—and—Mary is the next?”

“Sorceress! You have guessed all right.”

“Then where am I?” she challenged, half in earnest, half in fun. “You might have left at least the little finger for me.”

He laughed under his breath—an unsteady sort of laugh, as if something had knocked at his habitual self control. There was only one answer to that gay, mocking challenge—only one—and that he could not give. He forgot for a little while that there were other people in the wagon. The poor babbling, grinning man across the way was not the only drunken man therein. Only one answer, and that to draw the form closer—closer to him—against his heart—for there was where she belonged. Fingers? What did he care for fingers now? He wanted to lay his face down against her soft hair—it was so perilously near. If only he might win in his fight! But even so, what would it matter? What could there ever be for her in this cruel, alien land? She had been so kindly and lovingly nurtured. In her heart nestled the home call—for all time. She was bound in its meshes. They would draw her sooner or later to her sure and inevitable destiny. And what was there for him elsewhere—after all these years? Kismet. He drew a long breath.

“I’m a poor maverick, I suppose, marked with no man’s friendship. But you see I’m learning the language of the brotherhood. Why don’t you compliment me on my adaptability?”

She looked up smilingly. She was hurt, but he should never know it. And he, because of the pain in him, answered almost roughly:

“It is not a language for you to learn. You will never learn. Quit trying. You are not like us.”

She, because she did not understand, felt the old homesick choking in her throat, and remembered with a reminiscent shudder of the first awful time she had spun along that road. Everybody seemed to spin in this strange land. She felt herself longing for the fat, lazy, old jogging horses of her country home. Horses couldn't hurry there because the hills were too many and the roads too heavy. These lean, shaggy, range-bred horses were diabolical in their predilection for going. Hank's surely were no exception to the rule. He pulled them up with a grand flourish at the edge of the steep incline leading directly upon the pontoon that bridged the narrowed river on the Kemah side of the island, and they stopped dead still with the cleanness worthy of cow ponies. The suddenness of the halt precipitated them all into a general mix-up. Gordon had braced himself for the shock, but Louise was wholly unprepared. She was thrown violently against him. The contact paled his face. The soft hair he had longed to caress in his madness brushed his cheek. He shivered.

“Oh!” cried Louise, laughing and blushing, “I wasn't expecting that!”

Most of the men were already out and down on the bridge. A lone pedestrian was making his way across.

“All safe?” queried Judge Dale, as he came up.

“A little thin over the channel, but all safe if you cross a-foot.”

“Suppose we walk across the island,” suggested the Judge, who occasionally overcame his indolence in spasmodic efforts to counteract his growing portliness, “and our friend Hank will meet us here in the morning.”

So it was agreed. The little party straggled gayly across the bridge. The walk across the island was far from irksome. The air was still bracing, though rags of smoky cloud were beginning to obscure the sun. The gaunt

cottonwoods stood out in sombre silhouette against the unsoftened bareness of the winter landscape. Louise was somewhat thoughtful and pensive since her little attempt to challenge intimacy had been so ungraciously received. To Gordon, on the other hand, had come a strange, new exhilaration. His blood bounded joyously through his veins. This was his day—he would live it to the dregs. To-morrow, and renunciation—well, that was to-morrow. He could not even resent, as, being a man, he should have resented, the unwelcome and ludicrous attentions of the drunken singer to the one woman in the crowd, because whenever the offender came near, Louise would press closer to him, Gordon, and once, in her quick distaste to the proximity of the man, she clutched Gordon's coat-sleeve nervously. It was the second time he had felt her hand on his arm. He never forgot either. But the man received such a withering chastisement from Gordon's warning eyes that he ceased to molest until the remainder of the island road had been traversed.

Then men looked at each other questioningly. A long, narrow, single-plank bridge stretched across the channel. It was not then so safe as report would have it. The boards were stretched lengthwise with a long step between each board and the next. What was to be done? Hank had gone long since. No one coveted the long walk back to Kemah. Every one did covet the comfort or pleasure upon which each had set his heart. Gordon, the madness of his intoxication still upon him, constituted himself master of ceremonies. He stepped lightly upon the near plank to reconnoitre. He walked painstakingly from board to board. He was dealing in precious freight—he would draw no rash conclusions. When he had reached what he considered the middle of the channel, he returned and pronounced it in his opinion safe, with proper care, and advised strongly that no one step upon a plank till the one in front of him had left it. Thus the weight of only one person at a time would materially lessen the danger of the ice's giving way. So the little procession took up its line of march.

Gordon had planned that Louise should follow her uncle and he himself would follow Louise; thus he might rest assured that there would be no encroachment upon her preserves. The officious songster, contrary to orders, glided ahead of his place when the line of march was well taken up

—usurping anybody’s plank at will, and trotting along over the bare ice until finally he drew alongside Louise with an amiable grin.

“I will be here ready for emergencies,” he confided, meaningly. “You need not be afraid. If the ice breaks, I will save you.”

“Get back, you fool,” cried Gordon, fiercely.

“And leave this young lady alone? Not so was I brought up, young man,” answered Lawson, with great dignity. “Give me your hand, miss, I will steady you.”

Louise shrank from his touch and stepped back to the end of her plank.

“Get on that plank, idiot!” cried Gordon, wrathfully. “And if you dare step on this lady’s board again, I’ll wring your neck. Do you hear?”

He had stepped lightly off his own plank for a moment while he drew Louise back to it. The ice gave treacherously, and a little pool of water showed where his foot had been. Louise faltered.

“It—it—flows so fast,” she said, nervously.

“It is nothing,” he reassured her. “I will be more careful another time.”

It was a perilous place for two. He hurried her to the next board as soon as the subdued transgressor had left it, he himself holding back.

It was indeed an odd procession. Dark figures balanced themselves on the slim footing, each the length of a plank from the other, the line seeming to stretch from bank to bank. It would have been ludicrous had it not been for the danger, which all realized. Some half-grown boys, prowling along the Velpen shore looking for safe skating, gibed them with flippant rudeness.

Lawson took fire.

“Whoop ’er up, boys,” he yelled, waving his hat enthusiastically.

He pranced up gayly to the Judge, tripping along on the bare ice.

“Your arm, your honor,” he cried. “It is a blot on my escutcheon that I have left you to traverse this danger-bristling way alone—you, the Judge. But trust me. If the ice breaks, I will save you. I swim like a fish.”

“My friend,” said Dale, fixing on him eyes of calm disapproval, “if you are the cause of my being forced to a cold-water plunge bath against my wishes, I will sentence you to the gallows. Now go!”

He went. He was hurt, but he was not deterred. He would wait for the lady. A gentleman could do no less. Louise stopped. Gordon stopped. The whole back line stopped. Each man stood to his colors and—his plank. Louise, glancing appealingly over her shoulder, gave an hysterical little laugh.

“Move on!” cried Gordon, impatiently.

Instead of moving on, however, Lawson came confidently toward Louise. She stifled a little feminine scream in her handkerchief and stepped hastily backward.

“Don’t be afraid,” said Lawson.

Gordon repressed a rising oath, and cried out, “If you dare—,” but Lawson had already dared. His heavy step was upon Louise’s frail support. She thought shudderingly, intuitively, of the dark, swift, angry current under its thin veneer of ice—the current that was always hungry and ate islands and fertile fields in ravenous mouthfuls. She ran back to the end of her plank.

“Have no fear,” said the drunken man, blandly. He stepped to the bare ice at her side. “A man can’t walk pigeon-toed always,” he confided. “Besides, there’s not a particle of danger. These fools are making a mountain of a mole-hill.”

Gordon came forward quickly.

“Run ahead, Miss Dale, I’ll tend to this fellow,” he said.

He extended a firm hand. He meant to clutch the man, shove him behind, and keep him there. But at that moment the ice began to give under

Lawson's clumsy feet. A look of blank, piteous helplessness came into his drunken eyes as he felt the treacherous ice sinking beneath him. He tottered, then, with frantic, unthinking haste, and sprang to the plank, but it, too, began to sink. He laid desperate hold of the girl.

"Save me!" he shrieked.

Louise was conscious only of a quick, awful terror, a dreadful horror of swaying and sinking, and then she was muffled against a rough coat, strong arms clasped her tightly and bore her backward. Shivering, she hid her face in the coat, clutching the lapels with nervous strength.

"You'll spoil your Sunday clothes," she moaned, trying desperately to be calm and sensible.

And Gordon held her at last as he had dreamed in his mad moments of holding her—close against his heart—in the place he had not dared to tell her he had already put her. His face was pressed against the fair hair that he had longed with an indescribable longing to caress such a short time ago. His lips brushed the soft strands with infinite tenderness. Now was his dream come true. This day was his. No one might take it from him. Tomorrow,—but that was to-morrow. To-day was his. He would live it to the end. Closer he held her,—the dear woman,—there was no one else in all the world. When he released her, she was confronting a man whose face was as white as the ice around them.

"Is this—the last of us?" she questioned, tremulously.

He flung his arm over her shoulders again. He did not know exactly what he did. Men were coming forward rapidly, aware that a great tragedy had threatened, had been averted. Dale was hastily retracing his steps. Lawson had crawled to a place of safety on a forward plank after having been flung out of the way by Gordon in his swift rush for Louise. He was grinning foolishly, but was partially sobered by the shock.

"Back! All of you!" cried Gordon, imperiously. He was very pale, but he had regained his self-control. "Idiots! Do you want another accident? Back to your places! We'll have to go around."

The ice was broken in many spots. Louise had really gone through, but so quick had been her rescue that she escaped with wet feet only. By making a portable bridge of two of the planks, they skirted the yawning hole in safety. It was a more dangerous undertaking now that two must stand on a plank at the same time. Luckily, the greater number were ahead when the accident occurred. It was not much past noon,—but Gordon's day was ended. It was as if the sun had gone down on it. He found no opportunity to speak to Louise again, and the to-morrow, his to-morrow, had come. But the one day had been worth while.

CHAPTER XV—THE GAME IS ON

Contrary to expectation, the case of the State of South Dakota against Jesse Black was called soon after the sitting of the court Monday afternoon. No testimony was introduced, however, until the following day. Inch by inch, step by step, Gordon fought for a fair jury through that tense afternoon. Merciless in his shrewd examination, keen to detect hesitancy, prejudices sought to be concealed he cleverly and relentlessly unearthed. Chair after chair was vacated,—only to be vacated again. It seemed there was not a man in the county who had not heard somewhat of this much-heralded crime—if crime it were. And he who had heard was a prejudiced partisan. How could it be otherwise where feeling ran so high,—where honest men mostly felt resentment against the man who dared to probe the wound without extracting the cause of it, and a hatred and fear curiously intermingled with admiration of the outlaw whose next move after obtaining his freedom might be to cut out of the general herd, cows of their own brands,—where tainted men, officers or cowmen, awaited developments with a consuming interest that was not above manipulating the lines of justice for their own selfish ends? Yet, despite the obstacles in the way, Gordon was determined to have an unprejudiced jury in so far as it lay in human power to seat such a one in the box. So he worked, and worked hard.

This impanelling of the jury was not interesting to the crowd. Many had no hint of its deeper meaning. Others saw it in the light of child's play—a certain braggadocio on the part of the young lawyer. They wanted the actual show to begin—the examination of witnesses. They came and went restlessly, impatiently waiting. Wiser heads than theirs knew that the game was already on in deadly earnest. If these had been lucky enough to get seats in the small and overcrowded court-room, they remained glued to them. They were waiting to see what manner of men would be chosen—Jesse's peers—to pass judgment on his acts and mete out for him just deserts—if they were capable of a just verdict. The square-jawed, keen-witted, clean-cut captain of justice, who had forgotten that the campaign

had aged him irrevocably and that some whitened hair would never grow brown again, meant that they should be capable. The opposing lawyers smiled tolerantly at the numerous challenges. These smiles went far to convince many of the infallibility of their defence. Amused tolerance is a powerful weapon on more fields than one where men war with their wits. It is a wise man who cultivates the art.

“We have chosen the right man,” whispered Langford to Mary. They had secured seats near the front and were of those who knew the game was being played.

“He is great,” returned Mary. If only her father could be there to help! The odds were fearful. Louise, sitting at her table within the bar, with faith in this man’s destiny sufficient to remove mountains, smiled down at her friends.

“Louise is an angel,” said Mary, affectionately.

“Yes, she is,” responded Langford, absently, for he was not looking at the girl reporter, nor were his thoughts on her side of the rail. He wished for the sake of Williston’s “little girl” that there were not so much tobacco stench in the room. But this was a vague and intangible wish. He wished with the whole strength of his manhood—which was much—that this man on trial might be made to pay the penalty of his crime as a stepping-stone to paying the penalty of that greater crime of which he firmly believed him guilty. His own interest had become strangely secondary since that hot July day when he had pledged himself to vengeance. This falling off might have dated from a certain September morning when he had lost himself—for all time—to a girl with pain-pinched face and fever-brightened eyes who wore a blue wrapper. His would not be a personal triumph now, if he won.

Court adjourned that evening with the jury-box filled. The State’s friends were feeling pretty good about it. Langford made his way into the bar where Gordon was standing apart. He passed an arm affectionately over his friend’s shoulder.

“You were inspired, Dick,” he said. “Keep on the same as you have begun and we shall have everything our own way.”

But the fire had died down in the young lawyer's bearing.

"I'm tired, Paul, dead tired," he said, wearily. "I wish it were over."

"Come to supper—then you'll feel better. You're tired out. It is a tough strain, isn't it?" he said, cheerily. He was not afraid. He knew the fire would burn the brighter again when there was need of it—in the morning.

They passed out of the bar together. At the hotel, Mary and Louise were already seated at the table in the dining-room where the little party usually sat together when it was possible to do so. Judge Dale had not yet arrived. The landlady was in a worried dispute with Red Sanderson and a companion. The men were evidently cronies. They had their eyes on two of the three vacant places at the table.

"But I tell you these places are taken," persisted the landlady, who served as head-waitress when such services were necessary, which was not often. Her patrons usually took and held possession of things at their own sweet will.

"You bet they are," chimed in Red, deliberately pulling out a chair next to Louise, who shivered in recognition.

"Please—" she began, in a small voice, but got no farther. Something in his bold, admiring stare choked her into silence.

"You're a mighty pretty girl, if you are a trottin' round with the Three Bars," he grinned. "Plenty time to change your live—"

"Just move on, will you," said Gordon, curtly, coming up at that moment with Langford and shoving him aside with unceremonious brevity. "This is my place." He sat down quietly.

"You damned upstart," blustered Sanderson. "Want a little pistol play, do you?"

"Gentlemen! gentlemen!" implored the landlady.

"I'm not entering any objection," said Gordon, coolly. "Just shoot—why don't you? You have the drop on me."

For a moment it looked as if Sanderson would take him at his word and meet this taunt with instant death for the sender of it, so black was his anger. But encountering Langford's level gaze, he read something therein, shrugged his shoulders, replaced his pistol, and sauntered off with his companion just as Judge Dale came upon the scene. Langford glanced quickly across the table at Mary. Her eyes were wide with startled horror. She, too, had seen. Just above Red Sanderson's temple and extending from the forehead up into the hair was an ugly scar—not like that left by a cut, but as if the flesh might have been deeply bruised by some blunt weapon.

"Mary! How pale you are!" cried Louise, in alarm.

"I'm haunted by that man," she continued, biting her lip to keep from crying out against the terrors of this country. "He's always showing up in unexpected places. I shall die if I ever meet him alone."

"You need not be afraid," said Gordon, speaking quietly from his place at her side. Louise flashed him a swift, bewildering smile of gratitude. Then she remembered she had a grievance against him and she stiffened. But then the feel of his arms came to her—the feel that she had scarcely been conscious of yesterday when the dark water lay at her feet,—and she blushed, and studied her plate diligently.

Under this cover, the young ranchman comforted Mary, whom the others had temporarily forgotten, with a long, caressing look from his handsome eyes that was a pledge of tireless vigilance and an unforgetting watchfulness of future protection.

CHAPTER XVI—THE TRIAL

The next morning, every available seat was filled early. People had blocked the rough plank walks leading to the court-house long before the doors were unlocked. The day promised to be fine, and the many teams coming and going between Kemah and the river to pick up the Velpen people who had crossed the ice on foot gave to the little town somewhat of the gala appearance of fair time. The stately and blanketed Sioux from their temporary camps on the flat were standing around, uncommunicative, waiting for proceedings to begin. Long before the judicial party had arrived from the hotel, the cramped room was crowded to its limits. There was loud talking, laughing, and joking. Local wits amused themselves and others by throwing quips at different members of the county bar or their brethren from across the river, as they walked to their places inside the railings with the little mannerisms that were peculiar to each. Some swaggered with their importance; others bore themselves with a ludicrous and exaggerated dignity; while a refreshing few, with absolute self-unconsciousness, sat down for the work in hand. The witty cowboys, restrained by no bothersome feelings of delicacy, took off every one in running asides that kept the room in uproar. Men who did not chew tobacco ate peanuts.

The door in the rear of the bar opened and Judge Dale entered. A comparative quiet fell upon the people. He mounted to his high bench. The clerk came in, then the court reporter. She tossed her note books on the table, leisurely pulled off her gloves and took her place, examining the ends of her pencils with a critical eye. It would be a busy day for the "gal reporter." Then Langford came shoving his way down the crowded aisle with a sad-faced, brown-eyed, young woman in his wake, who yet held herself erect with a proud little tilt to her chin. There was not an empty seat outside the bar. Louise motioned, and he escorted Mary to a place within and sat down beside her. The jurymen were all in their chairs. Presently came in Gordon with his quiet, self-reliant manner. Langford had been right. The County Attorney was not tired to-day.

Shortly after Gordon came Small—Small, the dynamic, whose explosives had so often laid waste the weak and abortive independent reasoning powers of “Old Necessity” and his sort, and were the subject of much satire and some admiration when the legal fraternity talked “shop.” As he strode to his place, he radiated bombs of just and telling wrath. He scintillated with aggressiveness. With him came Jesse Black, easy and disdainful as of old. After them, a small man came gliding in with as little commotion as if he were sliding over the floor of a waxed dancing hall in patent-leather pumps. He was an unassuming little man with quick, cat-like movements which one lost if one were not on the alert. When he had slipped into a chair next to his associate, Small, the inflammable Small, towered above him head and shoulders.

“Every inch the criminal,” audibly observed a stranger, an Englishman over to invest in lands for stocking a horse ranch. “Strange how they always wear the imprint on their faces. No escaping it. I fancy that is what the Scriptures meant by the mark of Cain.”

The remark was addressed to no one in particular, but it reached the ears of Jim Munson, who was standing near.

“Good Lord, man!” he said, with a grin, “that’s the plumb smartest criminal lawyer in the hull county. That’s a fac’. Lord, Lord! Him Jesse Black?”

His risibilities continued to thus get the better of his gravity at frequent intervals during the day. He never failed to snort aloud in pure delight whenever he thought of it. What a tale for the boys when he could get to them!

“These cattle men!” This time the tenderfoot communicated with himself—he had a square chin and a direct eye; there were possibilities in him. “Their perverted sense of the ridiculous is diabolical.”

There were others who did not know the little man. He hailed from the southern part of the State. But Gordon knew him. He knew he was pitted against one of the sharpest, shrewdest men of his day.

“Gentlemen, I think we are ready,” said the Judge, and the game was on again.

The State called Paul Langford, its principal witness in default of Williston.

“Your name, place of residence, and business?” asked the counsel for the State.

“Paul Langford. I reside in Kemah County, and I own and operate a cattle ranch.”

After Langford had clearly described and identified the animal in question, Gordon continued:

“Mr. Langford, when did you first miss this steer?”

“On the fifteenth day of July last.”

“How did you happen to miss this steer?”

“My attention was called to the fact that an animal answering this description and bearing my brand had been seen under suspicious detention.”

“Prior to information thus received, you were not aware this creature had either strayed away or been stolen?”

“I was not.”

“Who gave you this information, Mr. Langford?”

“George Williston of the Lazy S.”

“Now you may tell the jury in what words Williston told you about the steer he saw.”

This, of course, was objected to and the objection was sustained by the court, as Gordon knew it would be. He only wanted the jury to remember that Williston could have told a damaging story had he been here, and also

to remember how mysteriously this same Williston had disappeared. He could not have Williston or Williston's story, but he might keep an impression ever before these twelve men that there was a story—he knew it and they knew it,—a story of which some crotchet of the law forbade the telling.

“What did you do after your attention had been called to the suspicious circumstances of the steer's detention?”

“I informed my boys of what I had heard, and sent them out to look for the steer.”

“That same day?”

“Yes.”

“Were they successful?”

“No.”

“Did this steer have a particular stamping ground?”

“He did.”

“Where was that?”

“He always ranged with a bunch on what we call the home range.”

“Near the ranch house?”

“Within half a mile.”

“Did you look for him yourself?”

“I did.”

“He was not on this home grazing ground?”

“He was not.”

“Did you look elsewhere for him?”

“We did.”

“Where?”

“We rode the free ranges for several days—wherever any of my cattle held out.”

“How many days did you say you rode?”

“Why, we continued to look sharp until my boy, Munson, found him the day before the preliminary at the Velpen stock-yards, on the point of being shipped to Sioux City.”

“You went to Velpen to identify this steer?”

“I did.”

“It was your steer?”

“Yes.”

“The same for which you had been searching so long?”

“The very same.”

“It was wearing your brand?”

“It was not.”

“What brand was it wearing?”

“J R.”

“Where was it?”

“On the right hip.”

“Where do you usually put your brand, Mr. Langford?”

“On the right hip.”

“Do you always brand your cattle there?”

“Always.”

“Do you know any J R outfit?”

“I do not.”

Gordon nodded to Small. His examination had been straightforward and to the point. He had drawn alert and confident answers from his witness. Involuntarily, he glanced at Louise, who had not seemed to be working at all during this clean-cut dialogue. She flashed a fleeting smile at him. He knew he was out of sympathy with the great majority of the people down there in front. He did not seem to care so much now. A great medicine is a womanly and an understanding smile. It flushed his face a bit, too.

Langford was most unsatisfactory under cross-examination. He never contradicted himself, and was a trifle contemptuous of any effort to tangle him up in threads of his own weaving. The little man touched Small on the arm and whispered to him.

“Mr. Langford,” said Small, in a weighty voice, “you travel a great deal, I believe?”

“I do.”

“For pleasure, maybe?” with a mysterious inflection.

“Partly.”

“Business as well?”

“Business as well.”

“Just prior to the arrest of the defendant,” insinuatingly, “you were away?”

“How long prior do you mean?”

“Say a week.”

“No.”

“Two weeks?”

“Yes.”

“You had been away some time?”

“The better part of a year,” confessed Langford, with engaging candor.

“Yes. Now, Mr. Langford, I should like you to tell me about how many cattle you range—in round numbers.”

“About five thousand head.”

“Yes. Now, Mr. Langford, you who count your cattle by the thousands, on your own sworn word you have been out of the country a year. Don’t you think you are asking this jury to swallow a pretty big mouthful when you ask them to believe that you could so unmistakably distinguish this one poor ornery steer, who has so little to distinguish him from thousands of others?”

“I have owned that spotted steer for years,” said Langford, composedly. “I have never sold him because he was rather an odd creature and so cantankerous that we dubbed him the Three Bars mascot.”

Gordon called Jim Munson.

“What is your name?”

“Gosh!”

The question was unexpected. Was there any one in the county who did not know Jim Munson? And Dick Gordon of all people! Then he remembered

that the Boss had been asked the same question, so it must be all right. But the ways of the court were surely mysterious and oftentimes foolish.

“Jim Munson. Jim Munson’s my name—yep.”

Gordon smiled.

“You needn’t insist on it, Mr. Munson,” he advised. “We know it now. Where do you live?”

“Hellity damn! I live at the Three Bars ranch.”

“In Kemah County?”

“It sure is.”

“What is your business, Mr. Munson?”

“Jim’s shorter, Dick. Well, I work for the Boss, Mr. Paul Langford.”

“In what capacity?”

“If you mean what do I do, why, I ride the range, I punch cows, I always go on the round-up, I’m a fair bronco-breaker and I make up bunks and clean lamp chimblies between times,” he recited, glibly, bound to be terse yet explicit, by advice of the Boss.

There was a gale of laughter in the bar. Even the Court smiled.

“Oh, Jim! Jim! You have perjured yourself already!” murmured the Boss. “Clean lamp chimneys—ye gods!”

“Well, grin away!” exploded Jim, his quick ire rising. He had forgotten that Judge Dale’s court was not like Justice McAllister’s. His fingers fairly itched to draw a pistol and make the scoffers laugh and dance to a little music of his own. But something in Gordon’s steady though seemingly careless gaze brought him back to the seriousness of the scene they were playing—without guns.

The examination proceeded. The air was getting stifling. Windows were thrown open. Damp-looking clouds had arisen from nowhere seemingly and spread over the little prairie town, over the river and the hills. It was very warm. Weather-seasoned inhabitants would have predicted storm had they not been otherwise engaged. There was no breath of air stirring. Mrs. Higgins had said it was a sorry day for the cattle when the river was running in December. Others had said so and so believed, but people were not thinking of the cattle now. One big-boned, long-horned steer held the stage alone.

The State proceeded to Munson's identification of the steer in question. After many and searching questions, Gordon asked the witness:

"Jim, would you be willing to swear that the steer you had held over at the stock-yards was the very same steer that was the mascot of the Three Bars ranch?"

This was Jim's big opportunity.

"Know Mag? Swear to Mag? Dick, I would know Mag ef I met him on the golden streets of the eternal city or ef my eyes was full o' soundin' cataracts! Yep."

"I am not asking such an impossible feat, Mr. Munson," cut in Gordon, nettled by the digressions of one of his most important witnesses. "Answer briefly, please. Would you be willing to swear?"

Jim was jerked back to the beaten track by the sharp incision of Gordon's rebuke. No, this was indeed not Jimmie Mac's court.

"Yep," he answered, shortly.

Billy Brown was called. After the preliminary questions, Gordon said to him:

"Now, Mr. Brown, please tell the jury how you came into possession of the steer."

“Well, I was shippin’ a couple o’ car loads to Sioux City, and I was drivin’ the bunch myself with a couple o’ hands when I meets up with Jesse Black here. He was herdin’ a likely little bunch o’ a half dozen or so—among ’em this spotted feller. He said he wasn’t shippin’ any this Fall, but these were for sale—part of a lot he had bought from Yellow Wolf. So the upshot of the matter was, I took ’em off his hands. I was just lackin’ ’bout that many to make a good, clean, two cars full.”

“You took a bill-of-sale for them, of course, Mr. Brown?”

“I sure did. I’m too old a hand to buy without a bill-o’-sale.”

The document was produced, marked as an exhibit, and offered in evidence.

The hearing of testimony for the State went on all through that day. It was late when the State rested its case—so late that the defence would not be taken up until the following day. It was all in—for weal or for woe. In some way, all of the State’s witnesses—with the possible exception of Munson, who would argue with the angel Gabriel at the last day and offer to give him lessons in trumpet blowing—had been imbued with the earnest, honest, straightforward policy of the State’s counsel. Gordon’s friends were hopeful. Langford was jubilant, and he believed in the tolerable integrity of Gordon’s hard-won jury. Gordon’s presentation of the case thus far had made him friends; fickle friends maybe, who would turn when the wind turned—to-morrow,—but true it was that when court adjourned late in the afternoon, many who had jeered at him as a visionary or an unwelcome meddler acknowledged to themselves that they might have erred in their judgment.

As on the previous night, Gordon was tired. He walked aimlessly to a window within the bar and leaned against it, looking at the still, oppressive, cloudy dampness outside, with the early December darkness coming on apace. Lights were already twinkling in kitchens where housewives were busy with the evening meal.

“Well, Dick,” said Langford, coming up cheery and confident.

“Well, Paul, it’s all in.”

“And well in, old man.”

“I—don’t know, Paul. I hope so. That quiet little man from down country has not been much heard from, you know. I am afraid, a moral uplift isn’t my stunt. I’m tired! I feel like a rag.”

Langford was called away for a moment. When he returned, Gordon was gone. He was not at supper.

“He went away on his horse,” explained Louise, in answer to Langford’s unspoken question. “I saw him ride into the country.”

When the party separated for the night, Gordon had not yet returned.

CHAPTER XVII—GORDON RIDES INTO THE COUNTRY

Gordon rode aimlessly out of the little town with its twinkling lights. He did not care where he went or what direction he pursued. He wanted to ride off a strange, enervating dejection that had laid hold of him the moment his last testimony had gone in. It all seemed so pitifully inadequate—without Williston,—now that it was all in. Why had he undertaken it? It could only go for another defeat counted against him. Though what was one defeat more or less when there had been so many? It would be nothing new. Was he not pursuing merely the old beaten trail? Why should the thought weigh so heavily now? Can a man never attain to that higher—or lower, which is it?—altitude of strifeless, unregretful hardness? Or was it, he asked himself in savage contempt of his weakness, that, despite all his generous and iron clad resolutions, he had secretly, unconsciously perhaps, cherished a sweet, shy, little reservation in his inmost heart that maybe—if he won out—

“You poor fool,” he said, aloud, with bitter harshness.

Suppose he did. A brave specimen, he, if he had the shameful egoism to ask a girl—a girl like Louise—a gentle, highbred, protected, cherished girl like that—to share this new, bleak, rough life with him. But the very sweetness of the thought of her doing it made him gasp there in the darkness. How stifling the air was! He lifted his hat. It was hard to breathe. It was like the still oppressiveness preceding an electrical storm. His mare, unguided, had naturally chosen the main travelled trail and kept it. She followed the mood of her master and walked leisurely along while the man wrestled with himself.

If he really possessed the hardihood to ask Louise to do this for him, she would laugh at him. Stay! That was a lie—a black lie. She would not laugh—not Louise. She was not of that sort. Rather would she grieve over the inevitable sadness of it. If she laughed, he could bear it better—he had good, stubborn, self-respecting blood in him,—but she would not laugh. And all the rest of his long life must be spent in wishing—wishing—if it

could have been! But he would never ask her to do it. Not even if the impossible came to pass. It was a hard country on women, a hard, treeless, sun-seared, unkindly country. Men could stand it—fight for its future; but not women like Louise. It made men as well as unmade them. And after all it did not prove to be the undoing of men so much as it developed in them the perhaps hitherto hidden fact that they were already wanting. These latent, constitutional weaknesses thus laid bare, the bad must for a while prevail—bad is so much noisier than good. But this big, new country with its infinite possibilities—give it time—it would form men out of raw material and make over men mistakenly made when that was possible, or else show the dividing line so clearly that the goats might not herd with the sheep. Some day, it would be fit for women—like Louise. Not now. Much labor and sorrow must be lived through; there must be many mistakes, many experiments tried, there must be much sacrifice and much refining, and many must fall and lose in the race before its big destiny be worked out and it be fit for women—like Louise. Down in the southern part of the State, and belonging to it, a certain big barred building sheltered many women, when the sun of the treeless prairies and the gazing into the lonesome distances surrounding their homesteads seeped into their brains and stayed there so that they knew not what they did. There were trees there and fountains and restful blue-grass in season, and flowers, flowers, flowers—but these came too late for most of the women.

Louise was not of that sort. The roughness and the loneliness would simply wear her away and she would die—smiling to the last. What leering fate had led her hither to show him what he had missed by choosing as he had chosen to throw himself into the thankless task of preparing a new country for—a future generation? This accomplished, she would flit lightly away and never know the misery she had left behind or the flavor and zest she had filched from the work of one man, at least, who had entered upon it with lofty ambition, high hopes, and immutable purpose. What then would he have wished? That she had not come at all?

He smiled. If Louise could have seen that smile, or the almost dewy softness which stole into his eyes—the eyes that were too keen for everyday living! That he loved her was the one thing in life worth while. Then why rail at fate? If he had not chosen as he had, he should never have known

Louise. He must have gone through life without that dear, exquisite, solemn sense of her—in his arms—those arms to which it had been given to draw her back from a cruel death. That fulfilment was his for all time. How sweet she was! He seemed to feel again the soft pressure of her clinging arms,—remembering how his lips had brushed her fair hair. If it had been Langford, now, who was guilty of so ridiculous a sentimentalism—the bold, impetuous, young ranchman—he smiled at himself whimsically. Then he pulled himself together. He did not think the jury could believe the story Jesse Black would trump up, no matter how plausible it was made to sound. He felt more like himself,—in better condition to meet those few but staunch friends of his from whom he had so summarily run away,—stronger to meet—Louise. Man-like, now that he was himself again, he must know the time. He struck a match.

“Why, Lena, old girl, we’ve been taking our time, haven’t we? They are likely through supper, but maybe I can wheedle a doughnut out of the cook.”

The match burned out. Not until he had tossed it away did it come to him that they were no longer on the main trail.

“Now, that’s funny, old girl,” he scolded. “What made you be so unreasonable? Well, we started with our noses westward, so you must have wandered into the old Lazy S branch trail. Though, to be sure, it has been such a deuce of a while since we travelled it that I wonder at you, Lena. Well, we’ll just jog back. What’s the matter now, silly?”

His mare had shied. He turned her nose resolutely, domineeringly, back toward the spot objected to.

“I can’t see what you’re scared at, but we’ll just investigate and show you how foolish a thing is feminine squeamishness.”

A shadowy form arose out of the darkness. It approached.

“Is that you, Dick?”

Gordon was not a superstitious man, yet he felt suddenly cold to the crown of his head. It was not so dark as it might have been. There would have been a moon had it not been cloudy. Dimly, he realized that the man had arisen from the ruins of what must have been the old Williston homestead. The outlines of the stone stoop were vaguely visible in the half light. The solitary figure had been crouched there, brooding.

“I’m flesh and blood, Dick, never fear,” said the man in a mournful voice. “I’m hungry enough to vouch for that. You needn’t be afraid. I’m anything but a spirit.”

“Williston!” The astonished word burst from Gordon’s lips. “Williston! Is it really you?”

“None other, my dear Gordon! Sorry I startled you. I saw your light and heard your voice speaking to your horse, and as you were the very man I was on the point of seeking, I just naturally came forward, forgetting that my friends would very likely look upon me in the light of a ghost.”

“Williston! My dear fellow!” repeated Gordon again. “It is too good to be true,” he cried, leaping from his mare and extending both hands cordially. “Shake, old man! My, the feel of you is—bully. You are flesh and blood all right. You always did have a good, honest shake for a fellow. I don’t know, though. Seems to me you have been kind o’ running to skin and bones since I last saw you. Grip’s good, but bony. You’re thinner than ever, aren’t you?”

All this time he was shaking Williston’s hands heartily. He never thought of asking him where he had been. For weary months he had longed for this man to come back. He had come back. That was enough for the present. He had always felt genuinely friendly toward the unfortunate scholar and his daughter.

“That’s natural, isn’t it? Besides, they forgot my rations sometimes.”

“Who, Williston?” asked Gordon, the real significance of the man’s return taking quick hold of him.

“I think you know, Gordon,” said the older man, quietly. “It is a long story. I was coming to you. I will tell you everything. Shall I begin now?”

“Are you in any danger of pursuit?” asked Gordon, suddenly bethinking himself.

“I think not. I killed my jailer, the half-breed, Nightbird.”

“You did well. So did Mary.”

“What do you mean?”

“Didn’t you know that Mary shot and killed one of the desperadoes that night? At least, we have every reason to think it was Mary. By the way, you have not asked after her.”

The man’s head drooped. He did not answer for a long time. When he raised his head, his face, though showing indistinctly, was hard and drawn. He spoke with little emotion as a man who had sounded the gamut of despair and was now far spent.

“What was the use? I saw her fall, Gordon. She stood with me to the end. She was a brave little girl. She never once faltered. Dick,” he said, his voice changing suddenly, and laying hot, feverish hands on the young man’s shoulders, “we’ll hang them—you and I—we’ll hang them every one,—the devils who look like men, but who strike at women. We’ll hang them, I say—you and I. I’ve got the evidence.”

“Is it possible they didn’t tell you?” cried Gordon, aghast at the amazing cruelty of it.

“Tell me anything? Not they. She was such a good girl, Dick. There never was a better. She never complained. She never got her screens, poor girl. I wish she could have had her screens before they murdered her. Where did you lay her, Dick?”

“Mr. Williston,” said Dick, taking firm hold of the man’s burning hands and speaking with soothing calmness, “forgive me for not telling you at once. I

thought you knew. I never dreamed that you might have been thinking all the while that Mary was dead. She is alive and well and with friends. She only fainted that night. Come, brace up! Why, man alive, aren't you glad? Well, then, don't go to pieces like a child. Come, brace up, I tell you!"

"You—you—wouldn't lie to me, would you, Dick?"

"As God is my witness, Mary is alive and in Kemah this minute—unless an earthquake has swallowed the hotel during my absence. I saw her less than two hours ago."

"Give me a minute, my dear fellow, will you? I—I—"

He walked blindly away a few steps and sat down once more on the ruins of his homestead. Gordon waited. The man sat still—his head buried in his hands. Gordon approached, leading his mare, and sat down beside him.

"Now tell me," he said, with simple directness.

An hour later, the two men separated at the door of the Whites' claim shanty.

"Lie low here until I send for you," was Gordon's parting word.

CHAPTER XVIII—FIRE!

The wind arose along toward midnight—the wind that many a hardened inhabitant would have foretold hours before had he been master of his time and thoughts. As a rule, no signal service was needed in the cow country. Men who practically lived in the open had a natural right to claim some close acquaintance with the portents of approaching changes. But it would have been well had some storm flag waved over the little town that day. For the wind that came slipping up in the night, first in little sighing whiffs and skirmishes, gradually growing more impatient, more domineering, more utterly contemptuous, haughty, and hungry, sweeping down from its northwest camping grounds, carried a deadly menace in its yet warm breath to the helpless and unprotected cattle huddled together in startled terror or already beginning their migration by intuition, running with the wind.

It rattled loose window-casings in the hotel, so that people turned uneasily in their beds. It sent strange creatures of the imagination to prowl about. Cowmen thought of the depleted herds when the riders should come in off the free ranges in the Spring should that moaning wind mean a real northwester.

Louise was awakened by a sudden shriek of wind that swept through the slight aperture left by the raised window and sent something crashing to the floor. She lay for a moment drowsily wondering what had fallen. Was it anything that could be broken? She heard the steady push of the wind against the frail frame building, and knew she ought to compel herself sufficiently to be aroused to close the window. But she was very sleepy. The crash had not awakened Mary. She was breathing quietly and deeply. But she would be amenable to a touch—just a light one—and she did not mind doing things. How mean, though, to administer it in such a cause. She could not do it. The dilapidated green blind was flapping dismally. What time was it? Maybe it was nearly morning, and then the wind would probably go down. That would save her from getting up. She snuggled under the covers and prepared to slip deliciously off into slumber again.

But she couldn't go to sleep after all. A haunting suspicion preyed on her waking faculties that the crash might have been the water pitcher. She had been asleep and could not gauge the shock of the fall. It had seemed terrific, but what awakens one from sleep is always abnormal to one's startled and unremembering consciousness. Still, it might have been the pitcher. She cherished no fond delusion as to the impenetrability of the warped cottonwood flooring. Water might even then be trickling through to the room below. She found herself wondering where the bed stood, and that thought brought her sitting up in a hurry only to remember that she was over the musty sitting room with its impossible carpet. She would be glad to see it soaked—it might put a little color into it, temporarily at least, and lay the dust of ages. But, sitting up, she felt herself enveloped in a gale of wind that played over the bed, and so wisely concluded that if she wished to see this court through without the risk of grippe or pneumonia complications, she had better close that window. So she slipped cautiously out of bed, nervously apprehensive of plunging her feet into a pool of water. It had not been the pitcher after all. Even after the window was closed, there seemed to be much air in the room. The blind still flapped, though at longer intervals. If it really turned cold, how were they to live in that barn-like room, she and Mary? She thought of the campers out on the flat and shivered. She looked out of the window musingly a moment. It was dark. She wondered if Gordon had come home. Of course he was home. It must be nearly morning. Her feet were getting cold, so she crept back into bed. The next thing of which she was conscious, Mary was shaking her excitedly.

“What is it?” she asked, sleepily.

“Louise! There's a fire somewhere! Listen!”

Some one rushed quickly through the hall; others followed, knocking against the walls in the darkness. Then the awful, heart-clutching clang of a bell rang out—near, insistent, metallic. It was the meeting-house bell. There was no other in the town. The girls sprang to the floor. The thought had found swift lodgment in the mind of each that the hotel was on fire, and in that moment Louise thought of the poisoned meat that had once been served to some arch-enemies of the gang whose chief was now on trial for his

liberty. So quickly does the brain work under stress of great crises, that, even before she had her shoes and stockings on, she found herself wondering who was the marked victim this time. Not Williston,—he was dead. Not Gordon,—he slept in his own room back of the office. Not Langford,—he was bunking with his friend in that same room. Jim Munson? Or was the Judge the proscribed one? He was not a corrupt judge. He could not be bought. It might be he. Mary had gone to the window.

“Louise!” she gasped. “The court-house!”

True. The cloudy sky was reddened above the poor little temple of justice where for days and weeks the tide of human interest of a big part of a big State—ay, a big part of all the northwest country, maybe—had been steadily setting in and had reached its culmination only yesterday, when a gray eyed, drooping-shouldered, firm-jawed young man had at last faced quietly in the bar of his court the defier of the cow country. To-night, it would dance its little measure, recite its few lines on its little stage of popularity before an audience frenzied with appreciation and interest; to-morrow, it would be a heap of ashes, its scene played out.

“My note books!” cried Louise, in a flash of comprehension. She dressed hastily. Shirt-waist was too intricate, so she threw on a gay Japanese kimono; her jacket and walking skirt concealed the limitations of her attire.

“What are you going to do?” asked Mary, also putting on clothes which were easy of adjustment. She had never gone to fires in the old days before she had come to South Dakota; but if Louise went—gentle, high-bred Louise—why, she would go too, that was all there was about it. She had constituted herself Louise’s guardian in this rough life that must be so alien to the Eastern girl. Louise had been very good to her. Louise’s startled cry about her note books carried little understanding to her. She was not used to court and its ways.

They hastened out into the hallway and down the stairs. They saw no one whom they knew, though men were still dodging out from unexpected places and hurrying down the street. It seemed impossible that the inconveniently built, diminutive prairie hotel could accommodate so many people. Louise found herself wondering where they had been packed away.

The men, carelessly dressed as they were, their hair shaggy and unkempt, always with pistols in belt or hip-pocket or hand, made her shiver with dread. They looked so wild and weird and fierce in the dimly lighted hall. She clutched Mary's arm nervously, but no thought of returning entered her mind. Probably the Judge was already on the court-house grounds. He would want to save some valuable books he had been reading in his official quarters. So they went out into the bleak and windy night. They were immediately enveloped in a wild gust that nearly swept them off their feet as it came tearing down the street. They clung together for a moment.

"It'll burn like hell in this wind!" some one cried, as a bunch of men hurried past them. The words were literally whipped out of his mouth. "Won't save a thing."

Flames were bursting out of the front windows upstairs. The sky was all alight. Sparks were tossed madly southward by the wind. There was grave danger for buildings other than the one already doomed. The roar of the wind and the flames was well-nigh deafening. The back windows and stairs seemed clear.

"Hurry, Mary, hurry!" cried Louise, above the roar, and pressed forward, stumbling and gasping for the breath that the wild wind coveted. It was not far they had to go. There was a jam of men in the yard. More were coming up. But there was nothing to do. Men shook their heads and shrugged their shoulders and watched the progress of the inevitable with the placidity engendered of the potent "It can't be helped." But some things might have been saved that were not saved had the first on the grounds not rested so securely on that quieting inevitability. As the girls came within the crowded circle of light, they overheard something of a gallant attempt on the part of somebody to save the county records—they did not hear whether or no the attempt had been successful. They made their way to the rear. It was still dark.

"Louise! What are you going to do?" cried Mary, in consternation. There were few people on this side. Louise put her hand deliberately to the door-knob. It gave to her pressure—the door swung open. Some one stumbled out blindly and leaned against the wall for a moment, his hands over his eyes.

“I can’t do it,” he said, aloud, “I can’t reach the vaults.”

Louise slipped past him and was within the doorway, closely followed by the frantic Mary.

The man cried out sharply, and stretched out a detaining hand. “Are you crazy? Come back!”

“Mr. Gordon!” cried Louise, with a little sob of relief, “is it really you? Let me go—quick—my note books!”

A thick cloud of smoke at that moment came rolling down the back stairs. It enveloped them. It went down their throats and made them cough. The man, throwing an arm over the shoulders of the slender girl who had started up after the first shock of the smoke had passed away, pushed her gently but firmly outside.

“Don’t let her come, Mary,” he called back, clearly. “I’ll get the note books—if I can.” Then he was gone—up the smoke-wreathed stairway.

Outside, the girls waited. It seemed hours. The wind, howling around the corners, whipped their skirts. There was a colder edge to it. Fire at last broke out of the back windows simultaneously with the sound of breaking glass, and huge billows of released black smoke surged out from the new outlet. Louise started forward. She never knew afterward just what she meant to do, but she sprang away from Mary’s encircling arm and ran up the little flight of steps leading to the door from which she had been so unceremoniously thrust. Afterward, when they told her, she realized what her impulsive action meant, but now she did not think. She was only conscious of some wild, vague impulse to fly to the help of the man who would even now be safe in blessed outdoors had it not been for her and her foolish woman’s whim. She had sent him to his death. What were those wretched note books—what was anything at all in comparison to his life! So she stumbled blindly up the steps. The wind had slammed the door shut. It was a cruel obstacle to keep her back. She wrenched it open. The clouds of smoke that met her, rolling out of their imprisonment like pent up steam, choked her, blinded her, beat her back. She strove impotently against it. She tried to fight it off with her hands—those little intensely feminine hands

whose fortune Gordon longed to take upon himself forever and forever. They were so small and weak to fend for themselves. But small as they were, it was a good thing they did that night. Now Mary had firm hold of her and would not let her go. She struggled desperately and tried to push her off, but vainly, for Mary had twice her strength.

“Mary, I shall never forgive you—”

She did not finish her sentence, for at that moment Gordon staggered out into the air. He sat down on the bottom step as if he were drunk, but little darts of flame colored the surging smoke here and there in weird splotches and, suddenly calm now that there was something to do, Mary and Louise led him away from the doomed building where the keen wind soon blew the choking smoke from his eyes and throat.

“I’ve swallowed a ton,” he said, recovering himself quickly. “I couldn’t get them, Louise.” He did not know he called her so.

“Oh, what does it matter?” cried Louise, earnestly. “Only forgive me for sending you.”

“As I remember it, I sent myself,” said Gordon, with a humorous smile, “and, I am afraid, tumbled one little girl rather unceremoniously down the stairs. Did I hurt you?” There was a caressing cadence in the question that he could not for the life of him keep out of his voice.

“I did not even know I tumbled. How did you get back?” said Louise, tremulously.

“Who opened the door?” counter-questioned Gordon, remembering. “The wind must have blown it shut. I was blinded—I couldn’t find it—I couldn’t breathe. I didn’t have sense enough to know it was shut, but I couldn’t have helped myself anyway. I groped for it as long as I could without breathing. Then I guess I must have gone off a little, for I was sprawling on the floor of the lower hall when I felt a breath of air playing over me. Somebody must have opened the door—because I am pretty sure I had fainted or done some foolish thing.”

Louise was silent. She was thankful—thankful! God had been very good to her. It had been given to her to do this thing. She had not meant to do it—she had not known what she did; enough that it was done.

“It was Louise,” spoke up Mary, “and I—tried to hold her back!” So she accused herself.

“But I didn’t do it on purpose,” said Louise, with shining eyes. “I—I—”

“Yes, you—” prompted Gordon, looking at her with tender intentness.

“I guess I was trying to come after you,” she confessed. “It was very—foolish.”

The rear grounds were rapidly filling up. Like children following a band-wagon, the crowd surged toward the new excitement of the discovered extension of the fire. Gordon drew a long breath.

“I thank God for your—foolishness,” he said, simply, smiling the smile his friends loved him for.

CHAPTER XIX—AN UNCONVENTIONAL TEA PARTY

As the flames broke through the roof, Langford came rushing up where the group stood a little apart from the press.

“Dick! I have been looking for you everywhere,” he cried, hoarsely.

“What’s the trouble, old man?” asked Gordon, quietly.

“I have something to tell you,” said Langford, in a low voice. “Come quick—let’s go back to your rooms. Why, girls—”

“We will go, too,” said Mary, with quiet decision. She had caught a glimpse of Red Sanderson’s face through the crowd, and she thought he had leered at her. She had been haunted by the vague feeling that she must have known the man who had attempted to carry her off—that dreadful night; but she had never been able to concentrate the abstract, fleeting impressions into comprehensive substance—never until she had seen that scar and glancing away in terror saw that Langford, too, had seen; but she was not brave enough to lose herself and Louise in the crowd where that man was. She could not. He had leered at Louise, too, last night at supper. They could not ask the protection of Gordon and Langford back to the hotel then, when Langford’s handsome, tanned face was white with the weight of what he had to tell.

“It will be best,” he agreed, unexpectedly. “Come—we must hurry!”

It was Williston’s “little girl” whom he took under his personal protection, diving up the street in the teeth of the gale which blew colder every moment, with a force and strength that kept Mary half the time off her feet. A gentler knight was Gordon—though as manly. All was dark around the premises. There was no one lurking near. Everybody was dancing attendance on the court-house holocaust. Gordon felt for his keys.

“How good it is to get out of the wind,” whispered Louise. This proceeding smacked so much of the mysterious that whispering followed as a natural sequence.

They stepped within. It was inky black.

“Lock the door,” said Langford, in a low voice.

Gordon complied, surprised, but asking no question. He knew his friend, and had faith in his judgment. Then he lighted a lamp that stood on his desk.

“Why did you do that?” asked Louise, gravely.

“What?”

“Lock the door.”

“I don’t know,” he answered, honestly. “I didn’t think you would notice the click. Ask Paul.”

“I’ll explain in a minute,” said Langford. He stepped to the windows and drew the blinds closely.

“Now that I have you safe,” he said, lightly, “I’ll confess I had an old woman’s scare. It came to me that as long as you are not, strictly speaking, on kind and loving terms with—every one west of the river,—and this being such an all-round nasty night anyway, why, I’d just spirit you home and give the charged atmosphere a chance of clearing a little.”

Gordon looked at him steadily a moment. His face did not pale. Yet he knew that Langford had heard—or suspected—more than he intended to tell—then. It was good to see him shrug his shoulders in unconcern for the sake of the two white-faced girls who sat there in his stiff office chairs.

“You are an old duffer, Paul,” he said, in pretended annoyance. “You treat me like a child. I won’t stand it always. You’ll see. Some day I’ll rebel—and—then—”

“Meanwhile, I’ll just trot these ladies back to the hotel,” said Langford. “But you must promise to keep your head inside. We’re fixtures until we have that promise.”

“What, lock me up and run off with—all the ladies! I guess not! Why didn’t we round up that way, I’d like to know? This isn’t Utah, Paul. You can’t have both.”

Paul meant for him to lie low, then. He was also in a hurry to get the girls away. Evidently the danger lay here. There was a tightening of the firm mouth and an ominous contraction of the pupils of the eyes. He stirred the fire, then jammed a huge, knotted stick into the sheet iron stove. It seemed as if everybody had sheet iron stoves in this country. The log caught with a pleasant roar as the draught sent flames leaping up the chimney. But Paul made no movement to go. Then he, Gordon, had not understood his friend. Maybe the menace was not here, but outside. If so, he must contrive to keep his guests interested here. He would leave the lead to Paul. Paul knew. He went back to his living-room and returned, bringing two heavy buggy robes.

“You will find my bachelor way of living very primitive,” he said, with his engaging smile. He arranged the robes over two of the chairs and pushed them close up to the stove. “I haven’t an easy chair in the house—prove it by Paul, here. Haven’t time to rock, and can’t afford to run the risk of cultivating slothful habits. Take these, do,” he urged, “and remove your coats.”

“Thank you—you are very kind,” said Louise. “No, I won’t take off my jacket,” a spot of color staining her cheek when she thought of her gay kimono. Involuntarily, she felt of her throat to make sure the muffler had not blown awry. “We shall be going soon, shan’t we, Mr. Langford? If Mr. Gordon is in any danger, you must stay with him and let us go alone. It is not far.”

“Surely,” said Mary, with a big sinking of the heart, but meaning what she said.

“Not at all,” said Gordon, decidedly. “It’s just his womanish way of bossing me. I’ll rebel some day. Just wait! But before you go, I’ll make tea. You

must have gotten chilled through.”

He would keep them here a while and then let them go—with Langford. The thought made him feel cheap and cowardly and sneaking. Far rather would he step out boldly and take his chances. But if there was to be any shooting, it must be where Louise,—and Mary, too—was not. He believed Paul, in his zeal, had exaggerated evil omens, but there was Louise in his bachelor rooms—where he had never thought to see her; there with her cheeks flushed with the proximity to the stove—his stove—her fair hair windblown. No breath of evil thing must assail her that night—that night, when she had glorified his lonely habitation—even though he himself must slink into a corner like a cowardly cur. A strange elation took possession of him. She was here. He thought of last night and seemed to walk on air. If he won out, maybe—but, fool that he was! what was there in this rough land for a girl like—Louise?

“Oh, no, that will be too much trouble,” gasped Louise, in some alarm and thinking of Aunt Helen.

“Thanks, old man, we’ll stay,” spoke up Langford, cheerfully. “He makes excellent tea—really. I’ve tried it before. You will never regret staying.”

Silently he watched his friend in the inner room bring out a battered tea-kettle, fill it with a steady hand and put it on the stove in the office, coming and going carelessly, seemingly conscious of nothing in the world but the comfort of his unexpected guests.

True to her sex, Louise was curiously interested in the housekeeping arrangements of a genuine bachelor establishment. Woman-like, she saw many things in the short time she was there—but nothing that diminished her respect for Richard Gordon. The bed in the inner chamber where both men slept was disarranged but clean. Wearing apparel was strewn over chairs and tables. There was a litter of magazines on the floor. She laid them up against Langford; she did not think Gordon had the time or inclination to cultivate the magazine habit. She did not know to whose weakness to ascribe the tobacco pouch and brier-wood pipe placed invitingly by the side of a pair of gay, elaborately bead-embroidered moccasins, cosily stowed away under the head of the bed; but she was rather inclined to lay these,

too, to Langford's charge. The howling tempest outside only served to enhance the cosiness of the rumbling fire and the closely drawn blinds.

But tea was never served in those bachelor rooms that night—neither that night nor ever again. It was a little dream that went up in flame with the walls that harbored it. Who first became conscious that the tang of smoke was gradually filling their nostrils, it was hard to tell. They were not far behind each other in that consciousness. It was Langford who discovered that the trouble was at the rear, where the wind would soon have the whole building fanned into flames. Gordon unlocked the door quietly. He said nothing. But Paul, springing in front of him, himself threw it open. It was no new dodge, this burning a man out to shoot him as one would drown out a gopher for the killing. He need not have been afraid. The alarm had spread. The street in front was rapidly filling. One would hardly have dared to shoot—then—if one had meant to. And he did not know. He only knew that deviltry had been in the air for Gordon that night. He had suspected more than he had overheard, but it had been in the air.

Gordon saw the action and understood it. He never forgot it. He said nothing, but gave his friend an illuminating smile that Langford understood. Neither ever spoke of it, neither ever forgot it. How tightly can quick impulses bind—forever.

Outside, they encountered the Judge in search of his delinquent charges.

"I'm sorry, Dick," he said. "Dead loss, my boy. This beastly wind is your undoing."

"I'm not worrying, Judge," responded Gordon, grimly. "I intend for some one else to do that."

"Hellity damn, Dick, hellity damn!" exploded Jim Munson in his ear. The words came whistling through his lips, caught and whirled backward by the play of the storm. The cold was getting bitter, and a fine, cutting snow was at last driving before the wind.

Gordon, with a set face, plunged back into the room—already fire licked. Langford and Munson followed. There sat the little tea-service staring at

them with dumb pathos. The three succeeded in rolling the safe with all its precious documents arranged within, out into the street. Nothing else mattered much—to Gordon. But other things were saved, and Jim gallantly tossed out everything he could lay his hands on before Gordon ordered everybody out for good and all. It was no longer safe to be within. Gordon was the last one out. He carried a battered little teakettle in his hand. He looked at it in a whimsical surprise as if he had not known until then that he had it in his hand. Obeying a sudden impulse, he held it out to Louise.

“Please take care of—my poor little dream,” he whispered with a strange, intent look.

Before she could comprehend the significance or give answer, the Judge had faced about. He bore the girls back to the hotel, scolding helplessly all the way as they scudded with the wind. But Louise held the little tin kettle firmly.

Men knew of Richard Gordon that night that he was a marked man. The secret workings of a secret clan had him on their proscription list. Some one had at last found this unwearied and doggedly persistent young fellow in the way. In the way, he was a menace, a danger. He must be removed from out the way. He could not be bought from it—he should be warned from it. So now his home—his work room and his rest room, the first by many hours daily the more in use, with all its furnishings of bachelor plainness and utility, that yet had held a curious charm for some men, friends and cronies like Langford—was burning that he might be warned. Could any one say, “Jesse Black has done this thing”? Would he not bring down proof of guilt by a retaliation struck too soon? It would seem as if he were anticipating an unfavorable verdict. So men reasoned. And even then they did not arise to stamp out the evil that had endured and hugged itself and spit out corruption in the cattle country. That was reserved for—another.

They talked of a match thrown down at the courthouse by a tramp, likely,—when it was past midnight, when the fire broke out with the wind a piercing gale, and when no vagrant but had long since left such cold comfort and had slept these many weeks in sunnier climes. Some argued that the windows of the court-room might have been left open and the stove blown down by the wind tearing through, or the stove door might have blown open and remains

of the fire been blown out, or the pipe might have fallen down. But it was a little odd that the same people said Dick Gordon's office likely caught fire from flying sparks. Dick's office was two blocks to westward of the courthouse and it would have been a brave spark and a lively one that could have made headway against that northwester.

CHAPTER XX—THE ESCAPE

The little county seat awoke in the morning to a strange sight. The storm had not abated. The wind was still blowing at blizzard rate off the northwest hills, and fine, icy snow was swirling so thickly through the cold air that vision was obstructed. Buildings were distinguishable only as shadows showing faintly through a heavy white veil. The thermometer had gone many degrees below the zero mark. It was steadily growing colder. The older inhabitants said it would surely break the record the coming night.

An immense fire had been built in the sitting-room. Thither Mary and Louise repaired. Here they were joined by Dale, Langford, and Gordon.

“You should be out at the ranch looking after your poor cattle, Mr. Langford,” said Mary, smilingly. She could be light-hearted now,—since a little secret had been whispered to her last night at a tea party where no tea had been drunk. Langford had gravitated toward her as naturally as steel to a magnet. He shrugged his big shoulders and laughed a little.

“The Scribe will do everything that can be done. Honest, now, did you think this trial could be pulled off without me?”

“But there can be no trial to-day.”

“Why not?”

“Did I dream the court-house burned last night?”

“If you did, we are all dreamers alike.”

“Then how can you hold court?”

“We have gone back to the time when Church and State were one and inseparable, and court convenes at ten o’clock sharp in the meeting-house,” he said.

Louise was looking white and miserable.

“You are not contemplating running away, are you?” asked Gordon. “This is unusual weather—really.”

She looked at him with a pitiful smile.

“I should like to be strong and brave and enduring and capable—like Mary. You don’t believe it, do you? It’s true, though. But I can’t. I’m weak and homesick and cold. I ought not to have come. I am not the kind. You said it, too, you know. I am going home just as soon as this court is over. I mean it.”

There was no mistaking that. Gordon bowed his head. His face was white. It had come sooner than he had thought.

All the records of the work of yesterday had been burned. There was nothing to do but begin at the beginning again. It was discouraging, uninteresting. But it had to be done. Dale refused positively to adjourn. The jurymen were all here. So the little frame church was bargained for. If the fire-bugs had thought to postpone events—to gain time—by last night’s work, they would find themselves very greatly mistaken. The church was long and narrow like a country schoolhouse, and rather roomy considering the size of the town. It had precise windows—also like a country schoolhouse,—four on the west side, through which the fine snow was drifting, four opposite. The storm kept few at home with the exception of the people from across the river. There were enough staying in the town to fill the room to its utmost limits. Standing room was at a premium. The entry was crowded. Men not able to get in ploughed back through the cutting wind and snow only to return presently to see if the situation had changed any during their brief absence. So all the work of yesterday was gone over again.

Mingled with the howl and bluster of the wind, and the swirl and swish of the snow drifting outside during the small hours of last night, sometimes had been distinguishable the solemn sound of heavy steps running—likened somewhat to the tramp of troops marching on the double-quick. To some to whom this sound was borne its meaning was clear, but others wondered,

until daylight made it clear to all. The sorry day predicted for the cattle had come. The town was full of cattle. They hugged the south side of the buildings—standing in stolid patience with drooping heads. Never a structure in the whole town—house or store or barn or saloon—but was wind-break for some forlorn bunch huddled together, their faces always turned to the southeast, for the wind went that way. It was an odd sight. It was also a pitiful one. Hundreds had run with the wind from the higher range altitude, seeking the protection of the bluffs. The river only stopped the blind, onward impetus. The flat where the camps had been might have been a close corral, so thickly were the animals crowded together, their faces turned uncompromisingly with the wind.

But the most pathetic part of the situation made itself felt later in the day when the crying need of food for this vast herd began to be a serious menace. Starvation stared these hundreds of cattle in the face. Men felt this grimly. But it was out of the question to attempt to drive them back to the grass lands in the teeth of the storm. Nothing could be done that day at least. But during the second night the wind fell away, the snow ceased. Morning dawned clear, still, and stingingly cold, and the sun came up with a goodly following of sun-dogs. Then such a sight greeted the inhabitants of the little town as perhaps they had never seen before—and yet they had seen many things having to do with cattle. There was little grass in the town for them, but every little dead spear that had lived and died in the protection of the sidewalk or in out-of-the-way corners had been ravenously nipped. Where snow had drifted over a likely place, it had been pawed aside. Where there had been some grass, south of town and east, the ground was as naked now as though it had been peeled. Every bit of straw had been eaten from manure piles, so that only pawed-over mounds of pulverized dust remained. Garbage heaps looked as if there had been a general Spring cleaning-up. And there was nothing more now. Every heap of refuse, every grass plot had been ransacked—there was nothing left for those hundreds of starving brutes. Many jurors, held in waiting, begged permission to leave, to drive their cattle home. Whenever practicable, these requests were granted. The aggregate loss to the county would be enormous if the cattle were allowed to remain here many more days. Individual loss would go hard with many of the small owners. The cattle stupidly made no move to return to the grass lands of their own volition.

Later in the day, the numbers were somewhat thinned, but things were happening in the little church room that made men forget—so concentrated was the interest within those four walls. So close was the pack of people that the fire roaring in the big stove in the middle of the room was allowed to sink in smouldering quiet. The heavy air had been unbearable else. The snow that had been brought in on tramping feet lay in little melted pools on the rough flooring. Men forgot to eat peanuts and women forgot to chew their gum—except one or two extremely nervous ones whose jaws moved the faster under the stimulus of hysteria. Jesse Black was telling his story.

“Along toward the first of last July, I took a hike out into the Indian country to buy a few head o’ cattle. I trade considerable with the half-breeds around Crow Creek and Lower Brule. They’re always for sellin’ and if it comes to a show-down never haggle much about the lucre—it all goes for snake-juice anyway. Well, I landed at John Yellow Wolf’s shanty along about noon and found there was others ahead o’ me. Yellow Wolf always was a popular cuss. There was Charlie Nightbird, Pete Monroe, Jesse Big Cloud, and two or three others whose mugs I did not happen to be onto. After our feed, we all strolled out to the corral. Yellow Wolf said he had bought a likely little bunch from some English feller who was skipping the country—starved out and homesick—and hadn’t put ’em on the range yet. He said J R was the English feller’s brand. I didn’t suspicion no underhand dealin’s. Yellow Wolf’s always treated me white before, so I bargained for this here chap and three or four others and then pulled out for home driving the bunch. They fed at home for a spell and then I decided to put ’em on the range. On the way I fell in with Billy Brown here. He was dead set on havin’ the lot to fill in the chinks of the two carloads he was shippin’, so I up and lets him have ’em. I showed him this here bill-o’-sale from Yellow Wolf and made him out one from me, and that was all there was to it. He rode on to Velpen, and I turned on my trail.”

It was a straight story, and apparently damaging for the prosecution. It corroborated the attestations of other witnesses—many others. It had a plausible ring to it. Two bills of sale radiated atmospheric legality. If there had been dirty work, it must have originated with that renegade half-breed, Yellow Wolf. And Yellow Wolf was dead. He had died while serving a term in the penitentiary for cattle-rustling. Uncle Sam himself had set the seal

upon him—and now he was dead. This insinuated charge he could not answer. The finality of it seemed to set its stamp upon the people gathered there—upon the twelve good men and true, as well as upon others. Yellow Wolf was dead. George Williston was dead. Their secrets had died with them. An inscrutable fate had lowered the veil. Who could pierce it? One might believe, but who could know? And the law required knowledge.

“We will call Charlie Nightbird,” said Small, complacently.

There was a little waiting silence—a breathless, palpitating silence.

“Is Charlie Nightbird present?” asked Small, casting rather anxious eyes over the packed, intent faces. Charlie Nightbird was not present. At least he made no sign of coming forward. The face of the young counsel for the State was immobile during the brief time they waited for Charlie Nightbird—whose dark, frozen face was at that moment turned toward the cold, sparkling sky, and who would never come, not if they waited for him till the last dread trump of the last dread day.

There was some mistake. Counsel had been misinformed. Nightbird was an important witness. He had been reported present. Never mind. He was probably unavoidably detained by the storm. They would call Jesse Big Cloud and others to corroborate the defendant’s statements—which they did, and the story was sustained in all its parts, major and minor. Then the defence rested.

Richard Gordon arose from his chair. His face was white. His lean jaws were set. His eyes were steel. He was anything but a lover now, this man Gordon. Yet the slim little court reporter with dark circles of homesickness under her eyes had never loved him half so well as at this moment. His voice was clear and deliberate.

“Your honor, I ask permission of the Court to call a witness in direct testimony. I assure your honor that the State had used all efforts in its power to obtain the presence of this witness before resting its case, but had failed and believed at the time that he could not be produced. The witness is now here and I consider his testimony of the utmost importance in this case.”

Counsel for the defendant objected strenuously, but the Court granted the petition. He wanted to hear everything that might throw some light on the dark places in the evidence.

“I call Mr. George Williston,” said Gordon.

Had the strain crazed him? Louise covered her eyes with her hands. Men sat as if dazed. And thus, the cynosure of all eyes—stupefied eyes—Williston of the ravaged Lazy S, thin and worn but calm, natural and scholarly-looking as of old—walked from the little ante-room at the side into the light and knowledge of men once more and raised his hand for the oath. Not until this was taken and he had sat quietly down in the witness chair did the tension snap. Even then men found it difficult to focus their attention on the enormous difference this new witness must make in the case that a few moments before had seemed settled.

Mary sat with shining eyes in the front row of wooden chairs. It was no wonder she had laughed and been so gay all the dreary yesterday and all the worse to-day. Louise shot her a look of pure gladness.

Small’s face was ludicrous in its drop-jawed astonishment. The little lawyer’s face was a study. A look of defiance had crept into the defendant’s countenance.

The preliminary questions were asked and answered.

“Mr. Williston, you may state where you were and what you saw on the fourteenth day of July last.”

Williston, the unfortunate gentleman and scholar, the vanquished cowman, for a brief while the most important man in the cow country, perhaps, was about to uncover to men’s understanding the dark secret hitherto obscured by a cloud of supposition and hearsay. He told the story of his visit to the island, and he told it well. It was enough. Gordon asked no further questions regarding that event.

“And now, Mr. Williston, you may tell what happened to you on the night of the thirtieth of last August.”

Williston began to tell the story of the night attack upon the Lazy S, when the galvanic Small jumped to his feet. The little lawyer touched him with a light hand.

“Your honor,” he said, smoothly, “I object to that as incompetent, irrelevant, and immaterial, and not binding on the defendant.”

“Your honor,” interrupted Gordon, with great calmness, “we intend to show you before we get through that this testimony is competent, and that it is binding upon the defendant.”

“Was the defendant there?”

“The defendant was there.”

The objection was overruled.

So Williston told briefly but to the point the story of the night attack upon his home, of the defence by himself and his daughter, and of the burning of his house and sheds. Then he proceeded:

“Suddenly, some one caught me from behind, my arms were pinioned to my sides, something was clapped over my mouth. I was flung over a horse and strapped to the saddle all in less time than it takes to tell it, and was borne away in company with the man who had overpowered me.”

He paused a moment in his recital. Faces strained with expectancy devoured him—his every look and word and action. Mary was very pale, carried thus back to the dread realities of that night in August, and shuddered, remembering that ghastly galloping. Langford could scarce restrain himself. He wanted to rip out a blood curdling Sioux war-whoop on the spot.

“Who was this man, Mr. Williston?” asked Gordon.

“Jesse Black.”

Small was on his feet again, gesticulating wildly. “I object! This is all a fabrication, put in here to prejudice the minds of the jury against this

defendant. It is a pack of lies, and I move that it be stricken from the record.”

The little lawyer bowed his head to the storm and shrugged up his shoulders. Perhaps he wished that he, or his associate—one of the unholy alliance at least—was where the wicked cease from troubling, on the far away islands of the deep seas, possibly, or home on the farm. But his expression told nothing.

“Gentlemen! gentlemen!” expostulated Judge Dale. “Gentlemen! I insist. This is all out of order.” Only one gentleman was out of order, but that was the Judge’s way. Gordon had remained provokingly cool under the tirade.

Again the soft touch. Small fell into his chair. He poured himself a glass of water from the pitcher standing on the attorneys’ table and drank a little of it nervously.

“I move,” said the little lawyer, “that all this touching upon the personal matter of this witness and having to do with his private quarrels be stricken out of the evidence as not bearing on the case in question.”

All in vain. The Judge ruled that it did bear on the case, and Williston picked up the thread of his story.

“We rode and rode hard—it must have been hours; daylight was coming before we stopped. Our horses were spent I had no idea where we were. From the formation of the land, I judged we were not far from the river. We were surrounded by bluffs. I can hardly make you see how cleverly this little retreat had been planned. It was in a valley—one of a hundred similar in all essential respects. The gulch at the bottom of the valley was heavily wooded with scrub-oak, cottonwood, woodbine, and plum-trees, and this tangle of foliage extended for some distance up the sides of the hills. In the midst of this underbrush—a most excellent screen—was a tiny cabin. In this tiny cabin I have lived, a closely watched prisoner, from that day until I escaped.”

The defendant stirred a little uneasily. Was he thinking of Nightbird with the dark, frozen face—who had not answered to his call?

“Black left me soon after. He did not unbind me, rather bound me the tighter. There was no one then to watch me. He deigned to inform me that he had found it rather inconvenient to kill me after the relief party rode up, as then there was no absolute surety of his making a clean get-away, and being caught in the act would be bound to be unpleasant, very unpleasant just then, so he had altered his plans a little—for the present. He gave me no hint either that time, nor either of the two times I saw him subsequently, as to what was to be his ultimate disposal of me. I could only suppose that after this trial was well over in his favor, and fear of indictment for arson and murder had blown over—if blow over it did,—he would then quietly put an end to me. Dead men tell no tales. The shanty in the gulch did not seem to be much of a rendezvous for secret meetings. I led a lonely existence. My jailers were mostly half-breeds—usually Charlie Nightbird. Two or three times Jake Sanderson was my guard.”

Then from the doorway came a loud, clear, resonant voice, a joyful voice, a voice whose tones fairly oozed rapture.

“Hellity damn! The Three Bars’s a gettin’ busy, Mouse-hair!”

Judge Dale started. He glared angrily in that direction.

“Remove that man!” he ordered, curtly. He liked Jim, but he could not brook this crying contempt of court. Jim was removed. He went quietly, but shaking his head reproachfully.

“I never would ’a’ thought it o’ the Jedge,” he murmured, disconsolately. “I never would ’a’ thought it.”

There was a movement in the back of the room. A man was making his way out, slipping along, cat-like, trying to evade attention. Quietly Gordon motioned to the sheriff and slipped a paper into his hand.

“Look sharp,” he whispered, his steady eyes on the shifty ones of the sheriff. “If you let him get away, just remember the handwriting on the wall. It’s our turn now.”

Presently, there was a slight scuffle by the door and two men quietly left the improvised court-room.

“Day before yesterday, in the afternoon,” continued Williston, “I managed to knock Nightbird down at the threshold as he was about to enter. I had secretly worked a cross-beam from the low, unfinished ceiling. There was nothing else in the room I might use for a weapon. They were very careful. I think I killed him, your honor and gentlemen of the jury. I am not sorry. There was no other way. But I would rather it had been the maker, not the tool. By the time I had made my way back to the Lazy S, I was too exhausted to go further; so I crawled over to my neighbors, the Whites, and Mother White made me a shake down. I lay there, nearly dead, until this morning.”

He leaned back wearily.

Black stood up. He was not lank nor lazy now, nor shuffling. His body was drawn to its full height. In the instant before the spring, Mary, who was sitting close to the attorneys’ table, met his glance squarely. She read there what he was about to do. Only a moment their eyes held each other’s, but it was time enough for a swift message of understanding, of utter dislike, and of a determined will to defeat the man’s purpose, to pass from the accusing brown eyes to the cruel ones of the defendant.

Quick as a flash, Black seized the chair upon which he had been sitting, sprang clear of the table and his lawyers, and landed close to Mary’s side. With his chair as a weapon, he meant to force his way to the nearest window. Mary’s eyes dilated. Unhesitatingly she seized the half-emptied glass on the table and dashed the contents of it full into the prisoner’s face. Blinded, he halted a moment in his mad rush. Mary’s quick manœuvre made Langford’s opportunity. He grappled with Black. The crowd went mad with excitement.

The prisoner still retained his chair. When Langford grappled with him, he attempted to bring it down upon the fair head of his antagonist. Mary gasped with dread, but Langford grasped the chair with one muscular hand, wrested it from the desperado’s hold, and threw it to the floor. The two men locked in a close embrace. Langford’s great strength was more than

sufficient to hold the outlaw until the dazed officers could do their duty—had he been let alone; but two men, who had been standing near the door when the prisoner made his unexpected leap for liberty, had succeeded in worming their way through the excited crowd, and now suddenly threw themselves upon the ranchman, dragging him back.

“Stand aside or I’ll shoot!”

It was a girl’s voice, clear and firm. Mary had been the first to realize that Black’s friends, not Langford’s, had joined in the struggle. She snatched her revolver from her cowboy belt—she had not been without either since the Lazy S was burned—and cried out her challenge. Glancing quickly from the gleaming barrel to the determined face of the young girl, the men let go their hold of Langford and fell back precipitately.

Instantly, Langford sprang forward, but Black had made good use of his moment of grace. Swinging his arms to the right and left, he had beaten his way to the window, when Langford again seized him, but he had the advantage this time and he tore himself loose, throwing Langford violently against the window-casing. With his bare, clinched fist, he shattered the glass and leaped out—into the arms of Jim Munson.

The officers made gallant plunges through the stampeded crowd in their efforts to get clear of the room to follow the fugitive. But certain men managed to keep themselves clumsily, but with marvellous adroitness nevertheless, between the deputies and the doors and windows; so that several moments elapsed before the outside was finally gained.

Meanwhile, Jim struggled heroically with the outlaw. Black was far superior to him in weight and strength of limb, but Jim was quick and tough and daring. Expelled from the court room, he had been watching through the window. He had seen Mary’s quick action and his Boss’s splendid attack. He had also seen the little “gun play” and his eyes glowed in admiration of “Williston’s little girl,” though his generous heart ached for love of the woman who was not for him. He saw Black coming. He was ready for him. He grappled with him at once. If the Boss or the officers would only come now!

When they did come, they found Jim stretched at length on the frozen ground. He sat up slowly.

“You’re too late, boys,” he said; “the hoss thief was too much for me. He’s gone.”

It was true. The little street stretched before them still—deserted. Early twilight was coming on. The biting cold struck them broadside. The deputies scattered in vain pursuit.

CHAPTER XXI—THE MOVING SHADOW

“I’d rather not talk about it to-night. I’m not equal to it. It’s—too—too it’s devilish, Paul. I don’t seem to be able to grasp it. I can’t think about it with any coherence. I was so sure—so sure.”

Gordon was staring moodily out of the window, one arm hanging idly over the back of his chair. He had taken up office room in an empty shop building across the street from the hotel.

“It’s so devilish, it’s weird,” agreed the ranchman. “But your part was great. You vanquished Jesse Black. That is more than we hoped for a week ago. Is it your fault or mine that those fool deputies acted like flies in tangle-foot and went spraddle-fingered when something was expected of them? We have nothing to do with a little thing like a broken windowpane.”

There was an ugly cut on his forehead caused by his violent contact with the sharp edge of the window casing. He was pale, but he had lost none of the old faith in himself or in his power to dominate affairs in the cattle country. Defeat was intolerable to him. He refused to bow his head to it. To-day’s check only made him the more determined, if that were possible, to free the land of its shame.

“I’ll pull myself together again, never fear,” said Gordon. “Just give me to-night. You see that’s not all. I’ve something else to think about, too, now that I have time. It takes a fellow’s nerve away to have everything that is worth while drop out at once. But I’ve rallied before. I know I’m beastly selfish not to talk to you to-night, but—”

“Dick,” interrupted Langford, bluntly, “did she turn you down?”

“I never asked her. She is going back—home—next week.”

“If you let her.”

“You don’t quite understand, Paul,” said Gordon, a little wearily. “She said she could never live in this country—never. She would die here. Could I ask her after that? Could I ask her anyway, and be a man? I know. She would just pine away.”

“Girls don’t pine—only in imagination. They are tougher than you give them credit for.”

“But somehow, Mary seems different,” said Gordon, thoughtfully. He surprised a flush in his friend’s cheek. “You deserve her, old man, you’ll be very happy. She is the right kind. I congratulate you with all my heart.”

An odd lump came into Langford’s throat. Despite Gordon’s vigorous and healthful manhood, there seemed always a certain pathos of life surrounding him.

“I haven’t asked, either,” confessed Paul. “But you have made it possible for me to do so—to-night—to-morrow—whenever I can find a chance. Take my advice, old man, don’t let your girl go. You’ll find she is the kind after all. You don’t know her yet.”

Paul left the room, and Gordon paced the narrow confines of his shabby office—back and forth—many times. Then he threw himself once more into his chair. The hours were long. He had all night to think about things. When morning came, all his weakness would be over. No one should ever again see him so unmanned as Paul had seen him to-night. And when Louise should go—his arms fell nervelessly to the table. He remained thus a moment, his eyes fixed and unseeing, and then his head dropped heavily upon his arms.

Alone in the night, Louise awoke. She found it impossible to fall asleep again. She was nervous. It must be something in the atmosphere. She tossed and tossed and flounced and flounced. She counted up to thousands. She made her mind a blank so often that she flew to thinking to escape the emptiness of it. Still her eyes were wide and her mind fairly a-quiver with activity. She slipped out of bed. She would tire herself into sleep. She even dressed. She would show herself. If she must be a midnight prowler, she would wear the garments people affect when they have their thoughts and

energies fixed on matters mundane. Drawing the oil stove close to the window fronting the street, she sank into a chair, drew a heavy shawl over her shoulders, put her feet on the tiny fender, and prepared to fatigue herself into oblivion.

A light shone from the window across the way. He was still at work, then. He ought not to sit up so late. No wonder he was looking so worn out lately. He ought to have some one to look after him. He never thought of himself. He never had time. She would talk to him about keeping such late hours—if she were not going back to God's country next week. Only next week! It was too good to be true,—and yet she sighed. But there was no other way. She ought never to have come. She was not big enough. He, too, had told her she was not the kind. Doubtless, he knew. And she didn't belong to anybody here. She was glad she was going back to where she belonged to somebody. She would never go away again.

Was that Gordon passing back and forth in front of the window? Something must be troubling him. Was it because Jesse Black had escaped? But what a glorious vindication of his belief in the man's guilt had that afternoon been given! Nothing lacked there. Why should he be sorry? Sometimes, she had thought he might care,—that day crossing the river for instance; but he was so reserved—he never said—and it was much, much better that he did not care, now that she was going away and would never come back. There was nothing in all the world that could make her come back to this big, bleak, lonesome land where she belonged to nobody. But she was sorry for him. He looked sad and lonely. He didn't belong to anybody here, either, yet he wasn't going to run away as she was. Well, but he was a man, and men were different.

And now she noticed that his head had sunk down onto his arms. How still he sat! The minutes passed away. Still he sat motionless, his face buried.

It was dark. The yellow gleam streaming out of the window only served to make the surrounding darkness denser. The lamp on the table cast a pale circle immediately in front of the office. There was no other flicker of light on the street. Into this circle there moved a shadow. It retreated,—advanced again,—glided back into obscurity. Was it something alive, or did the moving of the lamp cause the shadows to thus skip about? But the lamp had

not been moved. It burned steadily in the same position. The relaxed form of the unconscious man was still bent over the table. Nothing had changed within. Probably some dog locked out for the night had trotted within the radius of light. Maybe a cotton-tail had hopped into the light for a second. Louise did not know whether rabbits ever came into the town, but it was likely they did. It might have been one of the strayed cattle wandering about in search of food. That was the most probable supposition of all. Of course it might have been only her imagination. The little pinch of fright engendered of the moving shadow and the eerie hour passed away. Her eyes grew pensive again. How still it was! Had Gordon fallen asleep? He lay so quietly. Had he grieved himself into slumber as a girl would do? No—men were not like that.

Ah! There was the moving shadow again! She caught her breath quickly. Then her eyes grew wide and fixed with terror. This time the shadow did not slink away again. It came near the window, crouching. Suddenly, it stood up straight. Merciful Father! Why is it that a human being, a creature of reason and judgment, prowling about at unnatural hours, inspires ten-fold more terror to his kind than does a brute in like circumstances of time and place? Louise tried to scream aloud. Her throat was parched. A sudden paralysis held her speechless. It was like a nightmare. She writhed and fought desperately to shake herself free of this dumb horror. The cold damp came out on her forehead. Afterward she remembered that she knew the man and that it was this knowledge that had caused her nightmare of horror to be so unspeakably dreadful. Now she was conscious only of the awfulness of not being able to cry out. If she could only awaken Mary! The man lifted his arm. He had something in his hand. Its terrible import broke the spell of her speechlessness.

“Mary! Mary!”

She thought she shrieked. In reality, she gasped out a broken whisper; but it thrilled so with terror and pleading that Mary was awakened on the instant. She sprang out of bed. As her feet touched the floor, a pistol shot rang out, close by. She had been trained to quick action, and superb health left no room for cobwebs to linger in the brain when she was suddenly aroused. She had no need for explanations. The shot was enough. If more was

needed, there was the lighted window across the way and here was Louise crouched before their own. Swiftly and silently, she seized her revolver from the bureau, glided to the window, and fired three times in rapid succession, the reports mingling with the sound of shattered glass.

“I think I hit him the second time, Louise,” she said, with a dull calm. “I can’t be sure.”

She lighted a lamp and began to dress mechanically. Louise stayed not to answer. In the hall, she encountered Paul Langford, just as another shot rang out.

“Go back, Miss Dale,” he cried, hurriedly but peremptorily. “You mustn’t come. I am afraid there has been foul play.”

She looked at him. It hurt, that look.

“He is dead,” she whispered, “I am going to him,” and glided away from his detaining hand.

He hurried after her. Others had been aroused by the nearness of the pistol shots. Doors were thrown open. Voices demanded the meaning of the disturbance. Putting his arm around the trembling girl, Langford hastened across the street with her. At the door of Gordon’s office, he paused.

“I will go in first, Louise. You stay here.”

He spoke authoritatively; but she slipped in ahead of him. Her arms fell softly over the bowed shoulders. Her cheek dropped to the dark, gray-streaked hair. There was little change, seemingly. The form was only a little more relaxed, the attitude only a little more helpless. It seemed as if he might have been sleeping. There was a sound, a faint drip, drip, drip, in the room. It was steady, monotonous, like drops falling, from rain pipes after the storm is over. Langford opened the door.

“Doc! Doc Lockhart! Some one send Doc over here quick! Gordon’s office! Be quick about it!” he cried, in a loud, firm voice. Then he closed the door and locked it. In response to his call, footsteps were heard running. The

door was tried. Then came loud knocking and voices demanding admittance.

“No one can come in but Doc,” cried Langford through the keyhole. “Send him quick, somebody, for God’s sake! Where’s Jim Munson? He’ll get him here. Quick, I tell you!”

He hastened back to the side of his friend and passed his hand gently over the right side to find the place whence came that heartbreaking drip. Disappointed in their desire to get in, men crowded before the window. Louise stepped softly forward and drew the blind between him and the mass of curious faces without. She was very pale, but quiet and self-possessed. She had rallied when Langford had whispered to her that Gordon’s heart was still beating. The doctor rapped loudly, calling to Langford to open. Paul admitted him and then stepped out in full sight of all, his hand still on the knob. The late moon was just rising. A faint light spread out before him.

“Boys,” he cried, a great grief in his stern voice, “it’s murder. Dick Gordon’s murdered. Now get—you know what for—and be quick about it!”

They laid him gently on the floor, took off his coat, and cut away the blood soaked shirts. Louise assisted with deft, tender hands. Presently, the heavy lids lifted, the gray eyes stared vacantly for a moment—then smiled. Paul bent over him.

“What happened, old man?” the wounded man whispered gropingly. It required much effort to say this little, and a shadow of pain fell over his face.

“Hush, Dick, dear boy,” said Langford, with a catch in his voice. “You’re all right now, but you mustn’t talk. You’re too weak. We are going to move you across to the hotel.”

“But what happened?” he insisted.

“You were shot, you know, Dick. Keep quiet, now! I’m going for a stretcher.”

“Am I done for?” the weak voice kept on. But there was no fear in it.

“You will be if you keep on talking like that”

Obeying a sign from the doctor, he slipped away and out. Gordon closed his eyes and was still for a long time. His face was white and drawn with suffering.

“Has he fainted?” whispered Louise.

The eyes opened quickly. They fell upon Louise, who had not time to draw away. The shadow of the old, sweet smile came and hovered around his lips.

“Louise,” he whispered.

“Yes, it is I,” she said, laying her hand lightly on his forehead. “You must be good until Paul gets back.”

“I’m done for, so the rest of the criminal calendar will have to go over. You can go back to—God’s country—sooner than you thought.”

“I am not going back to—God’s country,” said Louise, unexpectedly. She had not meant to say it, but she meant it when she said it.

“Come here, close to me, Louise,” said Gordon, in a low voice. He had forgotten the doctor. “You had better—I’ll get up if you don’t. Closer still. I want you to—kiss me before Paul gets back.”

Louise grew whiter. She glanced hesitatingly at the doctor, timidly at the new lover in the old man. Then she bent over him where he lay stretched on the floor and kissed him on the lips. A great light came into his eyes before he closed them contentedly and slipped into unconsciousness again.

Langford rounded up Jim Munson and sent him across with a stretcher, and then ran up stairs for an extra blanket off his own bed. It was bitterly cold, and Dick must be well wrapped. On the upper landing, he encountered Mary alone. Something in her desolate attitude stopped him.

“What’s the matter, Mary,” he demanded, seizing her hands.

“Nothing,” she answered, dully. “How is he?”

“All right, I trust and pray, but hurt terribly, wickedly.”

He did not quite understand. Did she love Gordon? Was that why she looked so heart-broken? Taking her face in his two hands, he compelled her to look at him straight.

“Now tell me,” he said.

“Did I kill him?” she asked.

“Kill whom?”

“Why, him—Jesse Black.”

Then he understood.

“Mary, my girl, was it you? Were those last shots yours?” All the riotous love in him trembled on his tongue.

“Did I?” she persisted.

“God grant you did,” he said, solemnly. “There is blood outside the window, but he is gone.”

“I don’t like to kill people,” she said, brokenly. “Why do I always have to do it?”

He drew her to him strongly and held her close against his breast.

“You are the bravest and best girl on earth,” he said. “My girl,—you are my girl, you know,—hereafter I will do all necessary killing for—my wife.”

He kissed the sweet, quivering lips as he said it.

Some one came running up the stairs, and stopped suddenly in front of the two in the passage.

“Why, Jim!” cried Langford in surprise. “I thought you had gone with the stretcher.”

“I did go,” said Jim, swallowing hard. He shifted nervously from one spurred foot to the other. “But I came back.”

He looked at Langford beseechingly.

“Boss, I want to see you a minute, ef—Mary don’t mind.”

“I will come with you, Jim, now,” said Langford with quick apprehension.

“Mary,”—Jim turned away and stared unseeingly down the staircase,—“go back to your room for a little while. I will call for you soon. Keep up your courage.”

“Wait,” said Mary, quietly. There were unsounded depths of despair in her voice, though it was so clear and low. “There was another shot. I remember now. Jim, tell me!”

Jim turned. The rough cowboy’s eyes were wet—for the first time in many a year.

“They—hope he won’t die, Mary, girl. Your father’s shot bad, but he ain’t dead. We think Black did it after he run from Gordon’s office. We found him on the corner.”

Langford squared his broad shoulders—then put strong, protecting arms around Mary. Now was he her all.

“Come, my darling, we will go to him together.”

She pushed him from her violently.

“I will go alone. Why should you come? He is mine. He is all I have—there is no one else. Why don’t you go? You are big and strong—can’t you make

that man suffer for my father's murder? Jim, take me to him."

She seized the cowboy's arm, and they went out together, and on down the stairs.

Langford stood still a moment, following them with his eyes. His face was white. He bent his head. Jim, looking back, saw him thus, the dull light from the hall-lamp falling upon the bent head and the yellow hair. When Langford raised his head, his face, though yet white, bore an expression of concentrated determination.

He, too, strode quickly down the stairs.

CHAPTER XXII—THE OUTLAW’S LAST STAND

In the morning the sheriff went to the island. He reported the place deserted. He made many other trips. Sometimes he took a deputy with him; more often he rode unaccompanied. Richard Gordon lay helpless in a burning fever, with Paul Langford in constant and untiring attendance upon him. George Williston was a sadly shattered man.

“I met Black on the corner west of Gordon’s office,” he explained, when he could talk. “I had not been able to sleep, and had been walking to tire my nerves into quiet. I was coming back to the hotel when I heard Black’s shot and then Mary’s. I ran forward and met Black on the corner, running. He stopped, cried out, ‘You, too, damn you,’ and that’s the last I knew until the boys picked me up.”

These were the most interested—Langford, Gordon, Williston. Had they been in the count, things might have been different. It is very probable a posse would have been formed for immediate pursuit. But others must do what had been better done had it not been for those shots in the dark. There was blood outside Gordon’s window; yet Black had not crawled home to die. He had not gone home at all,—at least, that is what the sheriff said. No one had seen the convicted man after his desperate and spectacular exit from the courtroom—no one at least but Louise, Mary, and her father. Mary’s shot had not killed him, but it had saved Richard Gordon’s life, which was a far better thing. It was impossible to track him out of town, for the cattle had trampled the snow in every direction.

The authorities could gather no outside information. The outlying claims and ranches refuted indignantly any hint of their having given aid or shelter to the fugitive, or of having any cognizance whatsoever regarding his possible whereabouts. So the pursuit, at first hot and excited, gradually wearied of following false leads,—contented itself with desultory journeys when prodded thereto by the compelling power of public opinion,—finally ceased altogether even as a pretence.

One of the first things done following the dramatic day in court had been to send the officers out to the little shanty in the valley where the half-breed lay dead across the threshold. A watch was also set upon this place; but no one ever came there.

August had come again, and Judge Dale was in Kemah to hear a court case.

Langford had ridden in from the ranch on purpose to see Judge Dale. His clothes were spattered with mud. There had been a succession of storms, lasting for several days; last night a cloud had burst out west somewhere. All the creeks were swollen.

“Judge, I believe Jesse Black has been on that island of his all the time.”

“What makes you think so, Langford?”

“Because our sheriff is four-flushing—he always was in sympathy with the gang, you know. Besides, where else can Black be?”

Dale puckered his lips thoughtfully.

“What have you heard?” he asked.

“Rumors are getting pretty thick that he has been seen in that neighborhood on several occasions. It is my honest belief he has never left it.”

“What did you think of doing about it, Langford?”

“I want you to give me a bench warrant, Judge. I am confident that I can get him. It is the shame of the county that he is still at large.”

“You have to deal with one of the worst and most desperate outlaws in the United States. You must know it will be a very hazardous undertaking, granting your surmises to be correct, and fraught with grave peril for some one.”

“I understand that fully.”

“This duty is another’s, not yours.”

“But that other is incompetent.”

“My dear fellow,” said the Judge, rising and laying his hand on Langford’s big shoulder, “do you really want to undertake this?”

“I certainly do.”

“Then I will give you the warrant, gladly. You are the one man in the State to do it—unless I except the gallant little deputy marshal. You know the danger. I admire your grit, my boy. Get him if you can; but take care of yourself. Your life is worth so much more than his. Who will you take with you?”

“Munson, of course. He will go in spite of the devil, and he’s the best man I know for anything like this. Then I thought of taking the deputy sheriff. He’s been true blue all along, and has done the very best possible under the conditions.”

“Very good. Take Johnson, too. He’ll be glad to go. He’s the pluckiest little fighter in the world,—not a cowardly hair in his head.”

So it was agreed, and the next morning, bright and early, the little posse, reinforced by others who had earnestly solicited the privilege of going along, started out on its journey. The rains were over, but the roads were heavy. In many places, they were forced to walk their mounts. No one but the initiated know what gumbo mud means. Until they took to the hills, the horses could scarcely lift their feet, so great would be the weight of the sticky black earth which clung in immense chunks to their hoofs. When they struck the hills, it was better and they pressed forward rapidly. Once only the sheriff had asserted that he had run across the famous outlaw. Black had resisted savagely and had escaped, sending back the bold taunt that he would never be taken alive. Such a message might mean death to some of the plucky posse now making for the old-time haunts of the desperado.

The sun struggled from behind rain-exhausted clouds, and a rollicking wind blew up. The clouds skurried away toward the horizon.

At White River ford, the men looked at each other in mute inquiry. The stream was a raging torrent. It was swollen until it was half again its ordinary width. The usually placid waters were rushing and twisting into whirlpool-like rapids.

“What now?” asked Baker, the deputy-sheriff.

“I’m thinkin’ this here little pleasure party’ll have to be postponed,” vouchsafed one of the volunteers, nodding his head wisely.

“We’ll sure have to wait for the cloud-bust to run out,” agreed another.

“Why, we can swim that all right,” put in Langford, rallying from his momentary set-back and riding his mount to the very edge of the swirling water.

“Hold on a minute there, Boss,” cried Jim. “Don’t be rash now. What’s the census of ’pinion o’ this here company? Shall we resk the ford or shall we not?”

“Why, Jim,” said Paul, a laugh in his blue eyes, “are you afraid? What’s come over you?”

“Nothin’. I ain’t no coward neither, and ef you wasn’t the Boss I’d show you. I was just a thinkin’ o’—somebody who’d care—that’s all.”

Just for a moment a far away look came into the young ranchman’s eyes. Then he straightened himself in his saddle.

“I, for one, am going to see this thing through,” he said, tersely. “What do you say, Johnson?”

“I never for one minute calculated on doing a thing else,” replied the deputy marshal, who had been standing somewhat apart awaiting the end of the controversy, with a good humored smile in his twinkling blue eyes.

“Good for you! Then come on!”

Paul urged Sade into the water. He was followed unhesitatingly by Munson, Johnson, and Baker. The others held back, and finally, after a short consultation, wheeled and retraced their steps.

“I ain’t no coward, neither,” muttered one, as he rode away, “but I plumb don’t see no sense in bein’ drowned. I’d rather be killed a roundin’ up Jesse.”

The horses which had made the initial plunge were already in water up to their breasts. The current had an ominous rush to it.

“I don’t care. I didn’t mean to hold over and let our quarry get wind of this affair,” cried Langford, over his shoulder. “Keep your rifles dry, boys!”

Suddenly, without warning, Sade stepped into a hole and lost her balance for a moment. She struggled gallantly and recovered herself, yet it weakened her. It was not long before all the horses were compelled to swim, and the force of the current immediately began driving them down stream. Sade fought bravely against the pressure. She was a plucky little cow pony and loved her master, but it was about all she could do to keep from going under, let alone making much headway against the tremendous pressure of the current. Langford’s danger was grave.

“Steady, my girl!” he encouraged. He flung his feet free of the stirrups so that, if she went under, he would be ready to try it alone. Poor Sade! He should hate to lose her. If he released her now and struck off by himself, she might make it. He had never known White River to run so sullenly and strongly; it would be almost impossible for a man to breast it. And there was Mary—he could never go back to her and claim her for his own until he could bring Black back, too, to suffer for her father’s wrongs.

At that moment, Sade gave a little convulsive shudder, and the water rolled over her head. Langford slipped from the saddle, but in the instant of contact with the pushing current, his rifle was jerked violently from his hand and sank out of sight. With no time for vain regrets, he struck out for the shore. The struggle was tremendous. He was buffeted and beaten, and borne farther and farther down the stream. More than once in the endeavor to strike too squarely across, his head went under; but he was a strong

swimmer, and soon scrambling up the bank some distance below the ford, he turned and sent a resonant hail to his comrades. They responded lustily. He had been the only one unhorsed. He threw himself face downward to cough up some of the water he had been compelled to swallow, and Munson, running up, began slapping him vigorously upon the back. He desisted only to run swiftly along the bank.

“Good for you,” Jim cried, approvingly, assisting Langford’s spent horse up the bank. Coming up to the party where Langford still lay stretched out full length, Sade rubbed her nose inquiringly over the big shoulders lying so low, and whinnied softly.

“Hello there!” cried Paul, springing excitedly to his feet. “Where’d you come from? Thought you had crossed the bar. Now I’ll just borrow a gun from one of you fellows and we’ll be getting along. Better my rifle than my horse at this stage of the game, anyway.”

The little party pushed on. The longer half of their journey was still before them. On the whole, perhaps, it was better the crowd had split. There was more unity of purpose among those who were left. The sun was getting hot, and Langford’s clothes dried rapidly.

Arrived at the entrance of the cross ravine which Williston had once sought out, the four men rode their horses safely through its length. The waters of the June rise had receded, and the outlaw’s presumably deserted holding was once more a peninsula. The wooded section in the near distance lay green, cool, and innocent looking in the late summer sun. The sands between stretched out hot in the white glare. From the gulch covert, the wiry marshal rode first. His face bore its wonted expression of good-humored alertness, but there was an inscrutable glint in his eyes that might have found place there because of a sure realization of the hazard of the situation and of his accepting it. Langford followed him quickly, and Munson and Baker were not far behind. They trotted breezily across the open in a bunch, without words. Where the indistinct trail to the house slipped into the wooded enclosure, they paused. Was the desperado at last really rounded up so that he must either submit quietly or turn at bay? It was so still. Spots of sunlight had filtered through the foliage and flecked the pathway. Insects flitted about. Bumble bees droned. Butterflies hovered

over the snow-on-the-mountain. A turtle dove mourned. A snake glided sinuously through the grass. Peering down the warm, shaded interior, one might almost imagine one was in the heart of an ancient wood. The drowsy suggestions of solitude crept in upon the sensibilities of all the men and filled them with vague doubts. If this was the haunt of a man, a careless, sordid man, would this place which knew him breathe forth so sweet, still, and undisturbed a peace?

Langford first shook himself free of the haunting fear of a deserted hearthstone.

“I’d stake my all on my belief that he’s there,” he said, in a low voice. “Now listen, boys. Johnson and I will ride to the house and make the arrest, providing he doesn’t give us the slip. Baker, you and Jim will remain here in ambush in case he does. He’s bound to come this way to reach the mainland. Ready, Johnson?”

Jim interposed. His face was flinty with purpose.

“Not ef the court knows herself, and I think she do. Me and Johnson will do that there little arrestin’ job and the Boss he’ll stay here in the ambush. Ef anybody’s a countin’ on my totin’ the Boss’s openwork body back to Mary Williston, it’s high time he was a losin’ the count, for I ain’t goin’ to do it.”

He guided his horse straight into the path.

“But, Jim,” expostulated Langford, laying a detaining hand on the cowboy’s shoulder, “as for danger, there’s every bit as much—and more—here. Do you think Jesse Black will tamely sit down and wait for us to come up and nab him? I think he’ll run.”

“Then why are you a shirkin’, ef this is the worst spot o’ all? You ain’t no coward, Boss, leastways you never was. Why don’t you stay by it? That’s what I’d like to know.”

Johnson grinned appreciatively.

“Well, there’s always the supposition that he may not see us until we ride into his clearing,” admitted Langford. “Of course, then—it’s too late.”

Jim blocked the way.

“I’m an ornery, no-’count cowboy with no one in this hull world to know or care what becomes o’ me. There ain’t no one to care but me, and I can’t say I’m a hurtin’ myself any a carin’! You just wait till I screech, will you?”

“Jim,” said Langford, huskily, “you go back and behave yourself. I’m the Boss not you. You’ve got to obey orders. You’ve sassed me long enough. You get back, now!”

“Tell Mary, ef I come back a deader,” said Jim, “that women are s’perfluous critters, but I forgive her. She can’t help bein’ a woman.”

He gave his horse a dig with his knee and the animal bounded briskly forward.

“Jim! You fool boy! Come back!” cried Langford, plunging after him.

Johnson shrugged his shoulders, and wheeled his horse into clever concealment on one side of the path.

“Let the fool kids go,” he advised, dryly. “I’m a lookin’ for Jess to run, anyway.”

The two men rode boldly up toward the house. It seemed deserted. Weeds were growing around the door stoop, and crowding thickly up to the front windows. A spider’s silver web gleamed from casing to panel of the warped and weather stained door. The windows were blurred with the tricklings of rain through seasons of dust. Everything appeared unkempt, forlorn, desolate.

There was a sound from the rear. It carried a stealthy significance. A man leaped from the protection of the cabin and was seen running toward the barn. He was heavily armed.

“Stop that, Black!” yelled Langford, authoritatively. “We are going to take you, dead or alive—you’d better give yourself up! It will be better for you!”

The man answered nothing.

“Wing him with your rifle, Jim, before he gets to the barn,” said Paul, quickly.

The shot went wild. Black wrenched the door open, sprang upon the already bridled horse, and made a bold dash for the farther woods—and not in the direction where determined men waited in ambush. What did it mean? As his horse cleared the stable, he turned and shot a vindictive challenge to meet his pursuers.

“You won’t take me alive—and dead, I won’t go alone!”

He plunged forward in a northerly direction. Dimly he could be seen through the underbrush; but plainly could be heard the crackling of branches and the snapping of twigs as his horse whipped through the low lying foliage. Was there, then, another way to the mainland—other than the one over which Johnson and Baker kept guard? How could it be? How Langford longed for his good rifle and its carrying power. But he knew how to use a pistol, too. Both men sent menacing shots after the fugitive. Langford could not account for the strange direction. The only solution was that Black was leading his pursuers a chase through the woods, hoping to decoy them so deeply into the interior that he might, turning suddenly and straightly, gain time for his desperate sprint across the exposed stretch of sand. If this were true, Baker and Johnson would take care of him there.

Black returned the fire vengefully. A bullet scraped his horse’s flank. His hat was shot from his head. He turned savagely in his saddle with a yell of defiance.

“You’ll never take me alive!”

The fusillade was furious, but the trees and branches proved Black’s friends. It was impossible to judge one’s aim aright. His horse staggered. Another bullet sang and purred through the foliage, and the horse fell.

“My God, Jim!” cried Langford. “My cartridges are out! Give me your gun!”

For answer, Jim sent another bullet whistling forward. Black, rising from his fallen horse, fell back.

“I got him!” yelled Jim, exultantly. He spurred forward.

“Careful, Jim!” warned Langford. “He may be ‘playing possum,’ you know.”

“You stay where you are,” cried Jim. “You ain’t got no gun. Stay back, you fool Boss!”

Langford laughed a little.

“You’re the fool boy, Jim,” he said. “I’ll go without a gun if you won’t give me yours.”

They rode cautiously up to the prostrate figure. It was lying face downward, one arm outstretched on the body of the dead horse, the other crumpled under the man’s breast. Blood oozed from under his shoulder.

“He’s done for,” said Jim, in a low voice. In the presence of death, all hatred had gone from him. The man apparently had paid all he could of his debts on earth. The body lying there so low was the body of a real man. Whatever his crimes, he had been a fine type of physical manhood. He had never cringed. He had died like a man, fighting to the last.

Jim slowly and thoughtfully slipped his revolver into its holster and dismounted. Langford, too, sprang lightly from his saddle.

Black had been waiting for this. His trained ear had no sooner caught the soft rubbing sound of the pistol slipping into its leathern case than he leaped to his feet and stretched out the crumpled arm with its deadly weapon pointing straight at the heart of Langford of the Three Bars.

“Now, damn you, we’re quits!” he cried, hoarsely.

There was not time for Jim to draw, but, agile as a cat, he threw himself against Black's arm and the bullet went wild. For a moment the advantage was his, and he wrested the weapon from Black's hand. It fell to the ground. The two men grappled. The struggle was short and fierce. Each strove with all the strength of his concentrated hate to keep the other's hand from his belt.

When the feet of the wrestlers left the fallen weapon free, Langford, who had been waiting for this opportunity, sprang forward and seized it with a thrill of satisfaction. Command of the situation was once more his. But the revolver was empty, and he turned to throw himself into the struggle empty-handed. Jim would thus be given a chance to draw.

At that moment, Black twisted his arm free and his hand dropped like a flash to his belt, where there was a revolver that was loaded. Jim hugged him closely, but it was of no use now. The bullet tore its cruel way through his side. His arms relaxed their hold—he slipped—slowly—down—down. Black shook himself free of him impatiently and wheeled to meet his great enemy.

“Quits at last!” he said, with an ugly smile.

Quits indeed! For Jim, raising himself slightly, was able to draw at last; and even as he spoke, the outlaw fell.

“Jim, my boy,” said Langford, huskily. He was kneeling, Jim's head in his arms.

“Well, Boss,” said Jim, trying to smile. His eyes were clear.

“It was my affair, Jim, you ought not to have done it,” said Langford, brokenly.

“It's all right—Boss—don't you worry—I saw you—in the hall that night. You are—the Boss. Tell Mary so. Tell her I was—glad—to go—so you could go to her—and it would be—all right. She—loves you—Boss—you needn't be afraid.”

“Jim, I cannot bear it; I must go in your stead.”

“To Mary—yes.” His voice sank lower and lower. An added paleness stole over his face, but his eyes looked into Langford’s serenely, almost happily.

“Go—to Mary in my stead—Boss,” he whispered. “Tell her Jim gave his Boss—to her—when he had to go—tell her he was glad to go—I used to think it was ‘Mouse-hair’—I am glad it is—Mary—tell her good-bye—tell her the Three Bars wouldn’t be the same to Jim with a woman in it anyway—tell her—”

And with a sigh Jim died.

CHAPTER XXIII—THE PARTY AT THE LAZY S

Mary stared thoughtfully into the mirror. It was a better one than the sliver into which she had looked more than a year before, when Paul Langford came riding over the plains to the Lazy S. A better house had risen from the ashes of the homestead laid waste by the cattle rustlers. Affairs were well with George Williston now that the hand of no man was against him. He prospered.

Louise stepped to the door.

“I am in despair, Mary,” she said, whimsically. “Mrs. White has ordered me out of the kitchen. What do you think of that?”

“Louise! Did you really have the hardihood to presume to encroach on Mother White’s preserves—you—a mere bride of five months’ standing? You should be grateful she didn’t take the broom to you.”

“She can cook,” said Louise, laughing. “I admit that. I only offered to peel potatoes. When one stops to consider that the whole county is coming to the ‘house-warming’ of the Lazy S, one can’t help being worried about potatoes and such minor things.”

“Do you think the whole county is coming, Louise?” asked Mary.

“Of course,” said Louise Gordon, positively, slipping away again. She was a welcome guest at the ranch, and her heart was in the success of to-night’s party.

Mary had dressed early. As hostess, she had laid aside her short skirt, leather leggings, and other boyish “fixings” which she usually assumed for better ease in her life of riding. She was clad simply in a long black skirt and white shirt-waist. Her hair was coiled in thick braids about her well-shaped head, lending her a most becoming stateliness.

Would Paul Langford come? He had been bidden. Her father could not know that he would not care to come. Her father did not know that she had sent Langford away that long-ago night in December and that he had not come back—at least to her. Naturally, he had been bidden first to George Williston's 'house-warming.' The men of the Three Bars and of the Lazy S were tried friends—but he would not care to come.

Listen! Some one was coming. It was much too soon for guests. The early October twilight was only now creeping softly over the landscape. It was a still evening. She heard distinctly the rhythmical pound of hoof-beats on the hardened trail. Would the rider go on to Kemah, or would he turn in at the Lazy S?

"Hello, the house!" hailed the horseman, cheerily, drawing rein at the very door. "Hello, within!"

The visitor threw wide the door, and Williston's voice called cordially:

"Come in, come in, Langford! I am glad you came early."

"Will you send Mary out, Williston? I need your chore boy to help me water Sade here."

The voice was merry, but there was a vibrant tone in it that made the listening girl tremble a little. Langford never waited for opportunities. He made them.

Mary came to the door with quiet self-composure. She had known from the first the stranger was Langford. How like the scene of a summer's day more than a year past; but how far sweeter the maid—how much more it meant to the man now than then!

"Father, show Mr. Langford in," she said, smiling a welcome. "I shall be glad to take Sade to the spring."

She took hold of the bridle rein trailing to the ground. Langford leaped lightly from his saddle.

“I said ‘help me,’” he corrected.

“The spring is down there,” she directed. “I think you know the way.” She turned to enter the house.

For an instant, Langford hesitated. A shadow fell across his face.

“I want you to come, Mary,” he said, simply. “It is only hospitable, you know.”

“Oh, if you put it in that way—,” she started gayly down the path.

He followed her more slowly. A young moon hung in the western sky. The air was crisp with the coming frost. The path was strewn with dead cottonwood leaves which rustled dryly under their feet.

At the spring, shadowed by the biggest cottonwood, she waited for him.

“I wish my father would cut down that tree,” she said, shivering.

“You are cold,” he said. His voice was not quite steady. He took off his coat and wrapped it around her, despite her protests. He wanted to hold her then, but he did not, though the touch of her sent the blood bounding riotously through his veins.

“You shall wear the coat I—do not want you to go in yet.”

“But Sade has finished, and people will be coming soon.”

“I will not keep you long. I want you to—Mary, my girl, I tried to kill Black, but—Jim—” his voice choked a little—“if it hadn’t been for Jim, Black would have killed me. I thought I could do it. I meant to have you. Jim said it was all the same—his doing it in my stead. I came to-night to ask you if it is the same. Is it, Mary?”

She did not answer for a little while. How still a night it was! Lights twinkled from the windows of the new house. Now and then a dry leaf rustled as some one, the man, the girl, or the horse, moved.

“It is the same,” she said at last, brokenly.

Her eyes were heavy with unshed tears. “But I never meant it, Paul. I was wild that night, but I never meant that you or—Jim should take life or—or—give yours. I never meant it!”

His heart leaped, but he did not touch her.

“Do you love me?” he asked.

She turned restlessly toward the house.

“My father will be wanting me,” she said. “I must go.”

“You shall not go until you have told me,” he said. “You must tell me. You never have, you know. Do you love me?”

“You have not told me, either,” she resisted. “You are not fair.”

He laughed under his breath, then bent his sunny head—close.

“Have you forgotten so soon?” he whispered.

Suddenly, he caught her to him, strongly, as was his way.

“I will tell you again,” he said, softly. “I love you, my girl, do you hear? There is no one but you in all the world.”

The fair head bent closer and closer, then he kissed her—the little man-coated figure in his arms.

“I love you,” he said.

She trembled in his embrace. He kissed her again.

“I love you,” he repeated.

She hid her face on his breast. He lifted it gently.

“I tell you—I love you,” he said.

He placed her arms around his neck. She pressed her lips to his, once, softly.

“I love you,” she whispered.

“My girl, my girl!” he said in answer. The confession was far sweeter than he had ever dreamed. He held her cheek pressed close to his for a long moment.

“The Three Bars is waiting for its mistress,” he said at last, exultantly. “A mistress and a new foreman all at once—the boys will have to step lively.”

“A new foreman?” asked Mary in surprise. “I did not know you had a new foreman.”

“I shall have one in a month,” he said, smilingly. “By that time, George Williston will have sold the Lazy S for good money, invested the proceeds in cattle, turned the whole bunch in to range with the Three Bars herds, and on November first, he will take charge of the worldly affairs of one Paul Langford and his wife, of the Three Bars.”

“Really, Paul?” The brown eyes shone with pleasure.

“Really, Mary.”

“Has my father consented?”

“No, but he will when he finds I cannot do without him and when—I marry his daughter.”

Hoof-beats on the sod! The guests were coming at last. The beats rang nearer and nearer. From Kemah, from the Three Bars trail, from across country, they were coming. All the neighboring ranchmen and homesteaders with their families and all the available cowboys had been bidden to the frolic. The stableyard was filling. Hearty greetings, loud talking, and laughter floated out on the still air.

Laughing like children caught in a prank, the two at the spring clasped hands and ran swiftly to the house. Breathless but radiant, Mary came forward to greet her guests while Langford slipped away to put up Sade.

The revel was at its highest. Mary and Louise were distributing good things to eat and drink to the hungry cowmen. The rooms were so crowded, many stood without, looking in at the doors and windows. The fragrance of hot coffee drifted in from the kitchen.

Langford stood up. A sudden quiet fell upon the people.

“Friends and neighbors,” he said, “shall we drink to the prosperity of the Lazy S, the health and happiness of its master and its mistress?”

The health was drunk with cheers and noisy congratulations. Conversation began again, but Langford still stood.

“Friends and neighbors,” he said again. His voice was grave. “Let us drink to one—not with us to-night—a brave man—” in spite of himself his voice broke—“let us drink to the memory of Jim Munson.”

Silently all rose, and drank. They were rough men and women, most of them, but they were a people who held personal bravery among the virtues. Many stood with dimmed eyes, picturing that final scene on the island in which a brave man’s life had closed. Few there would soon forget Jim Munson, cow-puncher of the Three Bars.

There was yet another toast Langford was to propose to-night. Now was the opportune time. Jim would have wished it so. It was fitting that this toast follow Jim’s—it was Jim who had made it possible that it be given. He turned to Mary and touched her lightly on the shoulder.

“Will you come, Mary?” he said.

She went with him, wonderingly. He led her to the centre of the room. His arm fell gently over her shoulders. Her cheeks flushed with the sudden knowledge of what was coming, but she looked at him with perfect trust and unquestioning love.

“Friends and neighbors,” his voice rang out so that all might hear, “I ask you to drink to the health and happiness of the future mistress of the Three Bars!”

THE END

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